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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

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(Published by Authority)

PART IV (A) - PROVINCIAL COUNCILS

Provincial Council Notifications

NIVITHIGALA PRADESHIYA SABHA

By-Law Maintenance of Dangerous and Unpleasant Business

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding maintenance of Dangerous, Unpleasant, Dangerous and Unpleasant Business within Authoritative Area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its general meeting held on 18.06.2019, by virtue of powers vested under section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within authoritative area of Nivithigala Pradeshiya Sabha from the date this notification is published in the Gazette.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.



By-law on Dangerous, Unpleasant, Dangerous and Unpleasant Business operated within the Area of Authority of Nivithigala Pradeshiya Sabha

1. This By-Law is enacted to regulate, administrate and control businesses which are in the area of the Nivithigala Pradeshiya Sabha.
2. This by-law is known as the By-Law of Dangerous, Unpleasant, Dangerous and Unpleasant business operated within the area of authority of Nivithigala Pradeshiya Sabha
- 3.(1) No person shall maintain a business premises in the area of the Nivithigala Pradeshiya Sabha, (hereinafter referred to as the premises) unless there is a valid license issued by the Chairman.
- 3.(2) A person who wishes to obtain a license pursuant to section 3 (1) above shall apply by an application prepared in accordance with the fourth schedule of this by-law.
- 3.(3) The fee for a license under this by-law shall be lawful by the Sabha, subject to the provisions of the Basic Law, and shall be determined by a resolution of the Sabha.
- 04.(1) Any person who wishes to commence and maintain a premises which is subject to a permit under section 3 above shall have his prior approval of the Chairman under this by-law and otherwise there is no entitlement to apply for a license under section 3 of the Act.
- 4.(2) A request for prior approval under this section shall be approved by the Chairman on the recommendation of the Public Health Inspector and the Medical Officer of Health.
- 4.(3) The inspection fee to be charged under the approval of this section may be determined by the Sabha from time to time by the passed resolution.
5. Every person applying for a license under section 3 of this by-law must meet the following conditions:
 - 5.(1) Approval under section 4 of the by-law when the business is a start-up business.
 - 5.(2) If zoning has been done or industrial zones have been designated, the zoning shall comply with the construction of buildings for Dangerous, Unpleasant and Dangerous and Unpleasant business locations.
 - 5.(3) Shall be constructed in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance as applicable. The construction should be of good construction and of good quality.
 - 5.(4) No toxic gases shall be emitted from the material after the construction has been completed. Must be well built and in good condition.
 - 5.(5) Adequate space shall be designed to enable all operations to be performed smoothly without interruption.
 5. (6) The operational process shall be designed to facilitate the operation of the system in a systematic manner and there shall be no recourse.
 5. (7) Must be designed to be easily and properly cleaned.
 5. (8) The intended building or section of the building shall be constructed by the Chairman, the Authorizing Officer, the Medical Officer of Health or the Public Health Inspector in a manner satisfactory to the purpose of trade or production or storage, and shall be able to accommodate a desired number of customers. It should be spacious and risk free.
 5. (9) The premises shall be maintained properly and artificially or naturally ventilated and well lighted.
 5. (10) The floor should be made of washable and non-slippery material, and should be easy to clean and disinfect. There should be sufficient slope to allow the liquid to flow from the exit points of the ground.
 5. (11) According to the nature of the business, the walls should be made of waterproof, non-absorbent, and washable material, and the walls should be smooth to the height of the operation and not to have fine openings. They should also be easy to clean and disinfect.
 5. (12) Doors shall have a smooth and non-absorbent surface and shall be automatically closed when appropriate and shall be properly closed.

5. (13) The windows should be easily cleaned and constructed to minimize dirt accumulation. They should also be installed so that they can be cleaned.
5. (14) All structures and fixtures at the top of the business building must be installed to prevent direct and indirect damage to the material, by means of condensation and leakage, and shall not interfere with cleaning operations. It should be designed and finished to prevent dirt accumulation, mold buildups and cracking.
- 5.(15) The drains must be adequately constructed so that the waste does not become contaminated and non-returnable, and the drainage of the wastewater must be cleaned and washed with disinfectant at least twice a day.
5. (16) Fire extinguishers shall be provided according to the nature of the business and the operation of such equipment shall be inspected and verified at least once a year.
5. (17) The number of bedrooms reserved for workers in the premises shall be not less than 4 square meters per person.
5. (18) Sufficient toilets and toilets shall be provided for male and female use by the employees.
5. (19) Adequate number of bathrooms shall be provided for the use of persons employed on the premises in the nature of business, and the provisions relating to the toilets shall apply to such bathrooms under the provisions hereof.
5. (20) Every toilet, toilet and toilet shall be of good construction and shall be kept in good condition and shall not be slipped.
5. (21) Sewer pits and suction pits or central treatment units shall be directed to an approved system of sealed drainage or other suitable construction material so that wastewater does not rely on the slope with the required slope. Also, a water trap or an approved suitable method should be used to prevent combustion between the premises and the final disposal.
 - i. Adequate measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer, or open land except for the above.
 - ii. The above mentioned wastewater should not be exposed to the exhaust pit and sewage pit where the sewage is flowing and the groundwater should not be contaminated.
 - iii. The above mentioned wastewater shall be constructed up to the required standard for the drainage dump.
 - iv. The above suction pit should be constructed at least 15.25 m away from any water source.
 - v. If the chemical waste is generated by any manufacturing process or for any other reason, it should be disposed of in a manner specified by the relevant authority or sections.
5. (22) The water supply and storage facilities of the premises shall be as follows:
 - i. There should be adequate drinking water supply in the premises. Water should be stored in clean containers and free of hazardous materials and pollutants.
 - ii. Non-potable water used for other similar purposes must be carried in separate pipelines and must be distinguishable in color. Moreover, there should be no possibility of cross-contamination or deviations with the pipes carrying drinking water from such water sources.
6. The Licensee shall maintain the premises subject to the following conditions:
 6. (1) There should be first aid skilled workers and first aid facilities.
 6. (2) Employees of the premises must be insured under appropriate insurance.
 6. (3) Gases or fumes generated for any purpose in any part of the Licensee Institute shall be taken with precautionary measures without being exposed to the environment.
 6. (4) Depending on the nature of the business, any hazardous chemicals or other substances should be labeled with an appropriate label indicating their risks and how to use them. Any harmful chemicals or other substances must be stored in locked rooms or cabinets and used only by authorized and properly trained personnel.

6. (5) The agency shall prepare a permanent cleaning and disinfection work schedule.
6. (6) The employee must be employed to ensure that the cleaning and disinfection process is properly carried out.
6. (7) Adequate precautionary measures shall be taken to prevent contamination of other substances by cleaning and disinfecting equipment or tools with water, washers, disinfectants and their liquids. If there are any residues on the surface of this cleanser, rinse it several times with drinking water.
6. (8) The walls, floor and drainage areas of the employees where food is served must be thoroughly disinfected and maintained.
6. (9) The containers shall be kept in special safe containers when transporting and storing the containers within the premises to prevent damage to containers containing hazardous materials.
6. (10) The Licensee shall ensure that the employees of a Licensed Institution are provided with appropriate advice and training.
6. (11) Licensees must have knowledge of the nature and practices of the business in order to determine potential risks and take action to address any deficiencies.
6. (12) In the event of disposal of waste disposal facilities in the market place, the disposal of waste is legal, subject to the conditions stipulated by the Medical Officer of Health, Public Health Inspector with the approval of the Pradeshiya Sabha.
6. (13) Disposal of wastes in the premises of the premises of the Pradeshiya Sabha, where it is intended to be opened in an area not covered by the Solid Waste Management Service, as prescribed by the Medical Officer of Health, the Public Health Inspector must be.
6. (14) In the event of a license being operated by a Pradeshiya Sabha under the purview of a Solid Waste Management Service, it shall be the duty of the Licensee to maintain the relevant waste management services in accordance with the instructions and regulations of the relevant Waste Management Service.
6. (15) It shall be the duty of the Licensee to dispose of waste generated in the premises of the License in accordance with the regulations and regulations applicable thereto.
6. (16) Every person who works in offensive, dangerous and offensive business must wear the appropriate protective clothing, such as helmets, gloves, mouthpieces and footwear as and when required.
6. (17) The Licensee shall duly perform the functions specified by the Health Medical Officer or Public Health Inspector, Chairman or Chairman authorized by the Health Medical Officer or the Public Health Inspector to ensure that the premises are operated in accordance with the license. must be.
6. (18) The production of raw materials, storage materials or chemicals relating to the Premises shall not be maintained in a manner that is outside the stink or otherwise.
6. (19) Maximum packing height shall not exceed 1.5 m from the ground level unless adequate security measures are used for displaying or storing hazardous, offensive or hazardous substances.
6. (20) Adequate space shall be reserved at all premises to ensure that hazardous and unhealthy substances are returned to the manufacturing establishment, and that the place should be securely closed.
6. (21) If the sale of agrochemicals or similar hazardous materials is approved, the permit shall be displayed in such a manner as to be available to the consumer for sale.
6. (22) Every permit holder shall separately classify, label and label the goods or materials for sale in his place of sale.
6. (23) All goods or materials for sale shall be for sale in accordance with the laws and standards of the time.
6. (24) Every licensee shall release any unpleasant vapors or gases emitted in any production work to the atmosphere in accordance with the regulations of the CEA in such a manner that there is no possibility of harmful or unpleasant effects on the diffusion.
6. (25) Every licensee shall control the noise or vibration emitted in any production work in accordance with CEA regulations.

6. (26) Tanks or vessels used for washing and soaking hazardous, offensive, hazardous and unpleasant substances shall be kept clean and clean as necessary to prevent any odor.
6. (27) Avoid using chemicals or other materials or methods that may be harmful to public health or harmful to storage materials or harmful to storage materials and insects and animals.
6. (28) Any permit holder shall discharge or release any dirty odor or contaminated water or other solvents into a river, stream, stream, cut waterway, stream, well, tank, canal or any reservoir; No contamination or contamination shall be done by washing or otherwise.
7. Any licensee, other than authorized by the Chairman or the Chairperson, or any medical officer or public health inspector, to obtain a sample of any liquid or substance in any unpleasant, hazardous and hazardous business premises, except where it is lawful to obtain the trade value. Refusing to take a sample or Should not interfere in.
8. All permits issued under this by-law shall expire on or after 31st December of the year in which the license was issued, unless previously revoked.
9. Employees of the licensed premises must immediately notify the Licensee if they are infected, infected, infected, skin infection, ulcers or chemical allergies.
10. No person shall use the premises of the Licensed Place other than the resting-place for the rest of the persons.
11. The Licensee shall maintain, in every calendar year, a report recommended by a Commissioned Electrical Engineer or a recognized professional qualified in connection with the installation of electrical cables, fixtures, necessary protective equipment and safety preparations in every building related to this Business. .
12. It is the duty of the Licensee to refer all employees employed under the provisions of this by-law to a medical examination at least once a year.
13. Every permit holder must ensure that prevent all possible causes for mosquito breed in their place of business and prevent all possible causes of rainwater accumulation.
14. When any premises falling under this by-law shall be operated in accordance with several business functions under this by-law, the business nature of each such business shall be maintained as closely as possible.
15. Everything, including utensils and utensils used in any business or storage under this by-law, shall be thoroughly cleaned.
16. Every Sinhala, Tamil and English copy of this by-law shall be displayed in a publicly visible place in every licensed premises.
17. Any license, purchase of any food or other substance or liquid in the premises for the purpose of inspection by the Chairman or the Medical Officer of Health, the Public Health Inspector, any other authorized person by the Chairman, shall be legally purchased by any licensee. Refusing to take or receive or obstruct Schedule should.
18. The President, the Medical Officer of Health, the Public Health Inspector, and any other officer authorized by the Chairman to exercise the authority of these by-laws at any reasonable time, shall give the Licensee all reasonable assistance.
19. It is an offense to maintain premises without a permit under this by-law or to violate any of the provisions of the by-law, and after being convicted by a court of competent jurisdiction for such offense, 122 of the Pradeshiya Sabha Act, No. 15 of 1987 (2) Subject to a fine referred to in subsection (2). When a person who has been convicted of an offense continues to violate or violate the offense by a court of competent jurisdiction over the said offense, the Chairman or the Medical Officer of Health or the Public Health Inspector shall issue a written notice of the violation. Each subsequent day the violation continues An additional fine of the said clause shall also be liable.
20. Unless otherwise required in this by-law.
"Chairman" shall mean the person holding the office of the Chairman of the Pradeshiya Sabha or performing the functions of that office.

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha

"Medical Officer of Health" shall mean the person holding the office of any Medical Officer of Health in the area of the Divisional Council area.

"Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.

"Authorized officer" shall mean any officer authorized by the Chairman at the moment,

"Licensee" shall mean an organization, person or person licensed under this by-law;

"Pesticides" shall mean pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Cleaning" shall mean the removal of soil, accumulated food particles, dirt, grease or any other harmful external substance,

"Biological" shall mean any biological, chemical, alien substance or other substance which may be harmful to the safety or appropriateness of food;

"Combustion" shall mean the entry of a combustible substance into a food or food environment,

"Disinfectants" shall mean reduce the amount of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food by whether chemical or physical.

"Food hygiene" shall mean all conditions, measures and practices necessary to ensure the safety and appropriateness of food at all times in the food chain;

"Hazardous" shall mean any biological, chemical or physiological agents or conditions associated with food which may have an adverse health impact.

"Food handler" shall mean any person who works directly on food, food utensils and tools or on the surface where food touches

"Food Safety" shall mean the responsibility of the consumer to avoid any harm when preparing, processing, manufacturing, storing, distributing, transporting or consuming food.

"Drinking water" shall mean water that is not sufficiently contaminated with bacteria or chemicals to meet national standards, which are not sufficient to cause disease or adverse physical effects.

"Food" shall mean any goods imported, manufactured, sold or represented for the use of human food or beverages, and any goods or materials commonly taken or used in the composition or preparation of food,

"Reasonable Time" shall mean a time that engaged in the licensed function or any related activity.

21. In the event of any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

The following industries or businesses are hereby declared as unpleasant enterprises or industries for the purpose of Section 147 of the Pradeshiya Sabha Act No.15 of 1987.

1. Cleaning or storing graphite.
2. To manufacture or sell fertilizer or chemical fertilizer.
3. Leather tanning.
4. To manufacture rubber or to keep rubber bread.
5. Rubber Products

6. Store or sell oats.
7. Making coconut shell charcoal or wood charcoal.
8. Livestock production.
9. Making soap.
10. Buying or storing of new metals or old metals.
11. Buying or storing of metal debris and scrap materials.
12. Making or polishing furniture.
13. Production of Cane Products
14. Running a Carpentry Factory
15. Soaking of coconut husks (stagnation)
16. Manufacture of brushes (except toothbrushes)
17. Automatic tearing of timber.
18. Making Paints, Varnishes or Distempers.
19. Fiber Dyeing.
20. Manufacture of Leather Goods.
21. Making or repackaging chemicals.
22. Making of Gas Mantle.
23. Making the pot.
24. Candle making.
25. Making of mint.
26. Making Writing Ink, Mold Ink, or Stencil Ink.
27. Making laundry blue.
28. Making of Bronze.
29. Making perfumes.
30. Making School Chains.
31. Manufacture of tires or tubes.
32. Tire refilling.
33. Vulcanization of tires, tubes.
34. Cement storage, asbestos storage.
35. Manufacture of cement or asbestos cement.
36. Manufacture of sand paper.
37. Manufacture or store plastic products.
38. Brick bake and sale.
39. Mechanical weaving.
40. Manufacture and sale of tiles.

41. Clean and sell used sacks, barrels and jars.
42. Making Machine Cement Block Stones.
43. Preparation and storing of cinnamon, cardamom leaves.
44. Production or sale of villages.
45. Manufacture or sale of disinfectants.
46. Maintaining a battery refill or storage area.
47. Maintenance of old bottles.
48. Maintenance of a funeral service.
49. Manufacture and storage of furniture.
50. Gem Cutting and Polishing.
51. Production and sale of Cane Products.
52. Operating a mechanical weaving factory.
53. Maintaining flour or spice grinding station.
54. Storing and selling vegan food.
55. Storage of grain
56. Manufacture or sale of polythene or related products.
57. Manufacture and sale of shoes.
58. Production and sale of candles.

Second Schedule

The following industries or businesses are hereby declared as hazardous businesses or industries for the purposes of Section 147 of the Pradeshiya Sabha Act, No.15 of 1987.

01. Tearing wood by mechanical force.
02. Making or storing copra.
03. Drilling or storing of coconut oil or some other oil
04. Store cotton and its related products.
05. Making or storing fireboxes.
06. Production of Methylated Spirits.
07. Production of coir or other fibers.
08. Manufacture of coir or other fiber products.
09. Storage of Used Clothes.
10. Manufacture or Repair of Jewelry.
11. Mechanical tearing of wood.
12. Firewood sales.
13. Store and sell tiles and bricks.

14. Store for Sale in Tires & Tubes.
15. Timber Based Products & Wood Crushing Products
16. Store and sell cardboard and paper products.
17. Stone and Sheet Industry
18. Clay and Clay Industry.
19. Garments Manufacturing.
20. Chemical Based Textile Industries.
21. Laundry locations.
22. Production and storage of beedi.
23. Maintenance of a vehicle repair shop
24. Maintaining a repaired body part of the vehicle
25. Maintenance of a vehicle service station.
26. Operating a printing press.
27. Maintaining a collection of old papers or papers.
28. Repair of bicycles, motorcycles and motor vehicles.
29. Spray painting.
30. Production and storage of fireworks or crackers.
31. Metallurgy Manufacture of Industrial Machinery, Weapons, Equipment.

Third Schedule

The following industries or businesses are hereby declared as hazardous and offensive businesses or industries for the purposes of section 147 of the Pradeshiya Sabha Act, No.15 of 1987.

1. Dry Cleaning or Dyeing
2. Printing, dyeing, or baking.
3. Electronic metal coating.
4. Maintain a refrigerating area.
5. Making oil or animal fat.
6. Burn limestone or limestone.
7. Making fireworks or crackers.
8. Fiber products.
9. Charge or repair the batteries.
10. Welding of metals.
11. Mechanical crushing of metal.
12. Maintenance of a Casting House
13. Maintaining a Belek Workshop

14. Construction of Motor Body
15. Production or replenishment of insecticides, fungicides, herbicides or pesticides.
16. Production of antiseptics and mosquito coils.
17. Production of timber protection.
18. Stone and Cement Pre-Processing Centers.
19. Manufacture and storage of glassware.
20. Galvanizing of Iron Sheets.
21. Production of lead in lead.
22. Manufacture of Aluminum Products.
23. Manufacture of barbed wire.
24. Inventory of wire.
25. Making carbon paper or typewriter ribbons.
26. Made of Belec jars, steel barrels or carbon.
27. Production of GI Baldi.
28. Manufacture or repair of air conditioners, refrigerators, freezers, refrigerators
29. Manufacture and repair of brake liner, clutch liner.
30. Manufacture of Machinery
31. Manufacture of Electrical Goods.
32. Production of Rubberized Fiber.
33. Production of convective batteries.
34. Automobile assembly.
35. Radiator manufacture.
36. Manufacture or repair of electronic equipment.
37. Dry cell batteries.
38. Light bulb manufacturing and repair

Fourth Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Telephone: Mobile: -
05. Nature of Business: -
06. Year of Commencement:

Land phone: -

07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number Reference Number: -
12. Name and Personal Address of the Business Manager or Agent: -
13. National Identity Card Number: -
14. Phone Number: Mobile: - Land phone: -

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

Please kindly request me to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date:-

.....
Secretary

Secretary,

I recommend issuing a license.

Date:-

.....
Revenue Inspector

Medical Officer of Health

Please kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health

Compliance with by-laws and other rules and regulations. I will report for issuing licenses.

Date: -

.....
Public Health Inspector

12 A

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health

Fifth Schedule

Medical Certificate issued to the worker in an unpleasant, dangerous, dangerous and unpleasant business place

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health
(Official Seal)

12-654/1

NIVITHIGALA PRADESHIYA SABHA

By- Law regarding Animals Slaughter

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the by-law regarding the places where Animals are Slaughter and Kept for Slaughter within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its general meeting held on 18.06.2019, by virtue of powers vested under section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act, No. 12 of 1989, and it will be effective within authoritative area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-law on the places where Animals are Slaughter and Kept for Slaughter in the Nivithigala Pradeshiya Sabha Authoritative Area

1. This By-law is enacted to regulate, administer and standardize the places where animals are slaughtered and kept for slaughter in Nivithigala Pradeshiya Sabha Authoritative Area.
2. This By-law is known as the By-law on the places where animals are slaughtered and kept for slaughter in Nivithigala Pradeshiya Sabha Authoritative Area.

3. (1) Any person within the premises of the Nivithigala Pradeshiya Sabha (hereinafter referred to as the premises of the Pradeshiya Sabha) shall have a valid license issued by it to the Chairman of the Pradeshiya Sabha. Non-animals (sometimes referred to herein as "premature animals") should not be kept for food and maintained in a slaughterhouse.
3. (2) Any person who wishes to obtain a license under this By-law shall submit to the Chairman an application prepared in accordance with the form in the first schedule hereof.
3. (3) The fee for a license under this section shall be the fee determined by the Sabha in accordance with the provisions of the Basic Law.
4. (1) Any person who wishes to commence and maintain a premises subject to a permit under section 3 of this by-law shall have his prior approval under this By-law, unless the applicant is entitled to such license there is no entitlement to apply for a license under section 10 of the Act.
4. (2) The Chairman shall approve the report of the Public Health Inspector and the Medical Officer of Health on a request for prior approval under this section.
4. (3) The inspection fee to be charged under the approval of this section may be determined by the Council from time to time by a resolution of confirmation.
05. Every person applying for a license under section 3 of this By-law must meet the following conditions:
 5. (1) The building constructed at the intended site shall be constructed in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance. The construction should be of good construction and of good quality.
 5. (2) Wastewater shall be directed to a sewer pit, suction pit or central treatment unit by approved method of construction of a closed drain or other suitable construction material so that the waste does not rely on the required slope. Also, a water trap or an approved suitable method should be used to prevent combustion between the premises and the final disposal.
 5. (3) Notwithstanding the procedure specified in section 5.(2) above, adequate measures must be taken to prevent wastewater from flowing to any public waterway, drain, or open ground.
 5. (4) The hollow pit, which allows wastewater to flow, should not be exposed to the suction pit and shall not contaminate groundwater from the suction pit.
 5. (5) The drainage pit shall be constructed up to the approved standard.
 5. (6) The suction pit referred to in Sections 5.(4) and 5.(5) shall be erected at least 15.25 m from any source of water.
 5. (7) A separate slaughterhouse shall be maintained for slaughter of animals for food and slaughter, so that the slaughterhouse is not exposed to the sounds of slaughter and the sound of the slaughtered animals and the effluent emanating from the animal. On the recommendation of the health inspector, the slaughterhouse was built according to a plan approved by the Medical Officer of Health. Must have.
6. Every person licensed under this By-law shall maintain a temporary restraint for the slaughter and killing of animals in accordance with the following conditions.
 6. (1) It shall be the duty of the Licensee to keep the animals in a place where there is sufficient room for the slaughter of animals for food and slaughter in a temporary detention center.
 6. (2) The licensee shall maintain the necessary documents to ensure that the animals brought to a temporary detention center for slaughter and slaughter for food are obtained from a livestock farm on a legal permit.
 6. (3) It shall be the duty of the Licensee to provide the animals with food and water to the extent of slaughtering the animals for food and until the date of slaughter of animals in a place of slaughter.
 6. (4) It is not lawful to keep dead animals or diseased animals in the same place with healthy animals for slaughter and slaughter for food, and that sick or dead animals should not be slaughtered or used for meat.
 6. (5) The waste shall be disposed of in a slaughterhouse for the purpose of food and slaughter in accordance with the rules and conditions laid down by the Pradeshiya Sabha.

7. The premises of the slaughterhouse at each licensed premises should be washed with disinfectant water at the end of the day.
8. The drains and equipment used for animal slaughter shall be kept in good repair and free of odor in any premises licensed under this By-law.
9. No slaughter shall be committed in any slaughterhouse licensed under this By-law, except as prescribed by the Chairman forbidding the slaughter of animals for any date.
10. Adequate drinking water supply shall be maintained for all activities in the Licensed premises.
11. Meat transported from the slaughterhouse should be properly transported only in a transport facility with cold storage facilities.
- 12.(1) Any person who has recently undergone any infection, contact or dermatitis, or who has recently suffered from such a disease, or who has recently undergone treatment for such a person, has expired the period of infection and sterilization. And shall not allow any work to be done in any place licensed under this By-law.
12. (2) Any person engaged in any work in a licensed place shall wear well-washed clothes.
12. (3) Every person working in a licensed premises under this By-law shall be certified by the relevant medical officer of the area to be in good health and shall comply with the form set out in the second schedule of this By-law. Medical examinations of persons working on the premises shall be conducted from time to time as may be prescribed by the Medical Officer of Health of the relevant area and from time to time as may be specified clinically or epidemiologically.
13. Under this By-law, it shall be the duty of the Licensee to provide safety veils, gloves and other protective clothing as required by all employees employed at the Licensee's premises and to ensure that those employees wear the same protective clothing whenever they are employed.
14. It shall be the duty of the Licensee to provide adequate facilities for washing and drying with disinfectant facilities for use by all persons employed in the Licensed Place.
15. Any slaughtered animal prepared for slaughter shall be deemed unworthy or inappropriate for human consumption, upon inspection by the Chairman or by any officer authorized by him, in inspection of licensed premises under this By-law. The officer was prohibited from taking possession of any person, without compensation the destruction or opportune disposal of what may be suspended.
16. The President, the Medical Officer of Health, the Public Health Inspector, or any officer authorized by the President to exercise the authority of these By-laws shall, at a reasonable time, give the Licensee all reasonable assistance.
17. In the event of the termination of any licensee's compliance with this by-law, or in accordance with the by-laws, the Chairman shall deliver to the Licensee a notice with reasonable time. The maximum period of notice from such advertisement shall not exceed 30 days.
18. Any Licensee who has received an Advertisement as set out in Section 17 hereof shall act in such manner as is prescribed in that notice before the specified date. The Chairman shall have the right to extend the time specified in such notice upon a reasonable written request by the licensee. However, the extension period should not exceed 14 days.
19. In the event that any licensee who has received a notice of the type referred to in paragraph 17 hereof has failed to act in the manner specified in that notice or before the date on which such notice is extended, the license issued to the place shall be revoked by the chairman. Must be legal.
20. All permits issued under this By-law shall expire on or after 31st December of the year in which the license was issued, unless previously revoked.
21. It is an offense to maintain premises without a license or violate any provision under this By-law and after being convicted by a court of competent jurisdiction for such offense is liable to a fine referred to in section 122 (2) of the Pradeshiya Sabha Act No.15 of 1987 must be. Upon receipt of a written notice by the Chairman or the Medical Officer of Health or the Public Health Inspector, the violator or the violator shall continue to observe such violation when a person has been fined after being convicted of an offense. Every single day the violation continues the components must be subject to an additional fine above section.

22. Unless otherwise necessary,
“The Chairman” shall mean the Chairman of the Nivithigala Pradeshiya Sabha.
"Authorized officer" shall mean a Medical Officer of Health, public health inspector or other officer authorized by the President,
"Licensee" shall mean a person licensed by a local authority for a business referred to in the By-law;
"Cleaning" shall mean the removal of soil, accumulated food particles, dirt, grease or any other harmful external substance,
"Whether chemical or physical" shall mean reduce the amount of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food by "disinfectants";
"Drinking water" shall mean water that is not sufficiently contaminated with bacteria or chemicals to meet national standards, which are not sufficient to cause disease or adverse physical effects;
"Reasonable time" shall mean any time during which licensed work or related activities are performed,
"Municipal waste collector" shall mean any employee engaged in garbage collection in the pradeshiya sabha or any other person appointed by the Chairman for that purpose.
23. In the event of any inconsistency between the Sinhala, Tamil and English versions of this By law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: - mobile: - Land phone :-
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
 - I. Name and Personal Address:
 - II. National Identity Card Number: -
 - III. Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date:

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations, I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health**Second Schedule**

Photograph

Medical Certificate issued to the worker in a Animals are Slaughter and Kept for Slaughter Place

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs., bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat to the food security.

.....
Date

 Medical Officer of Health
 (Official Seal)

NIVITHIGALA PRADESHIYA SABHA

By- Law regarding Food Supply Places

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the by-law regarding maintenance of Food Supply Places within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act ,No. 15 of 1987 and passed at its general meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act, read with section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within authoritative area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-law on the Maintenance of Food Supply Places in the Nivithigala Pradeshiya Sabha Authoritative Area

1. This By-law is enacted to regulate, administrate and control the supply of food places within the Authoritative Area of the Nivithigala Pradeshiya Sabha.
2. This By-law is known as the By-Law for the maintenance of food supply places within the Authoritative Area of the Nivithigala Pradeshiya Sabha.
3. (1) Any person without a valid license issued by the Chairman should not run a food supply place of any premises within the Nivithigala Pradeshiya Sabha Authoritative Area (hereinafter referred to as Authoritative area).
3. (2) A person who wishes to obtain a license in accordance with section 3(1) above shall apply by an application prepared in accordance with the first schedule of this By-law.
3. (3) The fee for a license under this section shall be the fee determined by the Sabha in accordance with the provisions of the Basic Law.
4. (1) Any person who wishes to commence and maintain a premises subject to a permit under section 3 of this By-Law shall have his prior approval under this By-Law, unless the applicant is entitled to such license, there is no entitlement to apply for a license under section 10 of the by-law.
4. (2) The Chairman shall approve the report of the Public Health Inspector and the Medical Officer of Health on a request for prior approval under this section.
4. (3) The inspection fee to be charged under the approval of this section may be determined by the Sabha from time to time by the resolutions for the purpose.
5. Every person applying for a license under section 3 of this By-law must meet the following conditions:
 5. (1) Approval under section 4 of this By-law when a business is a start-up business.
 5. (2) If a zoning has been done or industrial zones have been designated, the construction of the building for food supply places shall be in accordance with that zoning.
 5. (3) Where the premises are intended to be used for the preparation, cooking, storage, sale and distribution of food,
 - i. Construction of the premises shall be in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance. The structure should be well constructed and of good quality with permanent construction material.

- ii. Organisms should not rely on all construction materials and should not transmit to the the things to food that is unsuitable to them. No toxic gases should be emitted from the material after construction is complete. Must be well built and in good condition.
- iii. There must be built-in or other efficient means of separation, division, positioning, or to prevent cross-combustion.
- iv. It should be designed to provide adequate space to enable all operations to be performed smoothly without interruption.
- v. From the raw materials to the premises to the production of finished food, the process of hygiene should be designed to facilitate the process. There should be no deviation from the operation of the fabrication process.
- vi. It should be designed to prevent the entry and retention of pests and contaminations.
- vii. It should be designed to facilitate proper monitoring of food hygiene in order to be easily and properly cleaned.

5. (4) When it is a food processing place,

- i. The floor should be made of waterproof, non-absorbent, washable and non-slippery material without fine opening and should be easy to clean and disinfect. There should be sufficient slope to allow the liquid to flow from the exit points on the ground.
- ii. The walls should be made of non-absorbable and washable materials with waterproofing and the walls should be free of pores and insects. The walls should be smooth to the height of the operation and should not have delicate openings. They should also be easy to clean and disinfect.
- iii. Surfaces that come in direct contact with food should be of good quality, durable and easy to clean, maintain and disinfect. These surfaces should be made of materials that are smooth and non-absorbent and that the surfaces should be free of food, washing agents and disinfectants.
- iv. The ceiling should be designed and constructed to prevent condensation, reduce condensation, and prevent the mold from joining and cracking.
- v. The doors should have a smooth and non-absorbent surface, which can be automatically closed and closed when appropriate.
- vi. The windows should be easy to clean and constructed to minimize waste accumulation and insects that can be removed, cleaned, and cleaned to those windows Insulating nets shall be installed and windows shall be installed as required.
- vii. All structures and fixtures above the food handling area must be installed to prevent direct and indirect combustion of food and ingredients by condensation and leakage and shall not interfere with cleaning. It must be designed and completed to prevent waste accumulation, mold buildup and spillage.
- viii. General fire extinguishers shall be provided at the site and additional fire extinguishers shall be provided if the electrical connection is obtained.
- ix. Habitats, toilets, and animal husbandry areas should be kept separate from food-consuming places and not directly open to food-consuming areas.

5. (5) To facilitate the use of the staff of the premises;

- i. The number of bedrooms reserved for on-site workers should be not less than 4 square meters per person.
- ii. Separate toilets shall be provided for both men and women to be adequate for the use of the workers.
- iii. Adequate number of bathrooms shall be provided for the use of persons employed in the premises and the provisions of this By-Law shall apply to such bathrooms.
- iv. Every toilet and bathroom provided must be well constructed with permanent construction material.

5. (6) When the premises are not covered by a solid waste management service operated by the Pradeshiya Sabha, the premises should be constructed in accordance with the Public Health Inspector or Health Medical Officer recommended garbage disposal system.
5. (7) The premises shall be erected with accessibility facilities for the disabled and special needs.
6. Every person licensed under this By-Law shall maintain the premises in accordance with the following conditions.
 6. (1). Pumps, suction pits or central treatment units shall be directed to an approved system of sealed drainage or other suitable construction material so that the wastewater and sewage does not rely on the required slope. Also, a water trap or an approved suitable method should be used to prevent combustion between the premises and the final disposal.
 6. (2) Toilets shall be constructed and maintained in good condition so that its internal floor is not slippery.
 6. (3) The drains must be adequately constructed to avoid contamination and return, and should be erected to prevent combustion and the drainage of the wastewater must be cleaned and disinfected at least twice a day with disinfectant.
 6. (4) Sufficient measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer, or open land.
 6. (5) The sewage pit, where sewage and sewage flow, shall not be exposed to air and shall not contaminate groundwater from the suction pit.
 6. (6) The sewer pit where sewage or sewage is flowing must be constructed to the standard.
 6. (7) The suction pit shall be erected at least 15.25 m from any source of water.
 6. (8) The nature of food operations undertaken, where necessary, for cooking, heating, cooling, freezing, storing cold or frozen foods, and controlling the temperature of foods. As such, adequate facilities should be provided to ensure the safety and appropriateness of the food and to regulate the temperature.
 6. (9) All equipment and tools used in food preparation places shall comply with the following requirements:
 - i. All equipment and tools used in the food processing area must be made of a substance that does not transmit any toxins, odors or taste. Such equipment and tools must be made of non-absorbent and stainless materials and are of continuous cleaning and disinfectant. There should be smooth surfaces free of gaps and fine openings. Wood and other materials that can't not easily clean and disinfect should be avoided only when they are not clearly a source of combustion.
 - ii. To prevent hygiene hazards, all equipment and tools must be designed and scheduled to be easily cleaned and disinfected and inspected at appropriate times. Where necessary, the equipment should be fitted for cleaning and maintenance.
 - iii. Containers and non-consumable containers should be made of metal or other non-leaky material to prevent leakage and should be easily cleaned. Also, the pots should be well sealed.
 - iv. Waste collection equipment and tools should be distinguishable and not used for consumable products.
 - v. Calibrated temperature gauges or recording equipment shall be provided for all facilities for refrigeration and freezing where appropriate.
 - vi. The equipment, tools and all other physical facilities of the organization must be maintained in good condition.
 - vii. It should be designed and maintained to prevent contamination and adding pests in the transportation of food and to avoid contamination of food.
 - viii. In case of a power outage, a suitable and adequate generator shall be maintained and available for use.

6. (10). Water supply and storage facilities at feeding stations shall be as follows.

- i. There should be adequate drinking water supply in the premises. Water should be stored in clean containers and free of hazardous materials and contaminants.
- ii. Ice should be produced in drinking water and stored and stored to prevent contamination.
- iii. Food and surfaces that directly interfere with food must be free of hazardous vapour, materials or contaminants.
- iv. Non-potable water used for steam production, refrigeration, fire control and other non-food related purposes shall be carried in separate pipelines and shall be distinguished by a separate colour. Moreover, there should be no possibility of cross-contamination or deviation in the case of pipes carrying drinking water from such water sources.

6 (11). The Licensee shall ensure that there is an enforceable procedure in place to deal with any hazardous conditions that may affect the safety of food and to prevent the delivery of any spoiled food products to consumers.

6. (12) No person shall process meat or fish in any premises except in accordance with the following rules.

- i. All meat and fish should be stored after receiving, and when they are not processed, the room or cabinet temperature should be kept below 2 degrees Celsius as soon as practicable. In all cases, meat and fish should be preserved so as not to be rotten and combustible.
- ii. Tables, benches or shelves that come in direct contact with meat or fish should have a smooth, scratchy surface.
- iii. Do not allow the collection of waste bones, fish and waste. They should be removed from the premises at least once a day and disposed of before being affected.
- iv. Made of non-absorbent, non-metallic or other suitable water absorbent material for collecting meat shells, effluent and waste in every processing room in a food handling area and other locations used for processing food in that room. Plenty of portable, non-portable watertight containers with a masking cover and recognizable colour taking into account must be provided.

6. (13) Disposal containers for premises,

- i. Meat shells, discarded parts of fish should be kept in a frozen room or in a separate room or covered with an insulating material that does not absorb water, until the waste is disposed off. They should be located high above the ground, suitable for drainage, with support slopes. Nevertheless, pests and fats should be taken to a separate room, covered area, or outside place and kept in clean, dry bags or other suitable containers until they are removed from the premises.
- ii. Immediately after emptying the pots should be carefully cleaned and dried underneath.

6. (14) Steps shall be taken for proper disposal of pests and to keep the premises free of pesticides, or by means of a duly directed air duct or other suitable control, or by covering all windows and gates with suitable nets for flies.

6. (15) No person shall display or serve food in any place where food is provided, except in accordance with the following requirements:

- i. In cases where the consumer has food to choose from, the customer should not hold the food in such a way as to have his hand extended over other foods.
- ii. Ensure proper use of snacks, forks, spoons, sticks, knives, large spoons, suitable for use by workers and customers, to prevent unnecessary touching of food.

6. (16) In the opinion of the Medical Officer of Health or the Public Health Inspector, additional measures may be taken by the Medical Officer of Health or the Public Health Inspector to prevent food contamination in the event that food security is not adequate.

6. (17) Every person dealing with or preparing food in a food supply place shall take care to prevent food contamination and avoid unnecessary touching and other equipment used on the premises.

6. (18) Any person engaged in the preparation, handling or serving of food in a food supply place:
- The food should not be split with its fingers, except where it is practically impossible to serve food in any other way.
 - Food-friendly gloves should be used when fingertips are necessary for special occasions.
 - He must not wipe his hand in his clothes or wipe anything else, except using a clean towel.
 - A Food in a dish, a dish, or a jar should not be stored or carried or stored any food to touch the bottom of a another dish of food, a dish, or a jar.
 - A bowl, dish or dish that is used to divide or divide a particular food should not be stacked on top of one another without being thoroughly cleaned and the surfaces should be placed wherever possible.
 - Containers should not be touched in such a way that the microorganisms can be transferred from the food processor to the consumer by a spoon, knife, fork or any other container.
 - Do not carry a spoon, knife or fork in the pocket of any garment or apron.
6. (19) Every supplier of food in a licensed institution shall not use any other appliance unless it is impracticable to use a sanitary fork or other suitable instrument for the provision of food.
6. (20) No employee of a licensed food supply place shall wipe any equipment with a towel or other cloth that is not clean or otherwise suitable for wiping.
6. (21) The Licensee shall operate in accordance with the following requirements:
- All cooked foods which are easily decomposed shall be maintained at temperatures not exceeding 4 degrees Celsius, or at temperatures not less than 60 degrees Celsius except in the following cases Otherwise,
 - When the entire collection is not exposed or displayed for sale for more than two hours,
Or a
 - During the time between preparation and serving.
 - Pastries, patties, sauces, pizzas and similar dishes containing all cooked meat or fish, which are generally eaten in the same condition as that sold, shall be stored in covered containers. Otherwise, it should be stored separately in foods that are not in a sealed container or completely covered in a container, or in a container.
 - Milk should not be kept in a feeder premises unless it is stored in a refrigerator at temperatures not exceeding 7 degrees Celsius.
 - All fruits and vegetables that may be eaten at the time of delivery shall be washed and cleaned before being delivered to the consumer.
 - Any food shall not be placed directly on the ground and shall be provided with a suitable material platform on the floor at least 45 cm height from the floor to the edges of the platform so that it can be cleaned under the platform where it is displayed and stored. The distance should be 23 cm. The platform should be kept at least 23 cm away from the wall, except that the rats or any other type of insect, must be covered under the platform.
 - Uncooked vegetable should be kept, well ventilated, adequate lighting, in the absence of rats, or in any other room or refrigerator or cooler room.
6. (22) The Institute shall have adequate clothing changing places and water sealed toilets. Toilets must comply with hygiene standards to ensure hygiene. These locations should be well lit and ventilated. These locations should not be directly open to food handling areas. Washing hands with hot or cold water should be equipped with cleaners and a hand drying system should be provided next to the toilet.
6. (23) there shall be adequate, conveniently equipped facilities for washing and drying with disinfectant if needed in the processing areas.

6. (24) The equipment and tools used shall be adequately equipped for cleaning and disinfection. These facilities should be made of stainless materials and should be easily washable. Also, suitable equipment should be provided with adequate quantities of hot and cold water to clean the equipment if needed.
6. (25) The Licensed Institution shall have adequate and appropriate lighting everywhere. At any point in the product, the bulbs and fixtures that hang over the foodstuff must be of safety quality and should be covered with bulbs to prevent food from breaking.
6. (26) Adequate ventilation shall be provided and adequate ventilation shall be provided for the removal of dirty air to prevent excessive heat, steam condensation and accumulation of dust. Winds within the premises should not be from a dirty area to a clean area. The ventilation spots should be arranged with a suitable mesh or other protective covering and should be easily removed for cleaning.
6. (27) Gases or fumes generated for any purpose in any part of the Licensee's Institution shall be taken with precautionary measures before being released into the environment.
6. (28) There shall be facilities for storing waste and non-perishable material before being taken out of the institution. These facilities should be designed to prevent pests from entering and mixing with food, drinking water or equipment.
6. (29) Any unhealthy pesticides or other substances should be labeled with the appropriate label indicating their toxicity and how they should be used. Disposal of Pesticides Food Processing and Food Processing Locations Store in a sealed room or cabinet should only be used by trained personnel and take special care to avoid mixing with pesticides.
6. (30) The cleaning and disinfection process must be thorough and subject to the following:
 - i. A permanent cleaning and disinfectant work schedule should be prepared so that all aspects of the organization are appropriately cleaned and special areas, equipment and materials are given special attention.
 - ii. Employees should ensure that the cleaning and disinfection process is properly carried out.
 - iii. When preparing food on the premises, no person shall clean the floor of the room by any means other than dust-free floor cleaning.
 - iv. All equipment used in serving or consuming food in a food supply place dealing with a particular food should be adequately cleaned and rinsed with hot soapy water or washing with warm water with adequate soap or other washing equipment. Licensee of the institute for the restoration should be dealt with.
 - v. Adequate precautionary measures must be taken to prevent contamination of food by water, washing or disinfection of equipment or tools. If any residue of this cleanser is on the surface or in contact with food, wash it several times with drinking water.
 - vi. CIP for cleaning. When the method is used, the process must ensure that the processing lines are cleaned and disinfected.
 - vii. The walls, floors, and drainage areas of the food handling area must be thoroughly disinfected and cleaned.
6. (31) Food Wrapping and Packaging Materials shall not be sources of food contamination and shall be stored in such a manner that it does not pose a risk of corrosion.
6. (32) No person shall make arrangements for raising or raising animals, birds or other pets in a licensed institution.
6. (33) Food handling and processing areas shall be free from pesticides. There needs to be an effective and ongoing program to control pests.
6. (34) Licensed Institute,
 - i. Foods that are processed and unprocessed must be stored in specific locations with appropriate labels.
 - ii. By-products should be separately sterilized to prevent food corrosion.
 - iii. Waste should not be collected at food consumption sites.

6. (35) The transport media or containers used for the transportation of food items shall be maintained in good repair to prevent the mixing of other substances to food. They should be designed so that they can be adequately cleaned and disinfected where necessary.
6. (36) The Food Licensee shall ensure that food users in a Licensed Institution are provided with instructions and training on food hygiene in accordance with their requirements.
6. (37) Licensees must have knowledge of food hygiene policies and practices in order to determine potential risks and take action to address any deficiencies.
6. (38) The waste management of the institution shall be as follows.
 - i. Licensed organizations must have an efficient and appropriate waste disposal system that is always in good working order and repaired.
 - ii. The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - iii. It is the responsibility of the Licensee to take action to minimize the daily waste generation of Licensed Institutions.
6. (39) Disposal of waste shall be legal in accordance with the conditions stipulated by the Medical Officer of Health or the Public Health Inspector with the approval of the Pradeshiya Sabha, where the Licensee has disposal facilities.
6. (40) The Health Officer of the area should ensure that every person dealing with the use of food relating to the premises is in good health before employing such certificate and it must comply with the form specified in Schedule 2 of this By-Law. The medical examination of a person dealing with food consumption shall be conducted from time to time as determined by the Medical Officer of Health of the relevant area and from time to time as specified clinically or as epidemiologically.
6. (41) Every person dealing with the use of food shall be of the highest personal hygiene at the time of his work, shall wear helmets, gloves, mouthpieces, and shoes at all times, and shall wear suitable protective clothing.
6. (42) A person who enters a place of food consumption should wash his hands with an appropriate cleaning solution and drinking water. Users should wash their hands with disinfectants before starting work or resuming after using the toilet or touching any ingredient or contaminant.
6. (43) When dealing with food, persons engaged in the preparation and presentation of food in the premises or in any other way shall wear pockets made of clean and washable material.
6. (44) Gloves used in handling food products shall be in good and clean hygiene.
6. (45) A person with a cut or wound shall not touch the food or touch the surface of the food until the wound is fully covered with a waterproof cover.
6. (46) The premises must have adequate first aid facilities.
6. (47) Foods that can be consumed directly or indirectly by a person who is infected with food or suspected of contracting the disease, or who is a carrier of such diseases, or who suffers from infected wounds, skin infections, ulcers, and diarrhea. No post shall be permitted to be used in any place of use. Any person who has contracted such a disease should immediately inform the Licensee that he has been sick.
7. All persons dealing with food shall not eat, smoke, spit, chew, chewing gum, or coughing, sneezing, touching the nose, or engaging in any harmful activity for food. .
8. Everyone dealing with food on the premises,
 - i. Should not leave personal belongings and clothing in food handling places.
 - ii. Food should not be left in a place that is at risk of burnout.
 - iii. Every food placed on the premises must be made suitable for human consumption.

- iv. Adequate measures must be taken to protect food from corrosion when storing, transporting, presenting, and exposing food.
- v. Should not wear or transport food items to places where items such as jewelry, watches, pins, thorns, or personal belongings are threatened.
- 9. No person shall use any premises intended to be used as a sleeping-place. There should be no sleeping area adjacent to the food preparation area unless there is room for intermittent ventilation.
- 10. Those dealing with food should have the skills to maintain food hygiene.
- 11. (1) The containers or containers for the transportation of food in vehicles shall not be used for the transportation of goods other than food.
- 11. (2) Where the means of transport or containers are used for the transportation of other non-food items or other foodstuffs, the goods shall be properly reserved.
- 11. (3) The transport media or containers used for the transportation of other non-food items or other foodstuffs shall not be used for the transportation of food without proper cleaning after such shipment. Separate containers must be used for the transportation of cooked food.
- 12. Food items in transport media or containers should be safely stored in a non-combustible manner.
- 13. Transport media or containers used to transport foodstuffs should be able to maintain foodstuffs at appropriate temperatures and be able to regulate such temperatures.
- 14. Important health messages relevant to employees and customers should be displayed in the premises.
- 15. All permits issued under this By-Law shall expire on or after 31st December of the year in which the license was issued, unless previously revoked.
- 16. Every Sinhala, Tamil and English copy of this By-Law shall be displayed in a publicly visible place in every premises subject to a license under this By-Law.
- 17. Where the premises where a catering facility is issued under this By-Law is contrary to the provisions of any of the provisions of this By-Law, the Licensee shall comply with all such requirements to ensure that the place is in compliance with such regulations. The Chairman shall deliver the notice to the Licensee to be made them. The maximum period of notice from such advertisement shall not exceed 30 days.
- 18. Any Licensee who has received a Notice in accordance with Section 17 hereof shall act in such manner as is prescribed in that notice before the specified date. The Chairman shall have the right to extend the time specified in such Notice on a reasonable written request by the Licensee. However, the extension period should not exceed 14 days.
- 19. License issued to any Licensee who fails to act in the manner specified in that notice before the date specified or extended by such notice, Cancellation by the Chairman must be legal.
- 20. Any license holder of a premises or any other authority authorized by the Public Health Inspector or the Public Health Inspector, or any authorized person by the Chairman, shall be legally entitled to receive any food, other substance or liquid in any premises for the purpose of payment. Refuse or obstruct such purchases in any means.
- 21. The Licensee shall give every reasonable support to the Chairman, the Medical Officer of Health or the Public Health Inspector or any other officer authorized by the Chairman, at any reasonable time to check the terms of this By-Law.
- 22. It is an offense to maintain premises without a license to be obtained under this By-Law or to violate any of the provisions of the By-Law, and after being convicted by a court of competent jurisdiction for such offense, 122 of the Pradeshiya Sabha Act No. 15 of 1987 (2) Subject to a fine referred to in subsection (2). When a person who has been convicted of an offense continues to violate or interrupt the offense by a court of competent jurisdiction over such offense, a written notice shall be delivered by the Chairman, the Medical Officer of Health or the Public Health Inspector with a view to the violation. Each subsequent day the violation continues for this purpose an additional fine of the said section shall also be liable.

23. Unless otherwise required in this By-Law,

"Chairman" means the person holding the office of Chairman of this Pradeshiya Sabha or performing the functions of that office.

"Pradeshiya Sabha" means Nivithigala Pradeshiya Sabha

"Medical Officer of Health" means the person holding the office of any Medical Officer of Health in the area of the Pradeshiya Sabha area.

"Public Health Inspector" means the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.

"Authorized officer" means any officer authorized by the Chairman at the moment,

"Licensee" means an organization, person or person licensed under this By-Law;

"Pesticides" means pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Cleaning" means the removal of soil, accumulated food particles, dirt, grease or any other harmful external substance,

"Biological" means any biological, chemical, alien substance or other substance which may be harmful to the safety or appropriateness of food;

"Combustion" means the entry or occurrence of a combustible substance in a food or food environment,

Whether chemical or physical means reduce the amount of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food by "disinfectants";

"Food hygiene" means all conditions, measures and practices necessary to ensure the safety and appropriateness of food at all times in the food chain;

"Hazardous" or any biological, chemical or physiological agents or conditions, which may have an adverse health impact or are food-related;

"Food handler" means any person who works directly on food, food utensils and tools or on the surface where food touches

"Food safety" means the responsibility of the consumer to avoid any harm when preparing, processing, manufacturing, storing, distributing, transporting or consuming food.

"Drinking water" means water that is not sufficiently contaminated with bacteria or chemicals to meet national standards, which are not sufficient to cause disease or adverse physical effects;

"Food" refers to any goods imported, manufactured, sold, sold or represented for the consumption of human food or beverages, and any goods or materials commonly taken or used in the composition or preparation of food. ,

"Food supply place" means places where food, lunches, celebrations, celebrations, occasional education, discussions or lectures are provided with meals, or places where food is served on an order;

"Reasonable Time" shall mean a time when the licensee is engaged in the work or related work.

24. In the event of any inconsistency between the Sinhala, Tamil and English texts of this By-Law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:

02. Personal Address:

03. National Identity Card Number:

04. Phone Number: Mobile: - Land phone: -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, photocopy should be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
- I. Name and Personal Address:
- II. National Identity Card Number: -
- III. Phone Number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

Medical Officer of Health

Second Schedule

Medical Certificate issued to the worker in a Food Supply Place.

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

Date

Medical Officer of Health
(Official Seal)

12-654/3

NIVITHIGALA PRADESHIYA SABHA

By- Law - Regarding Reception Halls

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the by-law regarding maintenance of Reception Halls within Authoritative Area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under section 122 read with section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its general meeting held on 18.06.2019, by virtue of powers vested under section 123(1) of Pradeshiya Sabha Act read with section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within authoritative area of Nivithigala Pradeshiya Sabha from the date this notification is published in the Gazette.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-Law on the Maintenance of Reception Halls in Nivithigala Pradeshiya Sabha Authoritative Area

1. This By-Law is enacted to regulate, administrate and regulate the functioning of Reception Halls within the Nivithigala Pradeshiya Sabha Authoritative Area.
2. This by-law is known as the by-law for the Maintaining of Reception Halls in the Nivithigala Pradeshiya Sabha Authoritative Area
3. (1) Any person without a valid license issued by the Chairman should not run a Reception Halls of any premises within the Nivithigala Pradeshiya Sabha Authoritative Area (hereinafter referred to as Pradeshiya Sabha). Do not maintain Reception halls unless you have a license/
3. (2) Every person applying for a license under this by-law shall apply for a license under an application prepared in accordance with the first schedule hereof.
3. (3) The fee for a license under this section shall be the fee determined by the Sabha in accordance with the provisions of the Basic Law.
4. (1) Any person who wishes to commence and maintain a premises subject to a permit under section 3 of this by-law shall have his prior approval under this by-law, unless the applicant is entitled to such license. There is no entitlement to apply for a license under section 10 of the Act.
4. (2) The Chairman shall approve the report of the Public Health Inspector and the Medical Officer of Health on a request for prior approval under this section.
4. (3) The inspection fee to be charged under the approval of this section may be determined by the Sabha from time to time by a resolution of the confirmation.
5. Every person applying for a license under section 3 of this by-law must meet the following conditions:
 5. (1) Approval under section 4 of the by-law when the business is a start-up business.
 5. (2) If a zoning has been done or industrial zones have been designated, construction of a building for a festival hall should be carried out in accordance with that zoning.
 5. (3) The construction of the premises shall be constructed in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance and shall be of good construction and in good condition.
 5. (4) The premises shall be designed or made in such a manner as to facilitate separation, division, positioning, or other efficient means of preventing cross-combustion.
 5. (5) The premises shall be designed to provide adequate space to enable all operations to be performed smoothly without interruption.
 5. (6) The premises shall be designed to prevent the entry and retention of pests and pollutants.
 5. (7) The premises shall be designed to facilitate proper monitoring of the hygiene of the food in order to facilitate easy and proper cleaning.
 5. (8) The hall should be well constructed and maintained in good condition. Organisms should not rely on all construction materials and should not transmit food that is unsuitable to them. No toxic gases should be emitted from the material after construction is complete.
 5. (9) The place should be in good repair condition.
 5. (10) The wall shall be not less than 2.7 meters in height and shall be properly constructed and constructed of suitable building material.
 5. (11) Ceilings shall be mounted in every hall and room at a height not less than 2.7 meters above ground level.
 5. (12) A ceiling or well-finished concrete roof shall be designed and constructed to minimize condensation and prevent mold and cracking, to prevent dirt accumulation, and shall be easy to clean.

5. (13) In every hall and room, open able windows shall be installed and the windows of each window open shall not be less than one-half the area of the hall or room respectively. However, this rule does not apply when a room or hall is air-conditioned and artificial light is sufficient.
5. (14) Doors shall have a smooth and non-absorbent surface and shall automatically close and close when appropriate.
5. (15) The windows should be easily cleaned and finished to minimize dirt accumulation. They should also be fitted with removable and cleanable nets that are not accessible to insects and should be installed as needed.
5. (16) All structures and fixtures above the food handling area shall be installed to prevent direct and indirect combustion of food and ingredients by condensation and leakage and shall not interfere with the cleaning process. It should be designed and finished to prevent corrosion, mold buildup and spillage.
5. (17) Adequate fire extinguishers shall be provided.
5. (18) Residential facilities and toilet facilities for the employees shall be kept separate from the places where food is served and shall not be opened directly to the places where food is served.
5. (19) The roof must be of some permanent material.
5. (20) Floor ends shall be located at least 2 m from the ground floor and shall be at least 1.5 m from the floor.
5. (21) The floor of every hall and room shall be well furnished with suitable construction materials.
5. (22) Toilet and toilet facilities shall be adequate for the use of the employees and the consumers, or separate men and women of the size prescribed by the Chairman.
5. (23) Every toilet and bathroom shall be of good construction and shall be of good quality and shall not be slipped.
5. (24) Buildings on the premises should be constructed with accessibility facilities for the disabled and special needs.
5. (25) When the premises are located in an area not covered by a solid waste management service implemented by the Pradeshiya Sabha, the premises should be prepared in accordance with the Public Health Inspector or Health Medical Officer recommended garbage disposal system
5. (26) Sewer pits, suction pits or central treatment units shall be directed to an approved system of sealed drains or other suitable construction material so that the wastewater and sewage does not depend on the slope with the required slope. Also, a water trap or an approved suitable method should be used to prevent combustion between the premises and the final disposal.
5. (27) The sewage pit, where sewage and sewage flow, must not be exposed to air and shall not contaminate groundwater from the suction pit.
5. (28) The sewage pit where sewage and sewage is flowing must be constructed to the standard.
5. (29) The suction pit shall be erected at least 15.25 m from any source of water.
5. (30) Drinking water shall be adequately supplied for use in the premises and shall be stored in containers which meet the required standards.
5. (31) Hand-washing facilities shall be of well-finished facilities with stainless metal or suitable construction material with a drinking water supply.
5. (32) Adequate parking spaces shall be provided to the customers of the institution.
6. Every person licensed under this by-law shall maintain the premises in accordance with the following conditions.
 6. (1) Sufficient measures must be taken to prevent wastewater and sewage from flowing to any public waterway, sewer, or open ground.

6. (2) Containers used for waste collection shall be made of metal or other non-leakage material and shall be easily cleaned. Also, the pots should be well sealed.
6. (3) The equipment and tools used for waste collection shall be distinguishable and shall be named.
6. (4) Calibrated temperature gauge or recording equipment shall be provided for all facilities for freezing and freezing whenever necessary.
6. (5) The equipment, tools and all other physical facilities of the Institute shall be maintained in good condition.
6. (6) A suitable and adequate generator shall be kept in such a manner as to be suitable for use in the event of a power outage.
6. (7) In the opinion of the Public Health Inspector, the Public Health Inspector shall take additional measures as may be prescribed by the Public Health Inspector (PHI) in the event that the security measures are not adequate.
6. (8) No employee of a Licensed Institution shall wipe any equipment with a gun or other cloth which is not clean or otherwise suitable for wiping.
6. (9) The equipment and equipment used shall be adequately equipped for cleaning and disinfection. These tools and equipment should be made of stainless materials and should be easily washable. They should also be equipped with appropriate equipment to provide adequate quantities of hot and cold water in a timely manner.
6. (10) Adequate and appropriate lighting shall be provided in all areas of the Licensed Institution. In any case, the bulbs and fixtures on the top should be in safety condition and should be covered in such a way as to prevent breakage if they break.
6. (11) Any unhealthy pesticides or other substances should be labeled with the appropriate label indicating their toxicity and how they should be used. Pesticides should be stored in locked rooms or cabinets outside of food preparation and food preparation areas, and their use should only be done by trained personnel and with particular care to avoid mixing with pesticides.
6. (12) The cleaning and disinfection process must be thorough and subject to the following:
 - i. A permanent cleaning and disinfection program for the organization should be prepared so that all aspects of the organization are appropriately cleaned and special areas, equipment and materials are given special attention.
 - ii. An employee must be employed to ensure that the cleaning and disinfection process is carried out properly.
 - iii. When consuming food on the premises, no person shall clean the floor of the premises in any way other than dust-free ground cleaning.
 - iv. When dealing with a particular food, all the equipment used in the presentation or consumption of the food should be scraped off, and the equipment should be adequately rinsed with hot soap or other washing water and then rinsed with potable soap or other washing. The Licensee has also acted in this regard Be afraid.
 - v. Adequate precautionary measures should be taken to prevent contamination of food by water, rinse, disinfectants and their liquids, by cleaning equipment or tools, and by disinfecting them. If there are any residues on the surface of this cleanser, rinse it several times with drinking water.
 - vi. CIP for cleaning. When the method is used, the process must ensure that the processing lines are cleaned and disinfected.
 - vii. The walls, floors, and drainage areas of the food handling area must be thoroughly disinfected and cleaned.
6. (13) Wrapping and packaging materials shall not be sources of food contamination and shall be stored in such a manner that there is no danger of combustion.

6. (14) No person shall make or make arrangements for domestic animals such as dogs, cats or birds in any licensed institution.
6. (15) Waste management of the organization shall be as follows:
 - i. Licensed organizations must have an efficient and appropriate waste disposal system that is always in good working order and repaired.
 - ii. The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - iii. It is the responsibility of the Licensee to take action to minimize the daily waste generation of Licensed Institutions.
 - iv. When a Public Hall is planned to be located in an area not covered by the Solid Waste Management Service of the Pradeshiya Sabha, a waste disposal system should be implemented by the chairman of the Pradeshiya Sabha on the recommendation of the Public Health Inspector or Health Medical Officer.
6. (16) The disposal of waste shall be legal in accordance with the conditions laid down by the Medical Officer of Health, Public Health Inspector with the approval of the Pradeshiya Sabha when the licensee of the premises has a disposal facility.
7. Every desk for customers to use on the premises must be made of polished material or a stainless and stainless cover.
8. Important health messages relevant to employees and customers should be displayed on the premises.
9. All permits issued under this by-law shall expire on or after 31st December of the year in which the license was issued, unless previously revoked.
10. Every Sinhala and Tamil and English copy of this by-law shall be displayed in public premises in a public place in every premises subject to a license under this by-law.
11. In the event of any violation of the provisions of any of the provisions of this by-law in any premises where a permit has been issued in accordance with this by-law, all necessary steps shall be taken to ensure that the place is in compliance with such regulations. The Chairperson shall give notice to the Licensee to do so Bids must be handed over to tralābhiyā. The maximum period of notice from such advertisement shall not exceed 30 days.
12. Any Licensee who has received an Advertisement as set out in Section 11 hereof shall act in such manner as is prescribed in that notice before the specified date. The Chairman shall have the right to extend the time specified in such notice upon a reasonable written request by the licensee. However, the extension period should not exceed 14 days.
13. In the event that any licensee who receives a notice of the type referred to in paragraph 11 hereof fails to act in accordance with the notice prescribed by that notice or before the extension date, the license issued to the place shall be revoked by the Chairman. Must be.
14. Any food, other substance or liquid from any premises authorized by the Chairman, the Medical Officer of Health or the Public Health Inspector or the Chairperson, shall be legally permitted to be paid by the Licensee except as may be lawful. Refuse or impede the purchase or purchase Do not overload.
15. The Licensee shall provide every reasonable support to the Chairman or the Medical Officer of Health or the Public Health Inspector or any other officer authorized by the Chairman at any reasonable time to inspect the provisions of this by-law.
16. It is an offense to maintain premises without a permit under this by-law or to violate any of the provisions of the by-law and after being convicted by a court of competent jurisdiction for such offense, 122 of the Pradeshiya Sabha Act No. 15 of 1987 (2) Subject to a fine referred to in subsection (2). When a person who has been convicted of an offense continues to violate or violate the offense by a court of competent jurisdiction over such offense, a written notice shall be delivered by the Chairman, the Medical Officer of

Health or the Public Health Inspector with a view to such violation. Each subsequent day the violation continues For this purpose an additional fine of the said clause shall also be liable.

17. Unless otherwise required in this by-law,

"Chairman" shall mean the person holding the office of the Chairperson of the Pradeshiya Sabha or performing the functions of that office.

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha

"Medical Officer of Health" shall mean the person holding the office of any Medical Officer of Health in the area of the Divisional Council area.

"Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.

"Authorized officer" shall mean any officer duly authorized by the President in writing,

"Licensee" shall mean an entity / person or persons licensed under this by-law;

"Pesticides" shall mean pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Cleaning" shall mean the removal of soil, accumulated food particles, dirt, grease or any other harmful external substance,

"Biological" shall mean any biological, chemical, alien substance or other substance which may be harmful to the safety or appropriateness of food;

"Combustion" shall mean the entry of a combustible substance into a food or food environment,

Whether chemical or physical means reduce the amount of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food by "disinfectants";

"Food hygiene" shall mean all conditions, measures and practices necessary to ensure the safety and appropriateness of food at all times in the food chain;

Any biological, chemical or physiological agents or conditions that may be related to food, including the possibility of adverse health effects from "hazards";

"Food user" shall mean any person who works directly on food, food utensils and tools or on the surface where food is touched.

"Food Safety" shall mean the responsibility of the consumer to avoid any harm when preparing, processing, manufacturing, storing, distributing, transporting or consuming food.

"Drinking water" shall mean water that is not sufficiently contaminated with bacteria or chemicals to meet national standards, which are not sufficient to cause disease or adverse physical effects;

"Food" shall mean any item imported, manufactured, sold, sold or represented for the use of human food or beverages, and any goods or materials commonly taken or used in the composition or preparation of food. ,

"Reception Halls" shall mean any wedding, entertainment, celebratory event, occasional venue for any education, discussion or lecture, with meals or meals provided on an order;

"Reasonable Time" shall mean the time for the licensed work or any related work.

18. In the event of any inconsistency between the Sinhala, Tamil and English texts of this By-Law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile: - Land phone: -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number : -
12. Business Manager or Agent,
 - I. Name and Personal Address:
 - II. National Identity Card Number: -
 - III. Phone number: Mobile: - Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: - Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: - Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: - Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: - Secretary

Medical Officer of Health

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health

Second Schedule

Photograph

Medical Certificate issued to the worker in a Reception Hall Premises

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health
(Official Seal)

12-654/4

NIVITHIGALA PRADESHIYA SABHA

By- Law regarding Vegetables and Fruits Selling Places

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the by-law regarding vegetables and fruits selling places within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under section 122 read with section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its general meeting held on 18.06.2019, by virtue of powers vested under section 123(1) of Pradeshiya Sabha Act read with section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within authoritative area of Nivithigala Pradeshiya Sabha from the date this notification is published in the Gazette.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-Law on the sale of vegetables and fruits within the Authoritative Area of Nivithigala Pradeshiya Sabha

1. This by-law is enacted to regulate, administrate and control the conducting or maintenance of vegetables or fruits stalls in the area of the Nivithigala Pradeshiya Sabha.
2. This by-law is called the by-law on the sale of vegetables and fruits within the authoritative area of Nivithigala Pradeshiya Sabha (Hearing after referred as the area)
- 3.1 No person shall maintain vegetable and fruit stalls or stalls for sale or vegetable stores unless he has a valid license issued by the Chairman of the premises of any premises within the area of authority of the Nivithigala Pradeshiya Sabha.
- 3.2 A person who wishes to obtain a License in accordance with 3.1 above should apply through an application prepared in accordance with the First Schedule to this by law.
- 3.3 The fee for a license under this section shall be the fee determined by the Sabha subject to the provisions of the Basic Law.
4. The following conditions must be fulfilled in every premises applying for a license under Section 3 of this By-Law.
 - 4.1 If the zoning has been done, construction work should have been carried out in accordance with the zoning process.
 - 4.2 It should be constructed in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance as applicable and they should be well constructed and maintained in good condition with a permanent construction materials.
 - 4.3 All construction materials should not contain organisms and should not release toxic gases from the construction materials after construction.
 - 4.4 The premises shall be designed to prevent pests and pollutants from entering and staying.
 - 4.5 The place should be designed to facilitate proper monitoring of the hygienic condition of vegetables and fruits and to be easily and properly cleaned.
 - 4.6 There should be a floor made of waterproof, non-washable and non-slippery material without fine opening, and it should be easy to clean and disinfect.
 - 4.7 The walls should be made of non-absorbable and washable material with waterproofing and the walls should be free of holes and insects. The walls should be smooth to the height of the operation and those walls should be easy to clean and disinfect.
 - 4.8 Surfaces that are in direct contact with vegetables and fruits should be in good condition, durable and easy to clean, maintaining and disinfecting. These surfaces should be made of a smooth and non-absorbent material, and the surface should be neutral to vegetable, fruit, washing chemicals ,and disinfectants.
 - 4.9 A ceiling or well-finished concrete roof should be placed above where vegetables and fruits are placed and It should be designed and built to minimize condensation and prevent mold and cracking, and should be easy to clean to prevent solvent contamination and completed.
 - 4.10 The windows should be easily cleaned and constructed to minimize the accumulation of dirt and they should also be equipped with removable and cleanable net through which the insects and flies unable to enter.
 - 4.11 Adequate sanitary and drinking water facilities for the use of employees should have been provided as needed.
 - 4.12 Platform with suitable material should be installed on the feet at least 45 cm from the ground so that it can be cleaned under the platform used for display or storage of vegetables and fruits and the minimum distance from the frame to the base of the platform should be 23 cm. The platform should be covered so that no insects of any kind or rats can't stay under and should have placed at least 23cm away.

- 4.13 The premises should be provided with adequate and appropriate artificial or natural light or ventilation and the electrical installations on top of vegetables and fruits stored and stored must be in safe condition. If they are broken, the bulbs should be covered to prevent vegetables and fruits from joining.
- 4.14 If a fruit stall or storage area is used for fruit ripening, a separate cottage should be prepared.
5. Every person licensed under this by-law shall maintain the premises in accordance with the following conditions.
- 5.1 Wastewater slope, where vegetables and fruit are sold or disposed of at a display site, must be sucked up or taken to a central treatment unit with an approved system complete with compact drains or other suitable construction materials. Also use a water trap or an approved suitable method to prevent combustion between the premises and the final disposal.
- 5.2 Adequate measures must be taken to prevent wastewater from flowing to a public sewer to a open site, except to the method of sub-section 5 above.
- 5.3 The pit should not be exposed to the exhaust or absorbent air and shall not contaminate with ground water.
- 5.4 Waterproofing boards should be built to the proper standards.
- 5.5 constructed the suction above 5.1 mentioned must be constructed at least 25 meters away from any source of water in the suction
- 5.6 Everyone who works in the premises.
- I. The personal belongings and clothing should be placed in a designated location.
 - II. Vegetables and fruits should not be left in any place which is at risk of contamination.
 - III. Ensure that all vegetables and fruits stored in the premises are suitable for human consumption
- 5.7 All equipment and tools used on the premises must be made of non-absorbent and non-sterile materials, such as any toxin must be made of a substance that does not emit any odor or odor and is resistant to continuous cleaning and disinfection.
- 5.8 The containers for collection of non-consumable materials and waste should be made of metal or other non-leaky material to prevent leakage. They should be easily cleaned and should be well closed.
- 5.9 Waste collection equipment and tools shall be distinguishable and shall not be used for any other purpose.
- 5.10 Calibrated temperature gauges or recording equipment shall be provided for all facilities for cooling and freezing at all times.
- 5.11 The equipment and all other physical facilities of the institution should be maintained in good condition.
- 5.12 Adequately fitting generator should be maintained in a suitable manner for power failure.
- 5.13 Edible fruits and vegetables must be washed with water before being sold at the point of need.
- 5.14 The Licensee shall store vegetables and fruits in the premises, taking into consideration the provisions of any written law applicable at that time, as well as the advice given by the competent authority, as well as the manufacturer's advice, from time to time.
- 5.15 Do not use light bulbs or any other substitute to make the vegetables and fruits look natural in a way that will mislead the consumer on the premises.
- 5.16 Adequate precautionary measures should be taken to prevent contamination of vegetables and fruits with water, washing agents, disinfectants and liquids on display and for disinfection of stalls and storages for sale. Any residues of these cleansers should be washed several times with potable water if the surface is in contact with food.
- 5.17 Wrapping and packaging of vegetables and fruits shall not be contaminated with food and shall be stored in such a manner that the wrapping materials shall not be compacted.

- 5.18 Exhibit places and stores for sale of vegetables and fruits should be free from pests and an efficient and continuous program for pest control should be maintained.
- 5.19 The Licensee shall ensure that those who work in a Licensed Institute are provided with proper training on hygiene activities relating to their work.
- 5.20 Licensees must have knowledge of food hygiene policies and inspections to determine potential risks and take action to address any deficiencies.
- 5.21 Damaged vegetables and fruits should not be stored together with good quality vegetables and fruits. In any case, it is the duty of the licensee to immediately export the vegetables and fruits to the proper disposal containers once the vegetables and fruits have been identified.
- 5.22 The Licensee shall make sure that it is not prepared in any manner to prepare for the consumption of fruits and vegetables which in any case cause spoilage.
6. Chairperson An officer authorized by the President, a Medical Officer of Health or a Public Health Inspector to sell vegetables or fruits for sale, or to store or sell any vegetables or fruits, shall be legally entitled to receive its market value No Licensee shall refuse or interfere with such Purchase.
7. Everyone employed in the Licensed Place is in good health to work before being employed and the certificate should be in accordance with the format in the second schedule of this bye law. The medical examination shall be conducted from time to time as determined by the Medical Officers of the relevant area and from time to time as specified clinically or by Epidemiology.
8. If a person of the place of selling vegetable and fruits is infected with any skin decease, contagious disease or a disease infected by touch, the Licensee shall be informed and the vegetable is sold, directly or indirectly, no work should be allowed. The infected person should be informed by the infected person if he / she is infected.
9. All persons working in the premises shall not eat foods vegetables, and do the activities such as chewing gum, chewing beetle and coughing or touching the nose or engaging in such activities.
10. Waste management on the premises should be as follows:
 - I. Licensed organizations should have an efficient and appropriate waste disposal system and it should be maintained in good working conditions and repair conditions.
 - II. The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - III. It is the responsibility of the Licensee to minimize the daily waste generation at the Licensing Institutions.
11. When there are waste disposal facilities in licensed place garbage shall be disposed of in accordance with the conditions stipulated by the Health Officers or the Public Health Inspector with the approval of the Chairman of the Pradeshiya Sabha.
12. The Licensee shall provide every reasonable support to the Chairman or the Medical Officer of Health or the Public Health Inspector or any other officer authorized by the Chairman at any reasonable time to inspect the provisions of this by-law.
13. Any vegetable or fruit which is deemed unfit for human consumption by the Chairman or any authorized officer during the inspection of the premises may be destroyed without compensation if such officer forbids it.
14. The Sinhala, Tamil and English copy of this by-law shall be exhibited in a publicly visible place within the premises subject to a license under this by-law.
15. All licenses issued under this by-law shall be expiring on the 31st of December of the issued year unless they have been previously revoked.
16. The Chairman shall notify by a notice ordering the Licensee of such premises in any premises where a permit has been issued, in violation of the provisions of this clause, or in compliance with the requirements of such place to do all that is necessary to bring the place up to the standards before the specified date. The time period provided by such advertisement shall be limited to a maximum of 30 days.

17. Any license holder who receives a notice as set out in section 16 of this article shall act in such manner as may be prescribed by such license prior to the date specified by such notice. The Chairman shall have the authority to extend the time specified in such notice upon a reasonable written request by the client. The period must not exceed fourteen days.
18. Any Licensee who has received a Notice as set forth in Section 16 hereof shall have canceled the License issued to the relevant premises in the event of failure to act in the manner specified in that Notice or before the Extended Date shall be legalized.
19. Sub-section 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987 provides that it is an offense to maintain premises without a permit under this by-law or to violate any of the provisions of the by-law. Be subject to a fine. A person who has been convicted of an offense by a court of competent jurisdiction over that offense has been liable to a fine and Every day that the violation is continued after a written notice is given by the Chairman, the Medical Officer of Health or the Public Health Inspector, with the attention of the violator continuing for the same, an additional fine of the said clause shall be liable.
20. In this by-law, unless it is otherwise necessary to another meaning for the words

The word "Chairman" to the person holding the office of Chairman of this Pradeshiya Sabha or the person, who performs the duties of the post,

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha,

"Health Medical Officer" shall mean the person holding the office in any of the Divisional Health Medical Officers' Division in that period,

"Public Health Inspector" shall mean any person holding such office in any of the Public Health Inspectors area within the area of authority of the Public Health Inspector in that period.

"Authorized Officer" shall mean any officer duly authorized by the Chairman in writing in that period,

"Licensee" shall mean an entity or person or persons, who have obtained a license under this by-law,

"Pesticides" shall mean pesticides approved by the Registrar of Pesticides of Sri Lanka.

Cleaning" shall mean the removal of soil, dirty food, greece, garbage or other harmful external substances deposited ,

"Contaminants" shall mean certain substances or other substances which may affect the safety or suitability of vegetables or fruits.

"Combustion" shall mean combining or causing combustion of vegetables and fruits.

"Disinfectant" shall mean reducing the amount of microorganisms in the environment through chemical agents or physical means to the level that does not reduce the safety or appropriateness of food,

"Drinking Water" shall mean water sufficiently free of contaminants to cause disease or adverse physical effects and Contains bacterial and chemical conditions that meet national standards,

"Reasonable Time" shall mean to a time when the license work or related work is done.
21. If there is any compatibility between Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone number: Mobile: - Land phone : -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
 - I. Name and Personal Address:
 - II. National Identity Card Number: -
 - III. Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health

Second Schedule

Photograph

Medical Certificate issued to the worker in a vegetable and fruit selling place.

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number And ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health
(Official Seal)

NIVITHIGALA PRADESHIYA SABHA

By- Law regarding Stone Quarries

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the by-law regarding maintenance of Stone Quarries and Stone Pits within Authoritative Area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under section 122 read with section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its general meeting held on 18.06.2019, by virtue of powers vested under section 123(1) of Pradeshiya Sabha Act read with section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within authoritative area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-law on the maintenance of Stone Quarries and Stone Pits in the Area of Nivithigala Pradeshiya Sabha.

1. This by-law is enacted to regulate, administrate and control the Stone Quarries and Stone Mines in the Authoritative Area of Nivithigala Pradeshiya Sabha.
2. This by-law is called the by-law for the maintenance of Stone Quarries and Stone Mines in the Authoritative Area of Nivithigala Pradeshiya Sabha.
- 3.(1) No person shall maintain a quarry, mill or mine unless there is a valid license issued by the Chairman of any premises within the Authoritative Area (hereinafter referred to as area) of the Nivithigala Pradeshiya Sabha.
- 3.(2) If a person is required to obtain a license under this by-law, an application must be submitted to the Chairman in a format which is in accordance with the first schedule hereof.
- 3.(3) The fee for a license under this section shall be a fee determined by the Sabha in accordance with the provisions of the Basic Law.
4. Any person who intends to obtain a license to operate a non-machined stone mill, a mill and a crusher in the area of the Pradeshiya Sabha shall submit to the Chairman of the Pradeshiya Sabha a completed application in terms of the first schedule of the by-law.
- 5.(1) Any person who wishes to commence and maintain a licensee under section 3 after the exercise of this by-law shall be entitled to apply for a permit under the above article only if the prior approval of the by-law has been obtained from the Chairman for such eligibility.
- 5.(2) A request for prior approval under this section shall be approved by the Chairman on the recommendation of the Public Health Inspector's Report and the Medical Officer of Health.
- 5.(3) The inspection fee to be approved by this section may be determined by the Sabha from time to time by a passing of the resolution.
6. Every person applying for a license under section 3 of the by-law must meet the following conditions
 - 6.(1) When the business or industry is a start-up business, it has to be approved under Section 5 of the by-law.
 - 6.(2) There should be a certificate issued by the NBRO that there is no risk of landslides in or around the premises due to the use of a licensed premises to operate a quarry mill and a crushing mill with a quarry.

- 6.(3) The distance from the premises to the residence, public building, or any other public place, street, lane or road, at least 100 meters, or more than 100 meters specified in any other written law.
- 6.(4) A distance of at least 50 meters from a water source to the permit's premises or more than 50 meters as required by any other written law.
- 6.(5) All workers employed in quarry or mine shall have adequate sanitary facilities as per the standards approved by the local Medical Officer.
7. Every licensed premise shall be maintained in accordance with the following conditions.
 - 7.(1) In case of collecting water due to quarrying, it shall be the duty of the Licensee to convert these places into non-mosquito breeding grounds.
 - 7.(2) If the tire or any other material that may accumulate in the water is used for quarrying purposes, it shall be the responsibility of the licensee to store the material in such a manner that it is not exposed to rain water at the end of the day.
 - 7.(3) A suitable place to provide adequate food and beverages for all employees working in the quarry, stone crushing mill should be constructed with the approval of the Medical Officer of Health and the timely construction should be maintained and continued as required.
 - 7.(4) It shall be the duty of the Licensee to maintain a first aid unit with adequate medication and to employ first aid trained workers at the quarry and quarry mill under the guidance of the Medical Officer of Health for use in an emergency.
 - 7.(5) Lockers, gloves, protective shoes and masks or appropriate protective clothing shall be provided to all persons employed in the quarry, quarrying mill, and licensees to ensure that employees wear those protective clothing at all times of business or industry.
 - 7.(6) Safety equipment shall be installed to cover the hazardous mechanical components of the machinery used and proper technical evaluation and record keeping.
 - 7.(7) Every employee employed on the premises must be insured under group insurance.
 - 7.(8) The chemicals used in the premises must be stored under appropriate safe conditions.
 - 7.(9) Electric and other gases or solid by-products generated by industry activities must be in accordance with the standards and shall be governed by sound and vibration specifications.
 - 7.(10) Adequate safety measures shall be provided to prevent contamination and unnecessary use of water used by the employees of the licensed premises.
 - 7.(11) Waste generated at the licensed premises shall be disposed of in accordance with the Waste Management Program and the Waste Management Standards of the Pradeshiya Sabha
8. Disaster Management Center, Geological Survey & Mines Bureau, National Building Research Organization, Central Environmental Authority, Pradeshiya Sabha, Provincial Councils, Health Officers of the relevant area, Divisional Secretary of the relevant area have authority to order to be permanently closed the place or for a period of time and the licensee have to be at any time of the license in accordance with the regulations in the occasions as follows.
 8. (1) When it is confirmed that a licensed quarry has been excavated to groundwater level.
 8. (2) When the Medical Officer of Health reports that the activities of the quarry or grinding mill affect the public health of the area where the quarry or mill is located.
 8. (3) Where it is established by a reputable body that the groundwater level in the area where it is located will be affected by the activities of the quarry.
 8. (4) Where a landslide hazard has been reported in or around a licensed premises.
 8. (5) When the business industry in which the business is in operation has reached its limit within the calendar year in which the business is in operation, the limitations under Section 6 (3) and 6 (4) of this by-law are approximated.

8. (6) In the event that the court has decreed that the industry is subject to public distress.
9. The operation of a licensed premises under this by-law shall be lawful for the Chairman to cancel the relevant license irrespective of the validity period of the license issued in the event that it is determined to be suspended under a matter or matter referred to in Article 8 of this by-law.
10. In the event of the use of any premises for the purposes of this by-law, the Pradeshiya Sabha or the relevant public authority shall decide to prevent the damage or obstruction of the road of the Pradeshiya Sabha or any other public property due to the transport activities a prescribed amount is specified to be paid by the licensee. The amount shall be paid by the licensee to the Pradeshiya Sabha fund or to the relevant public authority.
11. When the premises are not covered by a solid waste management service implemented by the Pradeshiya Sabha, the premises should be constructed in accordance with the recommendations of the Public Health Inspector or the Medical Officer of Health.
12. Where a stone quarry or crusher where a license has been issued under the by-laws of this section is in violation of the provisions of section 7 of this by-law, the premises shall comply with all such requirements before the specified date a notice to the Licensee shall be delivered by the Chairman that should make the maximum time that should not exceed 30 days.
13. Any Licensee who has received a Notice of such Section 12 of this by-law shall act in accordance with the notice as set forth in the Notice. The Chairman shall be entitled to extend the specified period of notice upon a reasonable written request by the Licensee. However, the extension period should not exceed 14 days.
14. In the event that any licensee who has received a notice in terms of section 12 of this by-law has failed to act in the manner specified in that notice or before the date on which such notice is extended, the license issued to the relevant place shall be revoked by the Chairman. It must be legal.
15. It is an offense to maintain premises without a license to be obtained under this by-law or to violate any of the provisions of the by-law and after being convicted by a court of competent jurisdiction for such offense, 122 of the Pradeshiya Sabha Act No.15 of 1987 (2) Subject to a fine referred to in subsection (2). When a violation or violation is continued by a person who has been found guilty of an offense by a court of competent jurisdiction over the offense, a written notice shall be given by the Chairman or the Medical Officer of Health, Public Health Inspector. Each subsequent violation continues An additional fine of the above section shall also be imposed for a fine.
16. Unless otherwise required in the by-laws;
"Chairman" means the person holding the office of Chairman of this Pradeshiya Sabha or performing the functions of that office.
"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha
" Medical Officer of Health " shall mean the person holding the office of any Medical Officer of Health in the area of the Pradeshiya Sabha area.
"Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.
"Authorized officer" shall mean any officer authorized by the Chairman at the moment,
"Licensee" shall mean an organization or person or persons who have obtained a license under this by-law;
"Drinking water" shall mean water that does not contain enough pollutants and causes bacterial and chemical conditions that meet the national standards for causing disease or physical harm;
"Reasonable Time" shall mean a time when the licensee is engaged in the work or related work.
17. In the event of any inconsistency between the Sinhala, Tamil and English versions of this by-law, the Sinhala text shall prevail.

First Schedule

Application for Commercial License for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile: - Land phone : -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number Reference Number: -
12. Business Manager or Agent,
 - I. Name and Personal Address:
 - II. National Identity Card Number: -
 - III. Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the back page.

Date -:

.....
Secretary

Secretary,

Recommended/not recommended issuing license

Date -:

.....
Revenue Inspector

Medical Officer of Health

Please kindly request that your observations and recommendations for the issuance of a commercial license be issued promptly.

Date: -

Secretary

Medical Officer of Health

Comply with by-laws and other rules and regulations I will report for issuing license

Date: -

Public Health Inspector

Secretary,

I recommend issuing a license for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

Medical Officer of Health

12-654/6

NIVITHIGALA PRADESHIYA SABHA

By- Law Regarding Tea, Coffee and Short Eat Shops

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the by-law regarding maintenance of Tea, Coffee and Short Eat Shops within Authoritative Area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under section 122 read with Section 126 of Pradeshiya Sabha Act, No. 15 of 1987 and passed at its general meeting held on 18.06.2019, by virtue of powers vested under section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act, No. 12 of 1989, and it will be effective within authoritative area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-law on the Maintenance of Tea, Coffee and Short Eat Shops in Nivithigala Pradeshiya Sabha Authoritative Area

1. This By-Law is enacted to regulate, administer and standardize the operation of the Tea Coffee Shops, Short-selling Points within the Nivithigala Pradeshiya Sabha Authoritative Area.
2. This by-law is known as the By-Law of the tea, coffee and short eat shops in Nivithigala Pradeshiya Sabha Authoritative Area.
- 3.(1) If only any person has a valid license issued by the Chairman of any premises within the area of the Nivithigala Pradeshiya Sabha (hereinafter referred to as the area shall run a coffee shop or a snack bar).
- 3.(2) Any person who wishes to obtain a license under this by-law shall submit to the Chairman an application prepared in summary form in the first schedule hereof.

- 3.(3) The fees payable for a license under this section shall be the fees charged by the Council in accordance with the provisions of the Basic Law.
- 4.(1) Any person who intends to commence and maintain a premises subject to a permit under section 3 of this paragraph shall, after obtaining prior approval under this by-law, obtain from the Chairman the eligibility for such license. There is no entitlement to apply for.
- 4.(2) A request for prior approval under this section shall be approved by the Chairman on the recommendation of the Public Health Inspector's Report and the Medical Officer of Health.
- 4.(3) The inspection fee to be paid under the approval of this section may be determined by the Council from time to time by a resolution of the resolution.
5. Every person applying for a license under section 3 of this by-law must meet the following conditions:
- 5.(1) Approval under section 4 of the by-law when the business is a start-up business.
- 5.(2) If the zoning has been done or the industrial zones have been designated, the construction of a building for the sale of tea, coffee shops, snacks and a place of sale shall be in accordance with that zoning.
- 5.(3) When it is intended to store, sell, distribute, prepare, cook, and store food within the premises of the premises;
- i. The construction of the premises should be constructed in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance and the construction should be in good condition and maintained in good condition.
 - ii. All construction materials must not depend on living organisms to ensure that they do not transmit toxic substances and that no toxic gases are discharged after construction is complete.
 - iii. Design, or other efficient means of separation, division, positioning, or other means to prevent cross-combustion must be provided.
 - iv. It should be designed to provide adequate space to enable all operations to be performed smoothly without interruption.
 - v. From the raw materials to the premises to the production of finished food, the process of hygiene should be designed to facilitate the process. There should be no deviation from the operation of the fabrication process.
 - vi. It should be designed to prevent the entry and retention of pests and pollutants.
 - vii. It should be designed to facilitate proper monitoring of food hygiene in order to be easily and properly cleaned.
- 5.(4) If there is a food processing area in the premises
- i. The floor should be made of waterproof, non-absorbent, washable and non-slippery material without fine opening and should be easy to clean and disinfect. There should be sufficient slope to allow the liquid to flow from the exit points of the ground.
 - ii. The walls should be made of waterproof, non-absorbent, and washable material, and the walls should be free of holes and insects. The walls should be smooth to the height of the operation and should not have delicate openings. They should also be easy to clean and disinfect.
 - iii. Surfaces that come in direct contact with food should be of good quality, durable and easy to clean, maintain and disinfect. These surfaces should be made of materials that are smooth and non-absorbent and that the surfaces should be free of food, washing agents and disinfectants.
 - iv. The ceiling must be designed, constructed and finished to prevent dirt accumulation, to minimize condensation, and to prevent mold cracking and cracking.
 - v. Doors should have a smooth and non-absorbent surface and should automatically close and close when appropriate.
 - vi. The windows should be easily cleaned and constructed to minimize dirt accumulation. They should also have nets that can be removed, cleaned, but not accessed by insects.

- vii. All structures and fixtures above the food-handling areas must be installed to prevent direct and indirect combustion of food and ingredients by condensation and leakage. All fixtures should be clean and free of dirt, mold buildup and spills.
 - viii. Fire extinguishers shall be provided on site.
 - ix. Temporary stops and toiletries for employees should be separate from the serving area and not directly open to the food handling area.
- 5.(5) Adequate sanitation facilities shall be provided for the staff and the customers utilizing the premises, thereby maintaining sanitation facilities for the customers.
- 5.(6) When the premises are located in an area not covered by a solid waste management service implemented by the Pradeshiya Sabha, the premises should be prepared in accordance with the Public Health Inspector or Health Medical Officer's garbage disposal system
- 5.(7) The premises shall be erected with accessibility facilities for the disabled and special needs.
6. Every person licensed under this by-law shall maintain the premises in accordance with the following conditions.
- 6.(1) Pumps, suction pits or central treatment units shall be directed to an approved system of sealed drainage or other suitable construction material so that the wastewater does not rely on the slope with the required slope. Also, a water trap or an approved suitable method should be used to prevent combustion between the premises and the final disposal.
- 6.(2) The drains must be adequately constructed so that the waste does not flow back into the ground, and the combustion drains should be cleaned and rinsed with disinfectant at least twice a day.
- 6.(3) Sufficient measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer, or open ground.
- 6.(4) The sewage pit, where sewage and sewage flow, must not be exposed to air and shall not contaminate groundwater from the suction pit.
- 6.(5) The sewage pit where sewage and sewage is flowing must be constructed to the approved standard.
- 6.(6) The suction pit shall be located at least 15.25 m from any source of water.
- 6.(7) All equipment and equipment used in the premises where the food is prepared shall comply with the following requirements.
- i. All equipment and tools used in the food processing area must be made of materials that do not transmit any toxins, odors or taste. Such equipment and tools must be made of non-absorbent and stainless materials and are of continuous cleaning and disinfectant. There should be smooth surfaces free of gaps and fine openings. Wood and other materials that are not easily cleaned and disinfected should be avoided only when they are not clearly a source of combustion.
 - ii. To prevent hygiene hazards, all equipment and tools must be designed and made to be easily cleaned and disinfected and inspected when appropriate. Where necessary, the equipment should be fitted for cleaning and maintenance.
 - iii. Containers used to collect non-consumable materials and waste should be made of metal or other non-leaky materials and should be easily cleaned. Also, the pots should be well sealed.
 - iv. The equipment and tools used to collect waste must be distinguishable and shall not be used for any other purpose.
 - v. All facilities for freezing and freezing should be provided whenever appropriate and calibrated temperature measuring equipment shall be provided. Also, records of temperature recordings should be maintained to ensure that they are maintained at the appropriate temperature.
 - vi. The equipment, tools and all other physical facilities of the institution shall be maintained and maintained in good condition.

- vii. If there is a distribution of food under the premises, a means of distribution must be maintained in a timely manner with adequate facilities to ensure that the transportation is free of combustion and does not harm the taste.
- viii. In the event of the sale or storage of frozen foods, a suitable and adequate generator for use in the event of a power outage must be maintained.
- 6.(8) Drinking water shall be adequately supplied for use in the premises and shall be stored in containers that meet the required standards.
- 6.(9) The Licensee shall at all times ensure that any food sold on the premises is a hazard free food.
- 6.(10) Steps shall be taken to dispose of the pests and to keep the premises free of pests, by properly directed air ducts or other appropriate controls, or by covering all windows and entry gates with suitable nets or flies.
- 6.(11) Foods sold in a particular premises shall be displayed securely as described in the Sample Prices and Name relating to food items to enable the consumer to choose. The customer should have the facility to order only the food items that he has decided to purchase.
- 6.(12) An open source of food shall be kept for sale at all times, in such a manner that it shall not be in the possession of any person.
- 6.(13) The Medical Officer of Health or the Public Health Inspector shall take additional measures prescribed for preventing food contamination in the absence of adequate safeguard measures against the manner in which the food is stored and the sterilization provided.
- 6.(14) Every person dealing with or preparing food in a coffee shop, a short-selling place, must be careful to prevent food contamination and to avoid unnecessary touching and other equipment used on the premises.
- 6.(15) Any person engaged in preparing, handling or serving food on the premises;
 - i. The food should not be split with its fingers, except where it is practically impossible to serve food in any other way.
 - ii. When it is necessary to touch your fingers on special occasions, food-friendly gloves should be used.
 - iii. He should not wipe his hand in his clothes or anything else, except using a clean towel.
 - iv. Do not carry or store any food in a dish, dish or container that conflicts with the food in a dish, dish, or container.
 - v. A bowl, dish or dish that is used to divide or divide a particular food should not be stacked on top of one another without being thoroughly cleaned and the surfaces should be placed wherever possible.
 - vi. The containers should not be touched in such a way that the microorganisms can be transferred from the food processor to the consumer with a spoon, knife, fork or jar.
 - vii. Do not carry a spoon, knife or fork in the pocket of any garment or apron.
- 6.(16) Every other supplier of food in a licensed institution shall use a suitable fork or other suitable instrument for the provision of food, if not practicable.
- 6.(17) No employee of a licensed institution shall wipe any equipment with a gun or other cloth that is not clean or otherwise unfit to be wiped.
- 6.(18) Cloths used for table wipes shall be of clean quality and shall be changed at least three times a day.
- 6.(19) The Licensee shall operate the premises in accordance with the following requirements:
 - (A) All cooked foods which are easily decomposed shall be maintained at temperatures not exceeding 4 degrees Celsius, or at temperatures not less than 60 degrees Celsius except in the following cases:

Otherwise,

- i. Where the entire collection is not exposed or displayed for sale for more than two hours,
or a
- ii. During the time between preparation and serving.

(B) All cooked meat or fish, including pasta, pastries, sauces, pizzas and the like, shall be kept in a sealed container.

(C) Milk should not be kept in a feeder premises unless it is stored in a refrigerator at temperatures not exceeding 7 degrees Celsius.

- 6.(20) Adequate and suitable places and water printed toilets for the employees to change clothes. Toilets must comply with hygiene standards to ensure hygiene. These locations should be well lit and ventilated. These locations should not be directly open to food handling areas. Washing hands with hot or cold water should be equipped with cleaners and a hand drying system should be provided next to the toilet.
- 6.(21) Facilities for washing and drying with disinfectant should be adequately and adequately provided for in the processing areas.
- 6.(22) The equipment and equipment used shall be adequately equipped for cleaning and disinfection. These facilities should be made of stainless materials and should be easily washable. Further, suitable equipment and equipment should be equipped with adequate quantities of hot and cold water, if necessary.
- 6.(23) Adequate and appropriate lighting shall be provided at all locations of the Licensed Institution. In any case, bulbs and fixtures hanging over food items should be of safety quality and should be covered with bulbs to prevent food from breaking.
- 6.(24) The safety of gases or fumes generated by any activity in any part of the Licensed Institution shall be taken with precautionary measures so as not to cause distress.
- 6.(25) Must be equipped to store waste and non-perishable materials before being taken out of the institution. These facilities should be designed to prevent pests from entering and mixing with food, drinking water or equipment.
- 6.(26) Pesticides shall be stored in locked rooms or in a cabinet outside of food processing and processing areas.
- 6.(27) The cleaning and disinfection process must be thorough and subject to the following:
 - i. A permanent cleaning and disinfectant work schedule should be prepared so that all aspects of the organization are appropriately cleaned and special areas, equipment and materials are given special attention.
 - ii. It is the responsibility of the licensee to ensure that the cleaning and disinfection process is properly followed.
 - iii. When preparing, serving, and consuming food on the premises, no person shall clean the floor of the room by any means other than dust-free floor cleaning.
 - iv. All equipment used in serving or consuming food shall be cleaned of sufficient quantities of the food stored therein, washed with warm soapy water or other washing water with sufficient soap and other washing water, and then sanitized by the Licensee of the Company. Must be deal with.
 - v. Adequate precautionary measures should be taken to prevent contamination of food by water, rinse, disinfectants and fluids, by cleaning equipment or tools, and by disinfection. If there are any residues on the surface that touch the food, wash it several times with drinking water.
 - vi. The walls, floors, and drainage areas of the food handling area must be thoroughly disinfected and cleaned.
- 6.(28) Food Wrapping and Packaging Materials shall not be sources of food contamination and shall be stored in a non-combustible material.

- 6.(29) No person shall make arrangements for raising or raising animals, birds or other pets in a licensed institution.
- 6.(30) Food handling and processing areas shall be free from pesticides. There needs to be an effective and ongoing program to control pests.
- 6.(31) The Licensee shall ensure that food users in a Licensed Institution are provided with advice and training on food hygiene activities to suit their work
- 6.(32) Licensees must have knowledge of food hygiene policies and practices in order to determine potential risks and take action to address any deficiencies.
- 6.(33) The waste management of the institution shall be as follows.
- i. Licensed organizations must have an efficient and appropriate waste disposal system that is always in good working order and repaired.
 - ii. The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - iii. It is the responsibility of the Licensee to take action to minimize the daily waste generation of Licensed Institutions.
- 6.(34) Disposal of waste shall be legal in accordance with the conditions laid down by the Medical Officer of Health, the Public Health Inspector with the approval of the Pradeshiya Sabha, when the Licensee has a disposal facility.
- 6.(35) Every person dealing with the use of food related to the premises should ensure that the area health officer is in good health before such service and such certificate shall be in the format specified in the second schedule of this by-law. The medical examination of a person dealing with food consumption shall be conducted from time to time as determined by the Medical Officer of Health of the respective area and from time to time as specified clinically or as epidemiologically.
- 6.(36) All persons dealing with the use of food shall be of the highest personal hygiene at the time of their work, shall wear helmets, gloves, mouthpieces and shoes at all times, and shall wear suitable protective clothing.
- 6.(37) Any person entering a food-handling place should wash his hands with an appropriate cleaning solution and drinking water. Food users should wash their hands with a cleaning solution and drinking water before starting work or resuming after using the toilet or touching any ingredient or contaminant.
- 6.(38) When dealing with food, persons engaged in preparing and serving food or otherwise in the premises should make apron made of pure and washable material and without pockets.
6. (39) Gloves used in handling food products shall be in good and clean hygiene.
6. (40) The premises should have adequate first aid facilities.
6. (41) Where food or drink is suspected to have been infected or infected with any infectious disease, such as a carrier or a person suffering from infected wounds, skin infections, ulcers, and diarrhea, directly or indirectly; Should not be allowed to hold any post. Any person who has contracted such a disease should immediately notify the licensee that he has been sick.
7. Every person dealing with food should not engage in food combustion, smoking, spitting, chewing gum, chewing gum, or coughing, sneezing, touching the nose, or any other similar activity that may cause food contamination.
8. Everyone dealing with food on the premises;
- i. Should not leave personal belongings and clothing in food handling places.
 - ii. Food should not be left in any place that is at risk of burnout.
 - iii. Ensure that all food stored on the premises is suitable for human consumption.

- iv. Adequate measures should be taken to protect food from corrosion when storing, transporting, delivering, and exposing food.
 - v. Do not wear or transport food items to or from places where food, personal or belongings, or safety items, will be compromised.
9. Those who are handling food should have the skills to perform food hygiene.
 10. Important health messages relevant to employees and customers should be displayed in the premises.
 11. All permits issued under this by-law shall expire on or after 31 December of the year in which the license was issued, unless previously revoked.
 12. Every Sinhala, Tamil and English copy of this by-law shall be displayed in a publicly visible place in every premise subject to a license under this by-law.
 13. In the event of a violation of the provisions of any of the provisions of this by-law in any premises where a permit has been issued in accordance with this by-law, the premises shall comply with all such requirements before the specified date. Such notice shall be prescribed by the Chairman Delivery should be made to the officer. The maximum period of notice from such advertisement shall be not more than 30 days.
 14. Any Licensee who has received annote as set out in Section 13 hereof shall act in such manner as may be prescribed in the notice before the specified date. The Chairperson shall have the right to extend the period specified in the notice upon a reasonable written request by the Licensee. However, the extension period should not exceed 14 days.
 15. In the event that any licensee who has received a notice in terms of clause 13 hereof has failed to act in the manner specified in that notice or before the date of extension, the license issued to the relevant place shall be revoked by the Chairman. Must be legal.
 16. Any license, food or other substance or liquid in any premises for the purpose of inspection by the Chairman or the Medical Officer of Health or the Public Health Inspector or any other authority authorized by the Chairman, shall be legally authorized to be paid by the licensee. Refuse or impede the purchase or purchase Do not overload.
 17. The Chairperson, the Medical Officer of Health or the Public Health Inspector, or any other officer authorized by the Chairman, shall have the authority at any reasonable time to provide for the exercise of the provisions of this by-law, and the Licensee shall provide every reasonable support.
 18. It is an offense to maintain premises without a permit under this by-law or to violate any of the provisions of the by-law and after being convicted by a court of competent jurisdiction for such offense, 122 of the Pradeshiya Sabha Act No.15 of 1987 (2) Subject to a fine referred to in subsection (2). Upon receipt of a written notice by the Chairman, the Medical Officer of Health or the Public Health Inspector, with regard to the violation, the offender shall continue to violate such violation by a court of competent jurisdiction. Every single day the violation continues The components must be subject to an additional fine above section.
 19. Unless otherwise required in this By-Law;

"Chairman" shall mean the person holding the office of the Chairman of this Pradeshiya Sabha at the moment or performing the functions of that office.

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha

"Medical Officer of Health" shall mean the person holding the office of any Medical Officer of Health the area of the Pradeshiya Sabha

"Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.

"Authorized officer" means any officer authorized by the Chairman at the moment,

"Licensee" means an organization or person or persons who have obtained a license under this by-law;

"Pesticides" means pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Cleaning" means the removal of soil, accumulated food particles, dirt, grease or any other harmful external substance,

"Biological" means any biological, chemical, additive or other substance added to the food that may be harmful to the safety or appropriateness of food;

"Combustion" or the entry of a combustible substance into a food or food environment,

Whether chemical or physical means reduce the amount of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food by "disinfectants";

"Food hygiene" means all conditions, measures and practices necessary to ensure the safety and appropriateness of food at all times in the food chain;

Any biological, chemical or physiological agents or conditions that may have a material adverse effect on the "hazard"

"Food handler" means any person who works directly on food, equipment and tools or on the surface where food is touched.

"Food safety" means the responsibility of the consumer to avoid any harm when preparing, processing, selling, storing, distributing, transporting, or consuming food.

"Drinking water" shall mean water that does not contain enough pollutants and causes bacterial and chemical conditions that meet the national standards for causing disease or physical harm;

"Food" shall mean any item imported, manufactured, sold, sold or represented for the consumption of human food or beverages, and any item commonly used in the composition or preparation of food,

"Tea, Coffee and Short Eat Shops" means a place for sale of a beverage like tea or coffee or any liquid which can be easily consumed or prepared for public consumption and prepared food for easy consumption by the public.

"Reasonable time" shall mean any time during which the licensee is carrying out a work or its related activities,

20. In the event of any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile:- Land phone : -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:

08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
- I. Name and Personal Address:
- II. National Identity Card Number: -
- III. Phone number: Mobile: - Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
 Medical Officer of Health

Second Schedule

Photograph

Medical Certificate issued to the worker in tea, coffee and short eat shops

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr/Mrs bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
 Date

.....
 Medical Officer of Health
 (Official Seal)

12-654/7

NIVITHIGALA PRADESHIYA SABHA

By- Law Regarding Distribution of Free Food

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding Prevention of Public Disturbances in the Distribution of Free Food within Authoritative Area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
 Governor,
 Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
 On this 30th day of October, 2019.

By-Law on the Prevention of Public Disturbances in the Distribution of Free Food within Nivithigala Pradeshiya Sabha Authoritative Area

1. This by-law is enacted to protect the health of the public and the associated public health in the authoritative area of the Nivithigala Pradeshiya Sabha.
2. This by-law is known as the by-law for the Prevention of Public Persecution in the Distribution of Free Food in the Nivithigala Pradeshiya Sabha Authoritative Area.
3. If any person, society or organization in the area of authority of the Pradeshiya Sabha intends to produce or distribute food for free distribution or supply or for any other special purpose for this purpose an application under the form specified in the first schedule of this by-law should be submitted to the Nivithigala Pradeshiya Sabha (Hereafter known as the Pradeshiya Sabha) and obtain a license.
4. The Chairman shall not issue the relevant permit unless the following conditions have been fulfilled in granting the permit.
 - 4.(1) No person shall maintain a place where food is served or distributed free of charge for any promotional purpose within the area of authority of the Pradeshiya Sabha, unless there is a permit obtained from the mayor of the Pradeshiya Sabha on the report of the relevant public health inspector and the Medical Officer.
5. Free Distribution of Food for any Promotional Purpose, or License Issued to Places of Delivery or Distribution shall be free of charge.
6. It is the responsibility of the person concerned to maintain free distribution or free distribution or presentation of food for promotional purposes, Obtaining a license by submitting an application form appearing at the Schedule at least 7 days prior to the date of delivery of free food for any promotional purpose or where free delivery or delivery is made.
7. All permits issued under this by-law shall be valid only for such period of time unless they have been previously revoked.
8. The Chairman shall not issue a license for any promotional purpose where food is distributed or served for any promotional purpose unless the provisions of this by-law are fulfilled in that manner.
9. Free delivery of food for any promotional purpose or place of delivery or presentation of free food, raw materials, equipment and tools,
 - I. All used equipment should be made of some toxin, odor, odor or taste-nonproducing substance. Such equipment and tools should be made of non-absorbent and stainless materials and they should be made of materials that are resistant to continuous cleaning and disinfection. There should be smooth surfaces free of gaps and fine openings. Avoid using wood and other materials that are not easily cleaned and disinfectable and can only be used when they are not clearly a source of combustion.
 - II. All equipment and tools should be easily cleaned and disinfected to prevent the risk.
 - III. Containers used for collection of non-consumable materials and waste should be made of metal or other non-leaky materials to prevent leakage and they should be easily cleaned. They should also be able to seal well. The equipment and tools used for the equipment should be distinguishable.
 - IV. Calibrated temperature gauges or recording equipment shall be provided for all facilities for freezing and freezing at all times.
 - V. Instrument tools must be in good condition.
 - VI. Pests should not be added to the food to prevent food contamination during preparation and presentation.
 - VII. There should be a stainless steel bolt to be used on demand when preparing and preparing food.
 - VIII. If the beneficiary is provided with food and beverages for consumption at the time, separate containers should be kept.

- IX. Sufficient drinking water must be provided on the premises. Water shall be kept in clean containers and shall be free from hazardous materials and combustible materials.
- X. From raw materials to the premises to the production of finished food, there must be a proper process of hygienic operation.
- XI. Raw materials should be prepared and stored to prevent contamination.
10. In the opinion of the Public Health Inspector, Public Health Inspector (PHI) should take additional measures as prescribed by the Public Health Inspector (PHI) in order to prevent food poisoning in the event of inadequate protective measures against food poisoning and sterilization.
11. Every person dealing with food preparation or serving food should take care to prevent food contamination; care must be taken to prevent food contamination and to avoid unnecessary touching and other equipment used on the premises.
12. By everyone involved in the preparation, handling, or serving of food.
 - I. No need to spray food with your fingers, except when it is practically impossible to serve food in any other way
 - II. Non-food gloves should be used when fingertips are necessary for special occasions.
 - III. He should not wipe his hand in his clothes or anything else except using a clean towel.
 - IV. Do not carry or store any food in a dish, dish, or jar underneath a dish, dish, or container.
 - V. A bowl, dish or dish that is used or shared with a particular food should not be stacked on top of one another without being thoroughly cleaned and the surface should be placed wherever possible.
 - VI. Do not touch the containers with a spoon, knife, fork, or jar, as they may cause microbial contamination from the food processor to the consumer.
13. Every person who provides food should use a hygienic fork or some other suitable tool to provide the food only if it is not practical.
14. No person shall wipe any instrument with a gun or other cloth which is not clean or otherwise unworthy of wiping.
15. When required, the Licensee shall comply with the following requirements.
 - I. Food prepared to be served should be maintained at the appropriate temperature
 - II. All fruits and vegetables that can be eaten at the time of delivery should be washed before serving.
 - III. Stuffed vegetables should be kept in well ventilated, adequate lighting, no room for rats, or in any other room or refrigerator or cooler room.
16. A food processing point should be a place where cooking food or raw food can be kept vertical and horizontal.
17. A place where food is intended to be distributed free of charge or served for any promotional purpose should not be a food hazard.
18. The place shall be authorized by the Chairman so as not to cause any public obstruction or to cause any public disturbance
19. It should be a temporary or permanent building designed to provide adequate space so that all operations can be carried out satisfactorily.
20. The adjacent jar should be kept in place and garbage containers should be kept in such a way that flies or other insects cannot enter.
21. In the event that the Pradeshiya Sabha intends to operate a free food place in an area not covered by the Solid Waste Management Service, a license must not be issued unless the applicant has established a formal waste disposal system as specified by the Medical Officer, Public Health Inspector.

22. It is the duty of the Licensee to ensure that employees wear the same hats at all times when they are employed, in order to ensure that every employee engaged in the preparation of meals at the Licensed Place.
23. Provide clean water, clean towels and hand washing soap or lotion to everyone working in the licensed premises.
24. Any infection, contact or skin disease caused by the Licensee or any recently suffered from such disease or any person who has recently undergone treatment for a person or a person suffering from any such disease, unless the period of infection and spermatogenesis has expired, free delivery of food for a licensed promotional purpose, or the provision or distribution of free food for any purpose, or to be employed or assisted or assisted in any work by any such person should not engage in free delivery of food
25. In the place of the free delivery of food for any promotional purpose or place of delivery or distribution of free food any animal should not be kept
26. Toilets and breeding areas should be kept separate from food consumption sites and should not be opened directly to food handling areas.
27. No person shall be allowed to engage in any kind of work where the food is distributed or served free of charge for a licensed promotional purpose unless the person is well-washed and in good personal hygiene.
28. The time it takes for an authorized officer to comply with the terms of this by-law means any time the free delivery or presentation is made, or any food product being processed.
29. Under this by-law, it shall be the duty of the Licensee to assist in inspecting the premises where food is served or served free of charge for any promotional purpose authorized by an authorized officer and shall not interfere with such activities.
30. Any complaint about places where food is distributed or served free of charge for licensed promotional purposes may be made in writing or orally to the Chairman, Secretary or Authorized Officers and it shall be lawful for such officers to conduct a formal investigation.
31. Any violation of one or more of the provisions of this by-law is an offense.
32. A person authorized by the Chairman, the Medical Officer of Health or the Public Health Inspector or the Chairman to act on or under any circumstance may seek to act without a permit under Section 3 above. It is lawful for a notice to be terminated by a written notice.
33. 122 (2) of the Pradeshiya Sabha Act No. 15 of 1987, which relates to the offense of maintaining a premises without a license required under this by-law or violating any of the provisions of the by-law. Shall be subject to a fine referred to in sub-section. When a person who has been convicted of a wrongful offense by a court of competent jurisdiction over the offense continues to commit such violations or violations, a written notice may be submitted by the Chairman, the Medical Officer of Health or the Public Health Inspector. Every US who continues the violation after being given An additional fine of the above section shall also be liable to be imposed for a period of time.
34. Unless the changers of the by-laws are necessary;
"Chairman" shall mean the person holding the office of the Chairman of the Pradeshiya Sabha for the duration of the term or performing the functions of that office,
"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha,
"Medical Officer of Health" shall mean the person holding the office of any Medical Officer of Health in the area of the Divisional Council area,
"Public Health Inspector" shall mean any Public Health Inspector Division within the area of authority of the Divisional Secretariat,
"Authorized Officer" shall mean the person holding the office of the Public Health Inspector in the area of the Pradeshiya Sabha from time to time.
"Licensee" shall mean an entity or person who has obtained a license under this by-law,

"Pesticides" shall mean pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Purification" shall mean the removal of soil deposits, food, dirt, grease or other harmful external substances,

"Biological" shall mean any biological, chemical, biological, chemical or other substance which may be harmful to the safety or appropriateness of food,

"Decaying" shall mean a corrosive substance for a food or food environment,

Reducing the number of microorganisms in the environment by chemical agents or by physical means which do not reduce the safety or appropriateness of food by "disinfectants",

"Food hygiene" shall mean the conditions and practices necessary to ensure the safety and appropriateness of food at all times of the meal,

Any biological, chemical, or physiological agents or conditions which may have an adverse health impact from "hazard",

"Food user" shall mean any person who works directly on food, food equipment and tools, or on the surface where food touches,

"Food safety" shall mean the responsibility of the consumer not to cause any harm when preparing, processing, manufacturing, storing, distributing, transporting or eating food,

"Drinking water" shall mean water that is sufficiently free from contamination and bacterial and chemical conditions to meet national standards, to cause disease or adverse physical effects,

"Food" shall mean any item imported, manufactured, sold, sold or represented for the use of human food and beverages, and any item commonly used or used in the composition or preparation of food,

35. If there is any compatibility between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

Application for a License for a Free Food or Delivery Meal

01. Name of the applicant:-
02. Address of the applicant:-
03. National ID card Number:-
04. Telephone Number : Mobile: - Land phone :-
05. Where to apply for a permit:-
06. The route to the requesting permit in brief:-
07. A letter of consent has been attached/not attached from the relevant institution or trustee and the owner if the place to apply for the license is a public place.

I certify that the above information is true and correct.

Date:-

.....
Signature of the applicant

N.B :- If the place is a public place in the event of a free delivery or presentation of the above, a letter of consent from the relevant institution or guardian or the owner of the place should be attached with the application.

NIVITHIGALA PRADESHIYA SABHA

By- Law - Regarding Private Wells

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding private wells within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act ,No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act, read with Section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-law on Private Wells in Nivithigala Pradeshiya Sabha Authoritative Area

1. This by-law is enacted to regulate private wells, including the prescribing of standards for the maintenance of the wells for regulatory purposes, to maintain the public health and safety of private wells maintained within the area of authority of Nivithigala Pradeshiya Sabha.
2. This by-law is known as the by-law of the private wells of Nivithigala Pradeshiya Sabha.
3. No individual well shall be constructed in the authoritative area of Nivithigala Pradeshiya Sabha (hereinafter referred to as the area) to get water for drinking or other purpose except as otherwise specified under a plan approved by the Chairman for construction under the plan for construction of all private wells.
4. The Chairman shall not approve the construction of a well, if it can be located within 15.25 least distance meters from a toilet pit, garbage pit, a place prepared for garbage sucking in any mean or a garbage flowing drainage or toilet pit.
5. When a well has been erected for drinking or other domestic purposes, no person shall take any of the following measures within a distance of 15.25 meters from the well.
 - i. Construction of a toilet pit
 - ii. Construction of a funnel pit
 - iii. Construction or maintenance of a waste drain or similar waste disposal site
 - iv. Maintenance of a animal farm or a place where waste is collected from the animal farm
 - v. Engaging or deploying in any activity of any nature that may cause chemicals to leak into the ground.
 - vi. Taking measures to create a mine pit at a distance of 15.25 meters from the well limit.
6. Every well to be in the area of the Nivithigala Pradeshiya Sabha and to obtain water for other domestic purposes as of the date of the enactment of this by-law and every well approved by the Chairman under this by-law shall be secured and maintained as follows,
 - i. A wall of well should be constructed at least 1.5 meter high to prevent surface water flow from any distance and to protect the well users.

However, when the surface area of the earth's surface is covered with a concrete roof, it is legal to determine the height above ground level.

- ii. Measures should be taken to prevent water leakage from the well below 4.5 m from the well.
 - iii. Location of the well is more than 4.5 meters from the boundary of the land
 - iv. Necessary measures having been taken to prevent leakage of ground water to a depth of less than three meters below ground level.
 - v. Maintenance of the well properly and drainage near the well located within 15.25 meters.
 - vi. Removing water and maintaining it according to the appropriate health care measures as advised by the Medical Officer of Health or the Public Health Inspector.
 - vii. If the well is a drinking water well, the well should be kept not to wash anything including clothes using chemicals within 4.5 meters distance from the well.
 - viii. Keeping the well covered with a suitable cover so that the anything from outside does not fall to the well easily.
7. Entrance of the Chairman, Public Health Inspector of Health, Medical Officer of Health, officer authorized by the Chairman from 6:00 am to 6:00 pm to check the existence of a well or any other activity which may affect the well in accordance with the provisions of this By-Law, shall enter the premises and obtaining samples for testing is legal.
 8. The Chairman shall prescribe a reasonable period of time to be given to the person who maintains or operates the well or the water of the well in a manner that is not in accordance with the provisions of this by-law in the area of authority of the pradeshiya sabha. Should submit notice informing the measures to be taken.
 9. Where an notice has been filed under clause, additional time may be granted by the Chairman for compliance with the request and the time period shall be not more than 30 days.
 10. It is an offense not to act in accordance with section 8 of this by-law and after being convicted by a magistrate court of that offense, he has been subjected to a penalty under Section 122 of the Pradeshiya Sabha Act No.15 of 1987 and in continuation of the offence, subject to an additional penalty under that clause
 11. In this by-law, unless it is otherwise necessary to another meaning for the words;

The word "Chairman" shall mean the person holding the office of Chairman of this Pradeshiya Sabha or the person, who performs the duties of the post,

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha,

"Health Medical Officer" shall mean the person holding the office in any of the Divisional Health Medical Officers' Division in that period,

"Public Health Inspector" shall mean any person holding such office in any of the Public Health Inspectors area within the area of authority of the Public Health Inspector in that period.

"Authorized Officer" shall mean any officer duly authorized by the Chairman in writing in that period.

12. In the event of any inconsistency between the Sinhala, Tamil and English versions of this by-law, the Sinhala text shall prevail.

NIVITHIGALA PRADESHIYA SABHA

By- Law Regarding Maintenance of Meat Stalls

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding maintenance of Meat Stalls within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act, No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-Law on the Maintenance of Meat Stalls within the Nivithigala Pradeshiya Sabha Authoritative Area

1. This By-Law is enacted to regulate, administer and control the operation of meat outlets within the area of authority of Nivithigala Pradeshiya Sabha.
2. This by-law is known as the by-law on the sale of meat in authoritative area of Nivithigala Pradeshiya Sabha.
3. A person who wishes to obtain a license pursuant to this by-law shall apply by an application prepared in accordance with the first schedule of this by law.
3. (1) Where any person has a valid license issued by the Chairman of any premises within the area of the Nivithigala Pradeshiya Sabha (here in after referred to as Pradeshiya Sabha)
3. (2) The fee for a permit under this section shall be the fee charged by the Council in accordance with the provisions of the Basic Law.
 - (A) A person licensed under this by-law shall display his name and a plaque labeled "Licensed Meat Shop" and the current year's license in such a manner as to be easily visible on his premises.
 - (B) Every meat shop shall display a Sinhala, Tamil and English copy of this by-law in a public and visible place.
4. Any person applying for a license under this by-law shall not issue a permit to the Chairman unless the premises are maintained in accordance with the following conditions.
 4. (1) The construction of the premises relevant to the permit shall be construed in accordance with the applicable written law and approved by the Chairman.
 4. (2) The organisms shall not rely on all equipment for storing, displaying, and selling meat, and shall not transmit food inappropriate from the equipment used.
 4. (3) The bulbs and fixtures hanging above the meat for sale must be in safety condition and covered.
 4. (4) The floor shall be made of waterproof, non-absorbent, washable and non-slippery material without fine opening and shall be easy to clean and disinfect. There should be sufficient slope to allow the liquid to flow from the exit points of the ground.
 4. (5) The walls shall be made of waterproof, non-absorbent and washable material and shall be free of holes and insects. The walls should be smooth to the height of the operation and should not have delicate openings. They should also be easy to clean and disinfect.

4. (6) Surfaces directly in contact with meat shall be of good quality, durable and easy to clean, maintain, and disinfect. These surfaces should be made of materials that are smooth and non-absorbent and that the surfaces should be free from food, washing and disinfection.
4. (7) The ceiling must be designed, constructed and finished to prevent the accumulation of dirt, to minimize condensation and to prevent the molding and cracking of the ceiling.
4. (8) Doors shall have a smooth and non-absorbent surface and shall be automatically closed or properly closed when appropriate.
- 4.(9) The windows should be easily cleaned and constructed to minimize dirt accumulation. They should also be equipped with removable and cleanable nets that are not accessible to insects and should be installed as needed.
- 4.(10) All structures and fixtures above the place where meat is for sale must be installed to prevent direct and indirect combustion of meat by condensation and leakage and shall not interfere with cleaning. It should be designed and finished to prevent dirt accumulation, mold buildup and spillage.
- 4.(11) The drains should be adequately constructed to avoid contamination and return, and should be erected to prevent combustion and the drainage of the wastewater must be cleaned and disinfected at least twice daily with disinfectant.
- 4.(12) Sufficient measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer, or open ground.
- 4.(13) The sewage pit, where sewage and sewage flow, must not be exposed to air and shall not contaminate groundwater from the suction pit.
- 4.(14) The sewage pit where sewage and sewage is flowing must be constructed to the standard.
- 4.(15) The suction pit shall be erected at least 15.25 m from any source of water.
- 4.(16) The disposal of waste in the premises of the permit shall be carried out in accordance with the Waste Management Regulations of the Pradeshiya Sabha.

 However, when the permit holder of the premises has a disposal facility, it is legal to dispose of the waste subject to the conditions stipulated by the Medical Officer of Health or the Public Health Inspector with the approval of the Pradeshiya Sabha.
- 4.(17) In case of the intention of opening a meat stall in an area not covered by the Solid Waste Management Service of the Pradeshiya Sabha, a formal waste disposal system approved by the chairman of the Pradeshiya Sabha on the recommendation of the public health inspector's report and the medical officer of the health authority shall be obtained Should not be given.
5. Every person licensed under this by-law shall maintain a premises for sale of meat in accordance with the following conditions.
 - 5.(1) Meat shall be kept open for sale, for sale, for sale, and for sale to a public place, road or road.
 - 5.(2) The certified copies of certificates or certificates certified by the Public Health Inspector to be issued by the Public Health Inspector should be submitted to certify that the meat which is for sale in a licensed meat shop is suitable for human consumption.
 - 5.(3) If the flesh of an animal slaughtered within the territory of a meat market for sale in a licensed place is not covered under this by-law, the meat may be kept in a well-closed vehicle or box or any other suitable container under cold conditions below 2 ° C. Unless the veterinary officer and the Public Health Inspector have certified that they have been delivered to the premises, such meat should be kept for sale. Should be.
 - 5.(4) At the end of the day-to-day operations of any licensed meat market, the site shall be cleaned with sterilized disinfectant liquid, the floor, packaging, cutting tools and other equipment, and the place where the meat is sold.
 - 5.(5) Any licensed meat stall and drains in and around it, and all vessels and utensils used in connection with the storage, preparation or sale of meat, shall be kept in good repair and free of odor.

- 5.(6) (i) It is not lawful to store meat in the refrigerator unless there is a well functioning generator in the event of a power outage at all places or markets where meat is stored in the fridge.
- (ii) When refrigerated meat is not processed for sale in the meat market place, it should be kept as low as 2 degrees Celsius in a room or cabinet as soon as practicable. In all cases, the meat should be preserved to be rotten and non-combustible.
- 5.(7) Fresh meat placed on display at temperatures above 2 degrees Celsius in a meat market must not be sold or refilled for any reason in a frozen or frozen or air-conditioned premises.
- 5.(8) The meat placed on display in a refrigerator in a meat market must not be sold or refilled for any reason in a frozen or frozen or air-conditioned premises.
- 5.(9) The licensed meat stall shall be kept free of dogs, cats, rats, insects or any other animals.
- 5.(10) Not to store any meat or any other goods in the premises, except for the utensils or utensils used in the sale or sale of meat.
- 5.(11) A packaging material or item that does not directly correspond with printed paper or food shall not be used for meat packaging purposes in a market place.
- 5.(12) (i) Any person who has recently undergone any infection, contact or dermatitis or who has recently suffered from any such disease, or who has recently undergone treatment for any such disease, has expired; You should not be allowed to work in any meat market unless otherwise noted.
- (ii) Any person engaged in any work in a licensed premises should be well washed and clean.
- (iii) Every person dealing in the sale of meat should ensure that the Medical Officer of Health of the area is in good health before serving and such certificate shall be in the form specified in the Second Schedule to this By-Law. The medical examination of a person dealing with food consumption shall be conducted from time to time as may be prescribed by the Medical Officer of Health of the respective area and from time to time referred to as Clinical or Epidemiological.
- 5.(13) The Licensee's job shall be to provide safety veils, gloves and other protective clothing to all employees employed in the Meat Market, and to ensure that those employees wear the Meat Shop every time they are employed. .
- 5.(14) It shall be the duty of the Licensee to provide adequate facilities for washing and drying with disinfectant facilities for use by all persons employed in the Licensed Place.
5. (15) Adequate drinking water supply shall be provided in such premises. Water should be stored in clean containers and free of hazardous materials and pollutants.
5. (16) The Licensee shall ensure that there is an enforceable procedure in place to deal with any hazardous conditions of meat safety and to prevent any spoilage of food products to consumers.
5. (17) In the opinion of the Medical Officer of Health or the Public Health Inspector, additional measures dictated by the Public Health Inspector or Public Health Inspector shall be taken to prevent food contamination in case the meat is stored and the safety measures provided against it are inadequate.
5. (18) No employee shall be wiped in a licensed premises by means of a firearm or other piece of cloth which is not clean or otherwise suitable for wiping.
5. (19) The hands should be adequately equipped with disinfectant facilities for washing and drying hands, if necessary in the processing areas.
5. (20) The equipment and equipment used in the premises shall be adequately equipped for cleaning and disinfection. These facilities should be made of stainless material and there should be sufficient water supply so that they can be washed easily.
6. No meat shall be exhibited for sale or sale in any meat shop at any time during the period specified by the competent authority in terms of the powers of section 17 of the Herbal Ordinance, which prohibits the slaughter of animals for meat on any given day.

7. A sample of any meat that is sold or displayed for sale by the Public Health Inspector, the Public Health Inspector, or stored inside, shall be legally authorized by the Licensee to be paid for its trade value. Don't refuse or hinder taking.
8. The Licensee shall provide every reasonable support to the Chairman or any officer authorized by him, the Medical Officer of Health or the Public Health Inspector at any reasonable time to check the terms of these by-laws.
9. If any meat selling point is maintained in a manner contrary to the provisions of this By-Law in a licensed premise, the Chairman shall deliver to the Licensee a notice requiring the Licensee to comply with all such requirements before the specified date. To be received. The maximum period of notice from such advertisement shall not exceed 30 days.
10. Any licensee who has received a notice of the type referred to in paragraph 9 shall act in accordance with the notice as set out in that notice before the specified date. The Chairperson shall be entitled to extend the specified period of notice of such notice upon a reasonable written request by the Licensee. However, the extension period should not exceed 14 days.
11. In the event that any licensee who has received a notice of the type referred to in paragraph 9 above has failed to act in the manner specified in that notice or before the date on which such notice has been extended, the license issued to that place shall be revoked by the Chairman. Must be legal.
12. All permits issued under this by-law shall expire on or after 31st December of the year in which the license was issued, unless previously revoked.
13. It is an offense to maintain a place of sale of meat or violate any of the provisions of this by-law without a license under this by-law, and the offense shall be committed by a competent court of competent jurisdiction. Subject to a fine referred to in subsection 122 (2). When a person who has been found guilty of an offense continues to pursue such violation or violation by a court of competent jurisdiction over such offense, the Chairman or the Medical Officer of Health or the Public Health Inspector shall issue a written notice of the violation. Each subsequent day the violation continues an dahama should be subject to the additional fine above section.
14. Unless otherwise necessary in the case of verses
 "Chairman" shall mean the person holding the office of Chairman of this Pradeshiya Sabha or performing the functions of that office.
 "Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha
 "Area" shall mean the Nivithigala Pradeshiya Sabha authoritative area.
 " Medical Officer of Health " shall mean the person holding the office of any Medical Officer of Health in the area of the Divisional Council area.
 "Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.
 "Authorized officer" shall mean any officer authorized by the Chairman at the time,
 "Licensee" shall mean an entity / person or persons licensed under this by-law,
 "Pesticides" shall mean Pesticides approved by the Registrar of Pesticides of Sri Lanka,
 "Cleaning" shall mean removing food, food, dirt, grease or any other harmful external substance,
 "Biological" shall mean any biological, chemical, alien substance or other substance which may be harmful to the safety or appropriateness of food;
 "Combustion" shall mean the inclusion or occurrence of a combustible substance in a food or food environment,
 Whether chemical or physical means reduce the number of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food;

"Drinking water" shall mean water that does not contain enough pollutants and causes bacterial and chemical conditions that meet the national standards for causing disease or physical harm;

"Veterinary Surgeon" shall mean a person registered under the Veterinary Surgeons and Practitioners Act, No. 46 of 1956

"Reasonable time" shall mean any time during which the licensee is carrying out a work or its related activities,

"Animal" shall mean any animal falling under the Slaughter Ordinance.

15. In the event of any inconsistency between the Sinhala, Tamil and English versions of this by-law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile :- Land phone :-
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
 - I. Name and Personal Address:
 - II. National Identity Card Number: -
 - III. Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....,
Signature of the applicant.

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health

Second Schedule

Photograph

Medical Certificate issued to the worker in a meat stall

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr/Mrs bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health
(Official Seal)

NIVITHIGALA PRADESHIYA SABHA

By- Law Regarding Maintenance of Fish Stalls

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding maintenance of Fish Stalls within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act, No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act, No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-Law on the Maintenance of Fish Stalls within the Nivithigala Pradeshiya Sabha Authoritative Area

01. This by-law is enacted to regulate, administer and control the operation of fish stalls within Nivithigala Pradeshiya Sabha area.
02. This by-law is known as the By-Law of the sale of fish within the Nivithigala Pradeshiya Sabha Authoritative Area.
- 03.(1) No person shall maintain a fish sale place unless he has a valid license issued by the Chairman of any premises within the area of the Nivithigala Pradeshiya Sabha (hereinafter referred to as the area).
- 03.(2) Every person applying for a license under this by-law shall apply for a license under an application prepared in accordance with the first schedule hereof.
- 03.(3) (A) The fee for a license under this section shall be a fee determined by the Council subject to the provisions of the Basic Law.
(B) person licensed under this by-law shall display his name and a plaque entitled "Licensed Fish Shop" and the year in such a manner as to be easily visible on his premises.
- 04.(1) Any person who wishes to commence and maintain a premises subject to a permit under the above clause shall apply for a permit under the above clause unless such person has obtained prior approval under this by-law. There is no entitlement.
- 04.(2) A request for pre-approval under this section shall be approved by the Chairman on the recommendation of the Public Health Inspector's Report and the Medical Officer of Health.
- 04.(3) The inspection fee to be approved by this section may be determined by the Council from time to time by a resolution of the resolution
05. Every person applying for a permit under the clause must meet the following conditions:
 - 05.(1) Approval under Section 4 of the bylaws when the business is a start-up business
 - 05.(2) The construction of the premises relevant to the paper shall be construed in accordance with the applicable written law and approved by the Chairman.
 - 05.(3) The construction materials should be in good condition. All construction waste should not rely on living organisms and should not be transmitted to fish. No toxic gases should be emitted from the material after construction is complete.

- 05.(4) Organisms must not rely on all equipment for storing, displaying, and selling fish, and must not transmit toxic substances to fish or emit toxic gases.
- 05.(5) Light bulbs and fixtures on top of fish for sale must be in safety condition and covered.
- 05.(6) The floor should be made of waterproof, non-absorbent, washable and non-slippery material with fine opening and should be easy to clean and disinfect. The slopes shall be of sufficient size to allow material to flow out of the site.
- 05.(7) The walls should be made of waterproof, non-absorbent material and the walls should be free of pores and insects. The walls should be smooth to the height of the operation and should not have delicate openings. They should also be easy to clean and disinfect.
- 05.(8) Surfaces that are in direct contact with the fish should be in good condition, durable and easy to clean, maintain and disinfect.
- 05.(9) There should be a ceiling or well-finished concrete roof above the fish stall and should be designed, constructed and finished to minimize condensation and prevent ceiling molding and cracking, to prevent dirt accumulation in the ceiling or concrete roof. Should be.
- 05.(10) The windows should be easily cleaned and constructed to minimize dirt accumulation. They should also be removable and clean, and insect-free nets must be installed and the windows installed as needed.
- 05.(11) All structures and fixtures and fixtures above the fish stall must be installed to prevent direct and indirect combustion of the fish by condensation and leakage, and shall not interfere with cleaning. It should be designed and finished to prevent dirt accumulation, mold build-up, and pallets.
- 05.(12) The drainage should be adequate to ensure that it does not flow and does not flow back and should be constructed to prevent combustion.
- 05.(13) Sufficient measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer and open ground.
- 05.(14) The sewage pit, where the wastewater is drained, should not be exposed to the suction pit and the groundwater should not be contaminated.
- 05.(15) The sewage pit, where sewage and sewage is flowing, must be built to an approved standard.
- 05.(16) Absorbents must be located at least 15.25 m away from any source of water.
- 05.(17) When a Pradeshiya Sabha intends to open a fish market in an area not covered by Solid Waste Management, the license applicant should not issue a formal waste disposal procedure approved by the Chairman of the Pradeshiya Sabha on the recommendation of the Public Health Inspector's Report and the Medical Officer of Health.
06. Every person licensed under this by-law shall maintain a premises for the sale of fish in accordance with the following conditions.
 - 06.(1) Wastewater drainage in the premises should be washed at least twice daily with disinfectant and rinsed in water
 - 06.(2) A program must be implemented in accordance with the Waste Management Regulations of the Pradeshiya Sabha for the disposal of waste in the relevant premises.

 However, when the permit holder of the premises has a disposal facility, it is legal to dispose of the waste subject to the conditions stipulated by the Health Medical Officer or the Public Health Inspector with the approval of the Pradeshiya Sabha.
 - 06.(3) Under this By-Law, fish purchased for sale at a licensed premises should not be kept for sale unless the license holder certifies that they have been delivered to the premises in a well-sealed vehicle, box or other suitable container under cold weather below 2 ° C.
 - 06.(4) The floor and walls of the premises, packing fish, cutting equipment and other equipment and exhibits for sale of fish should be cleaned with disinfectant liquid at the end of the day-to-day operations of any licensed fish market.

- 06.(5) Any licensed fish market and drains in and around it, and all containers and equipment used for storing, processing or selling fish should be properly repaired and free of odor.
- 06.(6) I. A well-functioning generator should be operated in the event of a power outage at all locations or markets where fish is stored in the fridge.
II. Frozen fish for sale at the fish market should be placed in a room or cabinet below 2 ° C as soon as possible. In all cases, fish should be protected from spoilage and combustion.
- 06.(7) Fresh fish for display at temperatures above 2 degrees Celsius at a fish market should not be sold or refilled for any reason in refrigerated or refrigerated air conditioned premises.
- 06.(8) Fish placed in exhibit refrigerators in a fish market should not be resold for any reason, either favorable or harmful, or in refrigerated or air conditioned premises.
- 06.(9) A licensed fish market must be kept free of dogs, cats, rats, or any other animal.
- 06.(10) Do not store any harmful items except for the utensils or vessels used for storing, selling, displaying or selling fish in the licensed premises.
- 06.(11) No packaging material or item that is in direct collision with printed paper or food should not be used for fish packing purposes on the premises.
- 06.(12) I. Licensee shall not allow any person who suffers from any infection, contact or dermatitis or who has recently suffered from such disease, or who has recently undergone treatment for any such disease, has expired at the time of infection and sterilization of any fish market.
II. Any person engaged in any activity in licensed premises should be well washed and clean.
III. All persons engaged in the sale of fish should ensure that they are in good health before working in the area and that the certification should be in the form specified in the second schedule of this by-law. The medical examination of a person dealing with food must be conducted from time to time as determined by the Medical Officers of the area concerned and clinically or epidemiologically.
- 06.(13) The licensee shall be responsible for ensuring that all employees working on the premises are provided with protective veils, gloves and other protective clothing, and to ensure that employees wear the same protective clothing whenever they work in the fish market.
- 06.(14) It shall be the duty of the Licensee to provide adequate facilities for washing and drying with disinfectant facilities for use by all persons employed in the Licensed Place.
- 06.(15) Adequate supply of potable water for on-site use must be provided and stored in standard containers.
- 06.(16) Licensee shall ensure that the premises are operated in a suitable manner to ensure the safety of marketable fish in the premises and to ensure that no hazardous hazards are encountered in the market and to prevent the supply of spoiled fish to consumers.
- 06.(17) No equipment shall be wiped with a firearm or other cloth which is not clean or otherwise suitable for wiping in any licensed premises.
- 06.(18) Provide adequate facilities for cleaning and disinfection of tools and equipment used on the premises. This facility should be made of stainless material and there should be sufficient water supply to make it easy to wash.
07. When health officials or the Public Health Inspector think that the manner in which the fish are kept in the premises and the protective measures against sterilization are inadequate, additional measures should be taken to prevent food poisoning.
08. The transport of fish to the premises must be in temperatures below 2 degrees Celsius, with suitable slave or cold storage facility.
09. No fish shall be exhibited for sale or sale in any fish stall, when a decree has been issued by a competent authority prohibiting the sale of fish on any date.

10. Any licensor of the fish or any other substance or liquid in the premises licensed for inspection purposes by the Chairman or the Medical Officer of Health or the Public Health Inspector or any other authority authorized by the Chairman, shall be legally entitled to pay such value. Refusal to buy or receive or obstruct it Should not be.
11. Provide any reasonable support to the Chairman or any officer authorized by him, the Medical Officer of Health or the Public Health Inspector to inspect the Mayan in this by-law.
12. All permits issued under this by-law shall expire on or after 31st December of the year in which the license was issued, unless previously revoked.
13. In the event of a violation of any of the provisions of this by-law in any premises where a permit has been issued in accordance with this by-law, the licensee shall comply with all requirements to bring the site to compliance with the rules prior to the specified date. Notice by the Chairman of the license Delivery should be made to the Officer. The maximum period of notice from such advertisement shall be not more than 30 days.
14. Any Licensee who has received an Advertisement as specified in Section 13 hereof shall act in accordance with the notice as set forth in the Notice of Notice. The Chairperson shall be entitled to extend the time specified in such Notice on a reasonable written request by the Licensee. However, the extension period should not exceed 14 days.
15. Any licensee who has received a notice in terms of clause 13 hereof shall be issued to the place where such notice fails to comply with the prescribed date or the date specified in that notice. Must be legal.
16. Sub-section 122 (2) of the Pradeshiya Sabha Act, 1987 is an offense for maintaining premises without a permit under this by-law or violating any of the provisions of the by-law. Shall be subject to a fine specified in section. When a person who has been convicted of an offense continues to violate or violate the offense by a court of competent jurisdiction over the said offense, the notice shall be handed over to the Chairman, the Medical Officer of Health or the Public Health Inspector with a written notice of the violation. Each subsequent violation continues An additional fine of the above clause shall also be liable to a fine.
17. Unless otherwise required in this By-Law;

"Chairman" means the person holding the office of the Chairman of the Pradeshiya Sabha for the duration of the term or performing the functions of that office,

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha,

"Authoritative area" shall mean Nivithigala authoritative area.

"Medical Officer of Health" shall mean the person holding the office of any Medical Officer of Health in the area of the Pradeshiya Sabha, area,

"Public Health Inspector" shall mean any Public Health Inspector within the area of authority of the Divisional Secretariat,

"Authorized Officer" shall mean the person holding the office of the Public Health Inspector in the area of the Pradeshiya Sabha from time to time.

"Licensee" shall mean an entity or person, who has obtained a license under this by-law,

"Pesticides" shall mean pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Purification" shall mean the removal of soil deposits, food, dirt, grease or other harmful external substances,

"Biological" shall mean any biological, chemical, biological, chemical or other substance which may be harmful to the safety or appropriateness of food,

"Decaying" shall mean a corrosive substance for a food or food environment,

Reducing the number of microorganisms in the environment by chemical agents or by physical means which do not reduce the safety or appropriateness of food by "disinfectants",

"Drinking water" shall mean water that is sufficiently free from contamination and bacterial and chemical conditions to meet national standards, to cause disease or adverse physical effects,

"Reasonable time" shall mean a licensee undertaking or related work,

"Competent authority" shall mean the parties, who are authorized to make such an order in Sri Lanka or in any local government area for the purpose of prohibiting the sale of fish for a certain number of days or days,

18. If there is any compatibility between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile:- Land phone : -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
- I. Name and Personal Address:
- II. National Identity Card Number: -
- III. Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant.

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary.

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health,

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary.

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector.

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health.

Second Schedule

Photograph

Medical Certificate issued to the worker in a Fish Stall

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr/Mrs bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health.
(Official Seal)

NIVITHIGALA PRADESHIYA SABHA

By- Law Maintenance of Beauty Centers

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding maintenance of Beauty Centers within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-law on the Maintenance of Beauty Centers in the Authoritative Area Of Nivithigala Pradeshiya Sabha

1. This by-law is enacted to regulate, administer and regulate the maintenance of beauty centers in the authoritative area of Nivithigala Pradeshiya Sabha.
2. This by-law is known as the by-law of the Beauty Centers of the Nivithigala Pradeshiya Sabha.
3. (1) Any person without a valid license issued by the Chairman should not run a beauty center of any premises within the Nivithigala Pradeshiya Sabha Authoritative Area (hereinafter referred to as Authoritative area).
3. (2) Any person who wishes to obtain a license under this by-law shall submit to the Chairman an application prepared in summary form in the first schedule hereof.
3. (3) The fee for a license under this section shall be the fee determined by the Council in accordance with the provisions of the Basic Law.
 - (A) A person licensed under this by-law shall display his name and a plaque labeled "Licensed Beauty Center" and the current year's license in such a manner as to be easily visible in his premises.
4. Any person applying for a license under this by-law shall not issue a permit to the Chairman unless the premises are maintained in accordance with the following conditions.
 4. (1) The Licensee shall confirm that a person with a Certificate in Beauty Certificate or a similar vocational competency certificate conducted by a training institute registered with the Tertiary and Vocational Education Commission is employed by the Licensee.
 4. (2) If a zoning has been done or industrial zones have been designated, the construction of a building for beauty centers should be carried out in accordance with that zoning.
 4. (3) The construction of the premises shall be in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance and shall be of good construction and shall be of good quality.
 4. (4) Adequate space shall be provided in proportion to the number of clients simultaneously serving not less than 2.25 square meters of floor area separately for each client.
 4. (5) Any client who wishes to provide services shall have sufficient space to sit comfortably at least 1.5 meters away from where the client is already serving.

4. (6) The wall height shall be not less than 2.7 m and the walls shall be erected with an approved permanent building material and painted in such a manner.
4. (7) All sections thereof shall be erected with a ceiling or concrete plate and shall be at least 2.7 m above the ground level.
4. (8) When operating a beauty center, every room should have open able windows, and the floor area should be sufficiently illuminated, and when opened, the area of the window windows should be one-seventh of the floor area of the room. When considering both door windows, the area of the window panels should be at least one-third of the floor area of the room and the area of the room when opening both doors. When adequate light and ventilation are provided artificially, it is legal to consider the above requirement fulfilled.
4. (9) Drinking water shall be adequately supplied for the use of the premises and shall be stored in containers which meet the required standards.
4. (10) A separate section shall be maintained for washing the utensils and utensils used by the clients.
4. (11) Separate sanitary toilets, toilets and bathrooms shall be provided for both men and women separately for the use of employees and clients.
4. (12) Toilets, bathrooms, walls shall be constructed of approved permanent building material and shall be of good quality and shall not be slippery.
4. (13) Clients shall use the stainless steel plate or suitable material for washing the hands, head, or face of the client's use area.
4. (14) Sufficient measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer or open land.
4. (15) The sewage pit, where sewage and sewage flow, shall not be exposed to air and shall not contaminate ground water from the suction pit.
4. (16) The sewage pit where sewage and sewage is flowing must be constructed to the standard.
4. (17) The suction pit for the premises must be erected at least 15.25 m from any source of water.
- 4.(18) Chemical wastewater shall be disposed of in a manner recommended by the relevant authority or the Chairperson, the Medical Officer of Health or the Public Health Inspector or any other authority authorized by the Chairman.
- 4.(19) Sufficient fire extinguishers shall be provided in accordance with the requirements of the premises.
- 4.(20) A separate section of the business premises shall be designated for leisure and other activities of the employees.
5. Every person licensed under this by-law shall maintain the premises in accordance with the following conditions.
 5. (1) Every licensed person shall sweep the premises of the licensed premises at the end of each service day, remove the dust, hair and other impurities and disinfect and clean them daily.
 5. (2) It is the responsibility of the Licensee to clean and maintain every part of the Licensed premises on a daily basis.
 5. (3) The serving portion of the Licensed Institution shall not be used for food or for any other purpose and shall not be used by any other person.
 5. (4) The Licensed Place shall not be used for any purpose other than such.
 5. (5) Garbage bins shall be kept separate from the garbage in the premises and shall be covered with lids so that flies or other insects cannot enter.
 5. (6) Waste management of the organization shall be as follows.

- i. There must be an efficient and appropriate waste disposal system, which must be collected immediately by wiping away hair or other waste, or by using an electrically operated suction machine and putting it in a container immediately.
 - ii. Licensed organizations must have an efficient and appropriate waste disposal system that is always in good working order and repaired.
 - iii. The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - iv. It is the responsibility of the Licensee to take action to minimize the daily waste generation of Licensed Institutions.
 - v. If a beauty center is operating in an area not covered by the Solid Waste Management Service of the pradeshiya sabha, the permit applicant must follow a formal waste disposal system as prescribed by the chairman of the pradeshiya sabha according to the reports of the public health inspector or medical officer.
5. (7) Toilets and toilets located in the licensed premises must be cleaned and disinfected at least twice a day and maintained without odor.
5. (8) To maintain and maintain the equipment and equipment of the Beauty Center,
 - i. Sufficient for sterilizing equipment and equipment,
 - ii. An accepted sterilization method and adequate number of sterilization equipment,
 - iii. Basin and soap or soapy liquid, hand washing facilities for service providers inside,
 - iv. Adequate number of towels and upholstery masks in white or other colors for client's use,
 - v. Movable containers with a closed lid to put hair and other waste in and out,
 - vi. If electric power tools are used indoors, secure and permanent power lines, at least to one customer's desk,
 - vii. A sterilization method after each use of equipment,
 - viii. Hot water or appropriate disinfectant after each use of all non-sterilizing equipment for the client's use,

The licensee must ensure that it exists.
5. (9) At all times when providing the services of the institution, at least one person who has received nationally or internationally recognized first-aid first aid training must be at least employed and provided with adequate first aid equipment and medicines.
5. (10) Sufficient facilities shall be provided for the cleaning and disinfection of work tools and equipment. These facilities should be made of stainless steel and non-chemical reagents and easily washable. If the equipment and equipment needed to be washed must be equipped with adequate supplies of hot and cold water.
6. Every employee of the premises must be provided with annual training on safe equipment handling, service delivery and other waste management.
7. The licensee shall be responsible for ensuring that the workers are proficient in cosmetics, chemicals and cosmetics. Certificates of competency required for that purpose should be submitted by the Chairman, the Medical Officer of Health or the Public Health Inspector or another authority authorized by the Chairman.
8. Cosmetics used for cosmetics must be approved and registered.
9. It is the duty of the Licensee to ensure that all employees employed in the Licensed Place undergo a medical examination at least once a year.
10. Every employee employed at the licensed premises must be provided with clean water, clean towels, nail polish brushes and soap or soapy liquid.

11. Any person who has recently been infected with any infection, contact or dermatitis or who has recently suffered from such a disease, or who has recently undergone treatment for such a person, if the period of infection and sterilization has expired should not encourage or allow any employment activity as an assistant to any person engaged in any kind of work or activity in a licensed premises or employed there.
12. After providing service to any customer who has recently served a person suffering from any form of infection, contact or dermatitis;
 - i. The service provider shall not allow or serve any other client unless he has cleaned his hands with a disinfectant.
 - ii. You shall not use or permit any client to use such equipment unless sterilized and any used towels and binoculars have been washed with disinfectant and soap.
13. Every employee employed in licensed premises;
 - i. To be employed only in good hygiene,
 - ii. Ensuring that the clothes and clothing are in clean and hygienic condition,
 - iii. Ensuring that the jewelry worn with its nails and accessories is kept to the client's risk, and
 - iv. The licensee's job is to ensure that each client is washed with soap or other disinfectant before serving.
14. The Licensee shall not use any towel that is not clean for the first time after being washed or cleaned by the Licensee at any licensed premises.
15. In the event of an emergency in the case of an employee or client, an appropriate arrangement should be made for prompt treatment and advice, and the employees and employers should be informed in advance of such an action.
16. All permits issued under this by-law shall expire on or after 31st December of the year in which the license was issued, unless previously revoked.
17. Every Sinhala and Tamil and English copy of this by-law shall be displayed in public premises in a public place in every premises subject to a license under this by-law.
18. Where a beauty center has been issued under this by-law, a licensee shall be required to comply with all the requirements to make the place in accordance with the relevant regulations before the date specified in the event of violation of any of the provisions of this by-law. The licensee Information should be handed over to be made. The maximum period of notice from such advertisement shall not exceed 30 days.
19. Any licensee who has received a notice of the type referred to in section 18 hereof shall act in accordance with the notice as set forth in that notice. The Chairperson shall be entitled to extend the specified period of notice of such notice upon a reasonable written request by the Licensee. However, the extension period should not exceed 14 days.
20. In the event that any licensee who has received an advertisement of the type referred to in paragraph 18 hereof has failed to act in the manner specified in that notice or before the date of such extension, the chairman shall revoke the license issued to the relevant place. Must be legal.
21. Any licensee, except as authorized by the Chairman, the Medical Officer of Health or the Public Health Inspector or any other authority authorized by the Chairman, to obtain any food, liquid or any other substance in the premises for the purpose of payment of the prescribed value. Refuse to buy or accept the offer should not interfere in.
22. The Licensee shall give every reasonable support to the Chairman, the Medical Officer of Health or the Public Health Inspector or any other officer authorized by the Chairman, at any reasonable time to check the terms of this by-law.
23. It is an offense to maintain premises without a license to be obtained under this by-law or in violation of any of the provisions of the by-law. (2) Subject to a fine referred to in subsection (2). When a person who has been

24. Unless otherwise required in this By-Law;

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha.

"Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.

"Authorized officer" shall mean any officer authorized by the Chairman at the moment,

"Licensee" shall mean an organization, person or person licensed under this by-law;

Reducing the amount of microorganisms in the environment through chemical agents or physical means to a level that does not reduce the safety or appropriateness of the "disinfectant";

"Drinking water" shall mean water that does not contain enough pollutants and causes bacterial and chemical conditions that meet the national standards for causing disease or physical harm;

"Reasonable Time" shall mean the Licensed Function or the relevant time.

25. If there is any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile:- Land phone : -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number : -
12. Business Manager or Agent,
I. Name and Personal Address:

II. National Identity Card Number: -

III. Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant.

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary.

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector.

Medical Officer of Health,

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary.

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector.

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health.

Second Schedule

Photograph

Medical Certificate issued to the worker in a Beauty Center.

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health.
(Official Seal)

12-654/12

NIVITHIGALA PRADESHIYA SABHA

By- Law Regarding Maintenance of Lodges and Guest Houses

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding Maintenance of Lodges and Guest houses within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under section 122 read with Section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

**By-Law on the Maintenance of Lodges and Guest houses within the Authoritative Area of
Nivithigala Pradeshiya Sabha**

1. This by-law is enacted to regulate, administer and control the maintenance of lodges and guest houses within the area of authoritative area of Nivithigala Pradeshiya Sabha.
2. This by-law is known as the by-law for the maintenance of lodges and guest houses within the authoritative area of Nivithigala Pradeshiya Sabha.
3. (1) Any person within the purview of the Nivithigala Pradeshiya Sabha area (hereinafter referred to as the area) no lodge or lodging shall be maintained unless there is a license.
3. (2) Every person applying for a license under this by-law shall apply for a license under an application prepared in accordance with the first schedule hereof.

3. (3) The fee for a license under this section shall be the fee determined by the Sabha in accordance with the provisions of the Basic Law.
4. Every person applying for a license under section 3 of this by-law must meet the following conditions:
 4. (1) A plan relating to the construction of the premises with reference to the premises shall be approved and a certificate of conformity shall be obtained with respect to the construction.
 4. (2) The premises shall be erected with access to persons with disabilities and special needs.
 4. (3) The space reserved for customers to sleep in shall not be less than 4 square meters per person, and shall have a shelf or cabinet, a towel rack, a desk for the occupant or occupant of each bedroom, and a desk. There should also be a bathroom with toilet.
 4. (4) The license applicant shall not be a person who has been convicted or punished for a criminal offense punishable by six months imprisonment or any other punishment equal to the same.
5. Every person licensed under this by-law shall maintain the premises in accordance with the following conditions.
 5. (1) It shall be the duty of the Licensee not to permit the use of any lodging for unethical purposes, and that any person shall sing or play musical instruments, play instruments, or otherwise unnecessarily interfere with the occupants of other lodges or places of residence and make some kind of sound.
 5. (2) Each bedroom in the Licensed Place shall be used by one customer and shall be cleaned in such bedrooms before being allowed to be used by another Customer. No other customer shall be provided for use unless disinfectant is cleaned.
 5. (3) All rooms and adjoining toilets and bathrooms must be cleaned daily with disinfectants, even in the event of a client staying.
 5. (4) The number of persons who do not meet the minimum space of 4 (3) above shall not be permitted to sleep in a particular bedroom. The Licensee shall not allow more than one person in a single room, more than two in a double room, or more than three in a triple room. However, a person sleeping in a room should not be considered a person for the purposes of this by-law when he is less than 12 years of age.
 5. (5) At any time within the bedrooms of any licensed premises;
 - i. More than one bed in a single room
 - ii. Double bed in single room or more than two single beds
 - iii. Double bed in a triple room and more than one single bed or three single beds
 - iv. No more than two double beds and a single bed or double beds and three single beds or more than five single beds in a family room.
 5. (6) No person shall be allowed to sleep in any room other than a room designated as a bedroom in a licensed place.
 5. (7) A document indicating the name, permanent residence, address, occupation and identity of each person who has come to stay at the licensed premises shall be maintained in each licensed premises and shall be inspected by the Chairman, Authorized Officer or any Police Officer. It is the responsibility of the Licensee to grant permission to do so.
 5. (8) Every person staying in a lodge shall present his / her identity to the licensee and place his / her signature in the guest register maintained in the lodge. The Licensee shall not, in any case, lodge in any part of the Licensed Place a person who does not present his identity or sign the Column of the Identity Card in the visitor's register.
 5. (8) The Licensee shall not, for any person who does not present his identity or sign the column of his or her identity information in the visitor register, lodge in any part of the License Place.

- 5.(9) Before allowing a client to use a room, the room must be kept open for at least 4 hours. Nevertheless, license holders do not need to open or open any window when there is a need for a window closure under such a weather condition.
- However, in case the room is air-conditioned, the provisions of this section shall not apply.
- 5.(10) Licensee shall not permit any person to lodge with a child, except with parents or legal guardians.
- 5.(11) Each permit holder must install a board that shows the dimensions of the room and the maximum number of persons permitted to sleep there.
- 6.(1) Wastewater and sewage should be treated with appropriate sloping pits or central treatment unit with built-in closures or other suitable construction materials so that the waste does not rely on slopes. Also a water trap or an approved qualification platform shall be used to prevent odor between the premises and the final disposal.
- 6.(2) The toilets and bathrooms should be constructed and maintained in good condition so that they do not get in the way.
- 6.(3) The drainage system should be adequately and sturdily constructed so that it does not overflow and does not flow back. The drains should be washed at least twice daily with disinfectant and rinsed with water.
- 6.(4) Adequate measures shall be taken to prevent wastewater and bad wastes from flowing to public land, drain or public waterway.
- 6.(5) Toilet pit that suck that waste water and wastes should not be exposed to air and should not be contaminated with groundwater.
- 6.(6) The toilet pit for waste flows should be constructed to the approved standards.
- 6.(7) The sucker pit must be constructed at least 15 .25 meters away from any water source
7. The licensee's job is to keep furniture containers and equipment in a hygienic and clean condition.
8. The permit holder shall take steps to clean every part of the premises before noon each day.
9. Every license holder is responsible for maintaining waste management on the premises as follows
- I. Licensed organizations must have an efficient and appropriate waste disposal system and maintain well operating conditions and repairs at all times.
 - II. The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - III. The task of the Licensee is to minimize the daily waste generation at the Licensed Institutions.
10. Disposal of waste is legal if the licensee has facilities for disposal of waste, subject to the conditions stipulated by the Health Medical Officer or Public Health Inspector with the approval of the Pradeshiya Sabha.
11. Adequate supply of drinking water for use on the premises should be provided and stored in containers that meet the required standard.
12. No person shall be admitted for lodging by a Licensee in any contagious, skin disease or disease infectious by touch.
13. If a person of a lodge is infected with any skin disease, contagious disease or a disease infected by touch, the Licensee shall inform the Public Health Inspector or the Chairman of the Public Health Inspector of the area where the residence is located.
14. It shall be the duty of the Licensee to perform appropriate quarantine procedures as may be prescribed by the Medical Officer of Health or the Public Health Inspector at the time of notification under paragraph 13 above.
15. Obtaining a Certificate from the Health Medical Officer or the Public Health Inspector that it is appropriate to return the site to a client after a quarantine process, upon notice according to section 13 above.

16. It shall be lawful to obtain any food from a license for testing purposes by any other official influenced by the Chairman or the Medical Officer of Health or the Public Health Inspector .
17. Everyone employed in the Licensed Place is in good health to work before being employed and the certificate should be in accordance with the format in the second schedule of this bye law. The medical examination shall be conducted from time to time as determined by the Medical Officers of the relevant area and from time to time as specified clinically or by Epidemiology.
18. The Licensee shall provide every reasonable support to the Chairman or the Medical Officer of Health or the Public Health Inspector or any other officer authorized by the Chairman at any reasonable time to inspect the provisions of this by-law.
19. All license issued under this by-law shall be expire on the 31st of December of the issued year unless they have been previously revoked.
20. The Sinhala, Tamil and English copy of this by-law shall be exhibited in a publicly visible place within the premises subject to a license under this by-law.
21. The Chairman shall notify by a notice ordering the Licensee of such premises in any premises where a permit has been issued, in violation of the provisions of this clause, or in compliance with the requirements of such place to do all that is necessary to bring the place up to the standards before the specified date. The time period provided by such advertisement shall be limited to a maximum of 30 days.
22. Any license holder who receives a notice as set out in this article shall act in such manner as may be prescribed by such license prior to the date specified by such notice. The Chairman shall have the authority to extend the time specified in such notice upon a reasonable written request by the client. The period must not exceed fourteen days
23. Any Licensee who has received a Notice as set forth in Section 27 hereof shall have canceled the License issued to the relevant premises in the event of failure to act in the manner specified in that Notice or before the Extended Date shall be legalized.
24. Sub-section 122 of the Pradeshiya Sabha Act No. 15 of 1987 provides that it is an offense to maintain premises without a permit under this by-law or to violate any of the provisions of the by-law. Be subject to a fine A person who has been convicted of an offense by a court of competent jurisdiction over that offense has been liable to a fine and Every day that the violation is continued after a written notice is given by the Chairman, the Medical Officer of Health or the Public Health Inspector, with the attention of the violator continuing for the same, an additional fine of the said clause shall be liable.
25. In this by-law, unless it is otherwise necessary to another meaning for the words The word "Chairman" shall mean the person holding the office of Chairman of this Pradeshiya Sabha or the person who performs the duties of the post,
 "Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha,
 "Health Medical Officer" shall mean the person holding the office in any of the Divisional Health Medical Officers' Division in that period,
 "Public Health Inspector" shall mean any person holding such office in any of the Public Health Inspectors area within the area of authority of the Public Health Inspector in that period.
 "Authorized Officer" shall mean any officer duly authorized by the Chairman in writing in that period,
 "Licensee" shall mean an entity or person or persons, who have obtained a license under this by-law,
 "Cleaning" shall mean the removal of soil, dirty food, greece, garbage or other harmful external substances deposited,
 "Disinfectant" shall mean reducing the amount of microorganisms in the environment through chemical agents or physical means to the level that does not reduce the safety or appropriateness of food,
 "Drinking Water" shall mean water sufficiently free of contaminants to cause disease or adverse physical effects and contains bacterial and chemical conditions that meet national standards,

"Reasonable Time" shall mean a time when the license work or related work is done.

Signature of the applicant.

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

.....
Secretary.

Date:-

Secretary,

Recommended/Not recommended issuing license.

.....
Revenue Inspector.

Date: -

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

.....
Secretary.

Date: -

Medical Officer of Health

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

.....
Public Health Inspector

Date: -

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

.....
Medical Officer of Health.

Date: -

Second Schedule

Photograph

Medical Certificate issued to the worker in a lodges and guest houses

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr/Mrs bearer of National Identity Card number And ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health.
(Official Seal)

NIVITHIGALA PRADESHIYA SABHA

By- Law - Regarding Mobile Trading within authoritative area

THIS is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding Mobile Trading within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-Law on Mobile Trading in Nivithigala Pradeshiya Sabha Authoritative Area

1. This by-law is enacted to regulate, administrate, inspect on the business of food and other goods by mobile trading within the authoritative area of Nivithigala Pradeshiya Sabha.
2. This by-law is known as the by-law of mobile trading of Nivithigala Pradeshiya Sabha.
- 3.(1) No person shall sell food or any other goods in the area of authority of the Nivithigala Pradeshiya Sabha unless there is a license obtained from the Chairman in the form specified in the first schedule of this by-law.
- 3.(2) Every person applying for a license under this section shall submit to Nivithigala Pradeshiya Sabha a completed application form prescribed in the first schedule of this by-law.
4. If a person who wants to be a hawker has submitted the information to be submitted under the application properly, it is the duty of the chairman to issue the relevant license for the corresponding peri
5. Notwithstanding Section 4 above, the following conditions must be fulfilled before the issuance of a permit for the sale of prepared meals to be directly consumed, by the tourist.
 - 5.(1) All equipment and tools used to sell food must be made of a substance that does not transmit any toxins, odor or taste. Such equipment and tools must be made of non-absorbable and stainless materials and are resilient of continuous cleaning and disinfectant. There should be smooth surfaces free of gaps and fine openings. It shall be voided using wood and other materials that cannot be easily cleaned and disinfected. It can only be used when there is no obvious source of contamination.
 - 5.(2) All equipment and tools should be designed and manufactured to facilitate easy cleaning and disinfection to prevent hygiene risks.
 - 5.(3) Containers used for collection of non-consumable materials and waste on demand should be made of metal or other non-leaky material to prevent leakage and should be able to easily clean. The vessels should be kept well sealed. The tools and equipment used to collect the waste must be distinguishable.
 - 5.(4) Calibrated temperature gauge or recording equipment shall be provided for all facilities for contemplation and refrigeration, where appropriate.
 - 5.(5) Instrument and tools must be maintained in good condition.
 - 5.(6) Packaging vendors should be designed and maintained to prevent contamination of food and to prevent pest contamination.

- 5.(7) When selling food, there should be no stainless steel to use for serving customers.
- 5.(8) If food or beverages are offered for consumption at that time, separate containers should be kept.
- 5.(9) Food taken for sale should not be contaminated in any way.
- 5.(10) Tools or jars to be used should be food-friendly tools or pots.
6. Notwithstanding anything referred to in clause 4 above in the case of mobile trade for the purpose of selling other goods in the field of mobile trade, a method which is not chemically harmful to the physical environment must be carried out in the relevant containers and transport media.
7. All licenses issued under clause 4 above shall be applicable for a period of time it issued for, unless such license has been previously revoked.
8. A person licensed under this by-law shall be subject to the following conditions:
- 8.(1) Any person engaged in the tourist trade unless they carry on their business in an un harmful manner to the vehicles, pedestrians or the people roaming in the public places should not trade in any public place.
- 8.(2) Under this By-Law, when the Chairman forbids any part of the territory of the processes any person shall not trade in that part of the Pradeshiya Sabha and should carry out the business only on the area or route permitted by the license.
- 8.(3) Any person employed in the mobile trade or any person working under him is suffering from an infectious disease or stomach related disease or an infectious disease by touch while it is the infectious period, or while treating such a patient, shall not be engaged in mobile trade affairs.
09. When there is a valid license issued under this By-Law, the Health Medical Officer informs the Chairman that there is a risk of contracting a contagious disease or in the area or a road or the area of the permit,
- I. Temporarily suspends any license issued under the terms of this section, in writing,
 - II. To prohibit the trading in any part of the Pradeshiya Sabha area,
 - III. The license which is suspended under sub-section 10 above shall be taken into the custody of the Chairman within the period of suspension and.
 - IV. If the license is not suspended and the Medical Officer of Health shall reports to the Chairman that the risk of spreading the disease has expired before the expiry date of the license, the Chairman shall have the power to recover the suspended license.
 - V. It shall be the duty of the Chairman to inform the license holders that if the health authorities report to the Chairman that the risk of banning the sale of any part of the Pradeshiya Sabha area has been terminated under section 10 (2).
10. The Chairman or the Authorized Officer of the Pradeshiya Sabha will not be liable for any loss or damage to the Licensee as a result of the suspension of any license under the section 10 above.
11. All persons dealing with the use of food for the purposes of this interim obligation shall be certified by the Medical Officer of Health of the area to be in good health before employing and the certificate must be in accordance with the form set out in Schedule II to this Order. The medical examination of a person dealing with food consumption shall be conducted from time to time as determined by the Medical Officers of the relevant area and in what may be referred to as a clinical or epidemic.
12. Every Licensee shall, in his conduct, engage in the business of tourism, in the possession of the permit issued under this by-law. This license shall be submitted when requested by the Chairman or an authorized officer in order to check.
13. Determination of the division or limit for the purpose of mobile trade in the area of authority of the Pradeshiya Sabha is legal.
14. The public should not be sound or smell corrupted by mobile trade or its advertising, and if such complaint is proved after an inquiry, the Chairman shall be entitled to cancel the license or make an appropriate provision.

15. Disposal of waste generated by the tourism trade shall be in accordance with the Waste Management Program implemented by the Pradeshiya Sabhas on Waste Management and He shall comply with the instructions and directions given by the Chairman in issuing the relevant permit.
16. The Chairman, Authorized Officer or the Medical Officer of Health or the Public Health Inspector shall have the power at any reasonable time to provide for the compliance of the requirements of this by-law and the Licensee shall provide every reasonable assistance.
17. A licensee shall not refuse or interfere with any purchase of any food or goods marketed by any Traveling Vendor as the Chairman or authorized official has made it legally possible to pay for it.
18. In the event of a trade in which a license has been issued under this by-law is contrary to the provisions of any of the by-laws of this By-Law, the Chairman shall deliver to the Licensee a notice requiring the Licensee to comply with all such requirements. Plan and give time.maximum must not exceed three days.
19. Any licensee who has received a notice in the manner specified in section 19 hereof shall have the right to cancel the permit issued to such person in the event that he fails to comply with the notice prescribed on or before the date specified in such notice.
20. Any violation of one or more of the provisions of this by-law is an offense
21. It is an offense not to act in accordance with section 8 of this by-law and after being convicted by a magistrate court of that offense, he has been subjected to a penalty under Section 122 of the Pradeshiya Sabha Act No.15 of 1987 and in continuation of the offence, subject to an additional penalty under that section.
22. In this by-law, unless it is otherwise necessary to another meaning for the words

The word "Chairman" shall mean the person holding the office of Chairman of this Pradeshiya Sabha or the person who performs the duties of the post,

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha,

"Health Medical Officer" shall mean the person holding the office in any of the Divisional Health Medical Officers' Division in that period,

"Public Health Inspector" shall mean any person holding such office in any of the Public Health Inspectors area within the area of authority of the Public Health Inspector in that period.

"Authorized Officer" shall mean any officer duly authorized by the Chairman in writing in that period,

"The licensee" shall mean an individual or person who obtains a license under this by-law,

"Pesticides" shall mean pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Cleaning" shall mean removes any accumulated food waste or other harmful external contaminants and soil,

"Pollution causes" shall mean any biologic chemical substance or other substance that may be harmful to the safety and proper quality of food,

"Pollution" shall mean Incorporation or combustion of combustible materials into a food or food environment,

Reducing the amount of organisms in the environment by chemical agents or by physical shall mean,

"Disinfectant" shall mean reducing the amount of organisms in the environment by chemical agents or by physical,

"Food security" shall mean ensure that the food is safe and appropriate at all times in the food chain,

"Hazard" shall mean certain biological, chemical, or physiological agents or conditions associated with foods that may have an adverse health impact.

"Food handler" shall mean someone who works directly on food, food equipment and tools, or on the surface where food touches,

"Mobile trade" shall mean any type of food, goods or materials sold or displayed for public consumption by the use of a container, box, or other kind of aid, or in any vehicle, bicycle or cart or hand carriage. It means a trade that is being carried away or stopped somewhere.

23. In the event of any inconsistency between the Sinhala, Tamil and English versions of this by-law, the Sinhala text shall prevail

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile :- Land phone : -
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should
be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
 - Name and Personal Address:
 - National Identity Card Number: -
 - Phone number: Mobile:- Land phone :-

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health

Second Schedule

Photograph

Medical Certificate issued to the Mobile Traders of Pradeshiya Sabha Authoritative Area

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health
(Official Seal)

NIVITHIGALA PRADESHIYA SABHA

By- Law Maintenance of Retail Shops

This is to notify that I, Dhamma Dissanayake, Governor of the Sabaragamuwa Province has approved the By-law regarding maintenance of Retail Shops within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act, No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-Law on the Maintenance of Retail Shops within Nivithigala Pradeshiya Sabha Authoritative Area

1. This By-Law is enacted to regulate, administer and control the retail shops in the area of the Nivithigala Pradeshiya Sabha.
2. This by-law is known as the By-Law on the Maintenance of Retail Shops within Nivithigala Pradeshiya Sabha Authoritative Area
3. (1) No person shall maintain a shop for the sale of goods for human consumption unless there is a valid license issued by the Chairman of any premises within the area of Nivithigala Pradeshiya Sabha (hereinafter referred to as the area).
3. (2) Every person applying for a license under this section shall apply for a license under an application prepared in accordance with the first schedule hereof.
3. (3) The fee for a license under this by-law shall be lawful by the Council, subject to the provisions of the Basic Law, and shall be determined by a resolution of the Council.
4. Every person applying for a license under section 3 of this by-law must meet the following conditions:
 4. (1) If zoning has been done or industrial zones have been designated, the zoning shall comply with the construction of a building for the operation of a retail store.
 4. (2) Buildings applicable to the premises shall be constructed in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance. The construction should be of good construction and of good quality.
 4. (3) The buildings on the premises should be constructed with accessibility facilities for the disabled and special needs.
 4. (4) The organism shall not depend on all construction materials relating to the premises and shall not transmit food which is unsuitable for food. No toxic gases should be emitted from the material after construction is complete. Must be well built and in good condition.
 4. (5) The building shall be designed so that it can be separated, divided or positioned to prevent cross-contamination within the premises.
 4. (6) The premises shall be designed to provide adequate space to enable all operations to be carried out smoothly without interruption.

- 4 (7) The process from the point of arrival to the sale of food items must be designed to facilitate the proper operation of the hygiene operations.
4. (8) The premises shall be designed to prevent the entry and occupancy of pests and pollutants.
- 4.(9) The premises shall be designed to be easily and properly cleaned and to facilitate proper monitoring of the hygiene of food items.
- 4.(10) In operating a retail outlet, every room should have openable windows, and the open floor where the windows open should provide sufficient light, and when opened, the area of the window windows should be one-seventh of the floor area of the room. When considering both door windows, the area of the window panels should be at least one-fifteenth of the floor area of the room and the area of the room when opening both doors should not be less than one-seventh of the floor area. Otherwise, adequate artificial lighting and ventilation should be provided.
- 4.(11) The building shall be reserved for each purpose, such as storage of food and rest rooms, and shall be of suitable design only for the purpose.
- 4.(12) Every room in the premises shall be at least 2.7 m from floor to ceiling and shall be constructed of permanent material and well finished.
- 4.(13) When operating a retail outlet, the electrical plugs connected to the equipment must be in safe condition and the safety of the supply and use shall be ensured.
- 4.(14) The floor shall be made of waterproof, non-absorbent, washable and non-slippery material without fine opening and shall be easy to clean and disinfect. There should be sufficient slope to allow the liquid to flow from the exit points of the ground.
- 4.(15) The walls shall be made of non-absorbent and washable material with waterproofing and shall be free of holes and insects. The walls should be smooth to the height of the operation and should not have delicate openings. They should also be easy to clean and disinfect.
- 4.(16) Surfaces that come in direct contact with foodstuffs should be of good quality, durable and easy to clean, maintain and disinfect. These surfaces should be made of a smooth and non-absorbent material, and the surfaces should be free of foodstuffs, washers, and disinfectants.
- 4.(17) Every building where food is stored or sold for sale shall have a ceiling or concrete roof, designed, constructed and completed to prevent contamination, minimize condensation and prevent mold and cracking. It should be easy to clean.
- 4.(18) Doors shall have a smooth and non-absorbent surface and shall automatically close and close when appropriate.
- 4.(19) The windows should be easily cleaned and constructed to minimize contamination. They should also be fitted with adequate nets that can be removed and cleaned, insects cannot enter, and windows should be installed as needed.
- 4.(20) All structures and fixtures located above the food handling area within the premises shall be installed to prevent direct and indirect combustion of food and raw materials by condensation and leakage and shall not interfere with cleaning. It should be designed and finished to prevent contamination, mold buildup and cracking.
- 4.(21) The drains in the premises must be adequately constructed so that the waste does not become contaminated and non-returnable, and should be erected to prevent combustion and the drainage of the wastewater should be cleaned with disinfectant at least twice a day.
- 4.(22) Fire extinguishers shall be provided in the premises as required.
- 4.(23) Residences and toilets shall be kept separate from the places where food is served and shall not be open directly to the consignee.
- 4.(24) Toilets shall be provided for the use of workers.
- 4.(25) Every existing toilet and toilet shall be erected in a permanent construction material and shall not be slippery.

- 4.(26) Wastewater and sewage shall be directed to a septic pit, suction pit, or central treatment unit by an approved system of sealed drainage or other suitable construction material so that the waste does not rely on the required slope. Also, a water trap or an approved suitable method should be used to prevent combustion between the premises and the final disposal.
- 4.(27) When intending to operate a grocery store in an area not covered by the Solid Waste Management Service of the pradeshiya sabha, the license holder shall establish a formal waste disposal system to the satisfaction of the Chairman of the pradeshiya sabha according to the reports of the Public Health Inspector or Health Medical Officer.
5. Every person licensed under this by-law shall maintain the premises in accordance with the following conditions.
5. (1) Notwithstanding the procedure laid down under this By-Law, adequate measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer or open land.
5. (2) The above mentioned wastewater shall not be exposed to the sewage pit where the sewage is flowing, and shall not contaminate ground water from the suction pit.
5. (3) The above mentioned pond shall be constructed up to the approved standard for sewerage.
5. (4) The above suction pit shall be erected at least 15.25 m from any source of water.
5. (5) When necessary to freeze, refrigerate, store cold or frozen foods, and regulate the temperature of foodstuffs, the food shall be in accordance with the nature of the operations; Sufficient facilities shall be provided to ensure the safety and suitability of the material and to regulate the temperature.
5. (6) All equipment and tools used in the place where food items are sold must comply with the following requirements:
- i. All equipment and tools used in the area where food is sold must be made of materials that do not transmit any toxins, odors or taste. Such equipment and tools must be made of non-absorbent and stainless materials and are of continuous cleaning and disinfectant. There should be smooth surfaces free of gaps and fine openings. Avoid using wood and other materials that cannot be easily cleaned and disinfected, and can only be used when they are not a clear source of combustion.
 - ii. To prevent hygiene hazards, all equipment and tools must be designed and constructed in such a way that they are easily cleaned and disinfected, and inspected at appropriate times. Where necessary, the equipment for cleaning and maintenance should be fitted to the parts.
 - iii. Containers and non-consumable containers should be made of metal or other non-leaky material to prevent leakage and should be easily cleaned. Also, the pots should be well sealed.
 - iv. Waste collection equipment and tools should be distinguishable and not used for other purposes.
 - v. Calibrated temperature gauges or recording equipment should be provided for freezing and freezing where appropriate.
 - vi. The equipment, tools and all other physical facilities of the institution should be maintained in good condition.
 - vii. Packaging vendors should be designed and maintained to prevent sterilization of foodstuffs and to prevent pests from entering the food stocks.
 - viii. If there is frozen food or temperature controlled food, a suitable and adequate generator should be maintained for use in a power outage.
5. (7) The drinking water for use on the premises must be adequately supplied and stored in containers that meet the required standards.
5. (8) The Licensee shall at all times ensure that any food sold on the premises is a hazard free food.

5. (9) No person shall store or sell frozen meat or fish in any premises except in accordance with the following rules.
- All frozen meat and fish should be stored after receiving, and in the event that they are not sold, the room or cabinet should be kept below 2 degrees Celsius as soon as practicable. In all cases, frozen meat and fish should be preserved to avoid spoilage and combustion.
 - The surface area of tables, benches or shelves that come in direct contact with frozen meat or fish should be smooth and free of stains.
- 5.(10) An appropriate control system shall be adopted for the disposal of pesticides, wherever necessary, and to keep the premises free of pests, and that all windows and gates be covered with appropriate nets.
- 5.(11) Any food item shall not be placed directly on the ground and shall be placed on a platform at least 45 cm above the ground level so that it can be cleaned under the platform where it is displayed and stored. The minimum distance should be 23 cm. It should be 23 cm away from the wall in place and covered and clean so that rats or insects cannot stand under the platform.
- 5.(12) All equipment and tools used on the premises must be made of materials that do not transmit any toxins, odor or taste. Such equipment and tools must be made of non-absorbent and stainless materials and must be of continuous cleaning and disinfectant. There should be smooth surfaces free of gaps and fine openings. Avoid using wood and other materials that cannot be easily cleaned and disinfected and can only be used when they are not clearly a source of combustion.
- 5.(13) Wrapping and packaging of foodstuffs shall not be a source of contamination and shall be stored in such a manner that it does not pose a risk of corrosion.
6. Materials for sale must be kept separate and displayed separately.
7. Where a license is to be traded for any material in the premises under any other written law, the permit shall apply to the premises in addition to the license under section 3 of this by-law.
8. When displaying items for sale, the customer's view should not be blocked and food items may not be packed.
9. If a food item or any other item is displayed in a container, the ingredients or general name and price of the product should be displayed to the consumer.
10. No person shall make or produce any breed of animal or bird, such as dogs or cats, in any licensed institution.
11. Stalls selling food items of the Licensed Institution should be free from pests. There needs to be an effective and ongoing program to control pests.
12. Any goods or materials that are not for sale or items that are not for sale on the premises should be removed, stored and labeled separately from the goods and materials that are for sale at all times.
13. Food items in containers should be safely stored in a non-combustible manner.
14. Every food container must be a food-friendly container.
15. Licensees and employees under him shall have the necessary knowledge on food hygiene policies and practices to determine potential risks and take action to address any deficiencies.
16. Waste management of the organization should be as follows.
- Licensed organizations must have an efficient and appropriate waste disposal system that is always in good working order and repaired.
 - The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - It is the responsibility of the Licensee to take action to minimize the daily waste generation of Licensed Institutions.

17. A standard weighted or unbalanced balance shall be placed wherever the license is found, with the assistance of one or the other, when a customer discloses the need to check the quantity of the goods or materials he or she has purchased. Weighing capability should be maintained.
18. Every person dealing with food related to the premises should ensure that the area medical officer is in good health before being employed and such certificate must be in the format specified in the second schedule of this by-law. The medical examination of a person dealing with food consumption shall be conducted from time to time as determined by the Medical Officer of Health of the relevant area and from time to time as specified clinically or as epidemiologically.
19. Every person working in licensed premises must be of the highest personal hygiene at the time of his work, wearing helmets, gloves, face masks and shoes, and wearing appropriate protective clothing.
20. Persons operating in licensed premises should wash their hands with disinfectant water before starting work or resuming after using the toilet or touching any raw material or impurity.
21. Gloves used in operating in licensed premises shall be in good and clean hygiene.
22. A person who has a cut or injury should not touch the same wound, waterproof cover, or hold for sale.
23. The premises should have adequate first aid facilities.
24. Any material placed on the premises for sale, directly or indirectly, that is contaminated or suspected to have been infected, or is a vector of such diseases or infected with wounds, skin infections, ulcers and diarrhea The Licensee shall always ensure that the work is not carried out for marketing or use purposes Permits must be reported to the scorer that he was so ill person in compliance with.
25. Every person dealing with food consuming food, eating unsafe food, smoking, spitting, chewing gum, chewing gum, and coughing, sneezing, touching the nose or engaging in any harmful activity should not be done.
26. Everyone in the premises,
 - i. Should not leave personal belongings and clothing in the consignment areas.
 - ii. Food should not be left in a place that is in danger of being burned.
 - iii. Ensure that all materials stored on the premises are suitable for human consumption.
 - iv. Adequate measures must be taken to protect against corrosion when storing, transporting, delivering, and exposing materials for sale.
 - v. Should not wear jewelry, watches, pins, pins or any other such items and in the event of any harm to the safety and suitability of personal items for sale.
27. The sleeping areas and the toiletries for the employees and the employees should be kept separate from the place where the workers are sleeping.
28. Important health messages relevant to employees and customers should be displayed in the premises.
29. Any license, food or other substance or liquid in any premises for the purpose of inspection shall be authorized by the Chairman or the Medical Officer of Health or the Public Health Inspector or any other authority authorized by the Chairman, except as authorized by the Licensee. Refuse or impede the purchase or purchase Do not overload.
30. The Chairman, the Medical Officer of Health or the Public Health Inspector or any other officer authorized by the Chairman shall have the right to inspect the provisions of these by-laws at any reasonable time and the Licensee shall provide every reasonable support.
31. Every permit issued under this by-law shall expire on or after 31st December of the year in which the license was issued, unless it was previously revoked.
32. Every Sinhala, Tamil and English copy of this by-law shall be displayed in a public place in such a public place in every premise subject to a license under this by-law.

33. In the event of the operation of any retail outlet where a license has been issued under this by-law, contrary to the provisions of any of the provisions of this by-law, the Licensee shall be required to comply with all such requirements before the specified date. A notice was handed over to the licensee by the Chairman Drink should be made. The maximum period of notice from such advertisement shall not exceed 30 days.
34. Any licensee who has received a notice of the type referred to in paragraph 33 hereof shall act in accordance with the notice as set forth in that notice. The Chairman shall have the authority to extend the specified time period of such notice upon a reasonable written request by the licensee. However, the extension period should not exceed 14 days.
35. In the event that any licensee who has received a notice of the type referred to in paragraph 33 hereof has failed to act in the manner specified in that notice or before the date on which it has been extended, the license shall be revoked by the chairman. Must be legal.
36. It is an offense to maintain premises without a license to be obtained under this by-law or to violate any of the provisions of the by-law. (2) Subject to a fine referred to in subsection (2). A written notice shall be issued by the Chairman or the Medical Officer of Health or the Public Health Inspector with a view to the continued violation of such breach or breach by a person who has been fined after being convicted of an offense. After receiving the violation, continue The date of the above should be subject to an additional fine of said section.
37. Unless otherwise required in this by-law.

"Chairman" shall mean the person holding the office of President of this Pradeshiya Sabha or performing the functions of that office.

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha.

"Medical Officer" shall mean the person holding the office of any Medical Officer of Health in the area of the Pradeshiya Sabha.

"Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.

"Authorized officer" shall mean any officer duly authorized by the President in writing,

"Licensee" shall mean an entity / person or persons licensed under this by-law;

"Retail Shops" shall mean a place for selling processed foods or foodstuffs or other consumables, without the process of preparing or preparing food;

"Pesticides" shall mean Pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Cleaning" shall mean the removal of soil, accumulated food particles, dirt, grease or any other harmful external substance,

"Biological" shall mean any biological, chemical, alien substance or other substance which may be harmful to the safety or appropriateness of food;

"Decaying" shall mean the entry of a combustible substance into a food or food environment,

Whether chemical or physical means reduce the amount of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food by "disinfectants";

"Food hygiene" shall mean all conditions, measures, and practices necessary to ensure the safety and appropriateness of food at all stages of the food chain;

"Hazard" shall mean any food, biological, chemical or physiological agent or condition that may have an adverse health impact,

"Food handler" shall mean any person who works directly on food, food utensils and tools or on the surface where food touches

"Food Safety" shall mean the responsibility of the consumer to avoid any harm when preparing, processing, manufacturing, storing, distributing, transporting or consuming food.

"Reasonable time" shall mean a time when the licensee is engaged in the work or related work.

38. In the event of any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:
02. Personal Address:
03. National Identity Card Number:
04. Phone Number: Mobile :- Land phone :-
05. Nature of Business: -
06. Year of Commencement:
07. Business Address:
08. Grama Niladhari Division:
09. Assessment Number:
10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)
11. Business Name Registration Number, Reference Number: -
12. Business Manager or Agent,
 - Name and Personal Address:
 - National Identity Card Number: -
 - Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

Secretary

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

Medical Officer of Health

Second Schedule

Photograph

Medical Certificate issued to the Worker in a Retail Shop

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

Date

Medical Officer of Health
(Official Seal)

NIVITHIGALA PRADESHIYA SABHA

By- Law - Maintenance of Hotels

THIS is to notify that I, Dhamma Disسانayake, Governor of the Sabaragamuwa Province has approved the By-law regarding Maintenance of Hotels within authoritative area of Nivithigala Pradeshiya Sabha, prepared by the Nivithigala Pradeshiya Sabha by virtue of powers vested in it under Section 122 read with Section 126 of Pradeshiya Sabha Act No. 15 of 1987 and passed at its General meeting held on 18.06.2019, by virtue of powers vested under Section 123(1) of Pradeshiya Sabha Act read with Section 2 of Provincial Council (Consequential Provisions) Act No. 12 of 1989, and it will be effective within Authoritative Area of Nivithigala Pradeshiya Sabha from the date this notification is published in the *Gazette*.

DHAMMA DISSANAYAKE,
Governor,
Sabaragamuwa Province.

At the Sabaragamuwa Provincial Council,
On this 30th day of October, 2019.

By-Law on the Maintenance of Hotels within the Authoritative Area of Nivithigala Pradeshiya Sabha

1. This By-Law is enacted to regulate, administer and control the operation of hotels within the area of authority of the Nivithigala Pradeshiya Sabha.
2. This by-law is known as the by-law of operating a hotel within the area of the Nivithigala pradeshiya sabha.
3. (1) No person shall operate a hotel within the premises of the Nivithigala Pradeshiya Sabha (hereinafter referred to as the Pradeshiya Sabha) unless there is a valid license issued by it to the Chairman.
3. (2) Every person applying for a license under this by-law shall apply for a license under an application prepared in accordance with the first subsection herein.
3. (3) The fees payable for a license under this section shall be the fees charged by the Council in accordance with the provisions of the Basic Law.
4. (1) Any person who wishes to commence and maintain a premises subject to a permit under section 3 above shall have his prior approval under this by-law, unless the by-law is in force. There is no entitlement to apply for a license under section 10 of the Act.
4. (2) The President shall approve the report of the Public Health Inspector and the Medical Officer of Health on a request for prior approval under this section.
4. (3) The inspection fee to be paid under the approval of this section may be determined by the Council from time to time by a resolution of the resolution.
5. Every person applying for a license under section 3 of this by-law must meet the following conditions:
 5. (1) Approval under Section 4 of the by-Law when the business is a start-up business.
 5. (2) If a zoning has been done or industrial zones have been designated, the construction of a building for a hotel shall be in accordance with that zoning.
 5. (3) Where the premises are intended to be used for the preparation, cooking, storage, sale and distribution of food;
 - i. The construction of the premises shall be in accordance with the provisions of the Urban Development Authority Act or the Housing and Urban Development Ordinance and shall be of good construction and shall be in good condition.
 - ii. Organisms should not rely on all construction materials and should not transmit food that is unsuitable to them. No toxic gases should be emitted from the material after construction is complete. Must be well built and in good condition.

- iii. Design, or other efficient means of separation, division, positioning, or other means to prevent cross-combustion must be provided.
- iv. It should be designed to provide adequate space so that all operations can be performed smoothly without interruption.
- v. From the raw materials to the premises to the production of finished food, the process of hygiene should be designed to facilitate the process. There should be no deviation from the operation of the fabrication process.
- vi. It should be designed to prevent the entry and retention of pests and pollutants.
- vii. It should be designed to facilitate proper monitoring of the hygiene of foods so that they can be easily and properly cleaned.

5. (4) Food Processing Station of the Hotel Premises,

- i. The floor should be made of waterproof, non-absorbent, washable and non-slippery material without fine opening and should be easy to clean and disinfect. There should be sufficient slope to allow the liquid to flow from the exit points of the ground.
- ii. The walls should be made of waterproof, non-absorbent, and washable material, and the walls should be free of holes and insects. The walls should be smooth to the height of the operation and should not have delicate openings. They should also be easy to clean and disinfect.
- iii. Surfaces that come in direct contact with food should be of good quality, durable and easy to clean, maintain and disinfect. These surfaces should be made of materials that are smooth and non-absorbent and that the surfaces should be free of food, washing agents and disinfectants.
- iv. The ceiling should be designed, constructed and finished to minimize condensation and prevent the molding and cracking of the ceiling, making it easy to clean.
- v. The doors should have a smooth and non-absorbent surface, which can be automatically closed and closed when appropriate.
- vi. The windows should be easily cleaned and constructed to minimize the accumulation of dirt. They should also be equipped with removable and cleanable nets that are not accessible to insects and should be installed as needed.
- vii. All structures and fixtures above the food handling area must be installed to prevent direct and indirect combustion of food and ingredients by condensation and leakage and shall not interfere with cleaning. It should be designed and finished to prevent dirt accumulation, mold buildup and spillage.
- viii. General fire extinguishers shall be provided at the site and additional fire extinguishers shall be provided if the electrical connection is obtained.
- ix. Habitats, toilets, and animal husbandry areas should be kept separate from food-consuming places and not directly open to food-consuming areas.

5. (5) To facilitate the use of staff in the hotel premises;

- i. The number of bedrooms reserved for on-site workers should be not less than 4 square meters per person.
- ii. Separate toilets and toilets shall be provided for both men and women to be adequate for the use of the workers.
- iii. Adequate number of bathrooms shall be provided for the use of persons employed in the premises and the provisions of this by-law shall apply to such bathrooms.
- iv. Every toilet, toilet and bathroom provided must be well constructed with permanent construction material.

5. (6) When the premises are not covered by a solid waste management service implemented by the pradeshiya sabha, the premises should be prepared in accordance with the Public Health Inspector or Health Medical Officer recommended garbage disposal system.

5. (7) The premises shall be erected with accessibility facilities for the disabled and special needs.
6. Every person licensed under this by-law shall maintain the premises in accordance with the following conditions.
6. (1) Pumps, suction pits or central treatment units shall be directed to an approved system of sealed drainage or other suitable construction material so that the wastewater does not rely on the slope with the required slope. Also, a water trap or an approved suitable method should be used to prevent combustion between the premises and the final disposal.
6. (2) Toilets and toilets shall be constructed and maintained in good condition so that its internal floor is not slippery.
6. (3) The drains must be adequately constructed to avoid contamination and return, and should be constructed to prevent combustion and the drainage of the wastewater must be cleaned and disinfected at least twice a day with disinfectant.
6. (4) Sufficient measures must be taken to prevent wastewater and sewage from flowing into any public waterway, sewer, or open land.
6. (5) The sewage pit, where sewage and sewage flow, shall not be exposed to air and shall not contaminate groundwater from the suction pit.
6. (6) The sewage pit where sewage and sewage is flowing must be constructed to the standard.
6. (7) The suction pit shall be erected at least 15.25 m from any source of water.
6. (8) The nature of food operations undertaken when necessary for cooking, heating, cooling, refrigerating, refrigerating, storing or freezing foods, and controlling the temperature of the food. Suitably, adequate facilities should be provided to ensure the safety and suitability of the food and to regulate the temperature.
6. (9) All equipment and equipment used in the premises of the hotel premises shall comply with the following requirements.
- i. All equipment and tools used in the food processing area must be made of materials that do not transmit any toxins, odors or taste. Such equipment and tools must be made of non-absorbent and non-durable materials, and of continuous cleaning and disinfectant materials. There should be smooth surfaces free of gaps and fine openings. Wood and other materials that are not easily cleaned and disinfected should be avoided only when they are not clearly a source of combustion.
 - ii. To prevent hygiene hazards, all equipment and tools must be designed and made to be easily cleaned and disinfected and inspected when appropriate. Where necessary, the equipment should be fitted for cleaning and maintenance.
 - iii. Containers used for collection of non-consumable materials and waste should be made of metal or other non-leaky materials and should be easily cleaned. Also, the pots should be well sealed.
 - iv. Waste collection equipment and tools should be distinguishable and not used for consumable products.
 - v. Calibrated temperature gauges or recording equipment shall be provided for all facilities for freezing and freezing at all times.
 - vi. The equipment, tools and all other physical facilities of the organization should be maintained in good condition.
 - vii. Pests need to be designed and maintained to prevent contamination in the transportation of food and to avoid contamination of food.
 - viii. A suitable and adequate generator should be maintained in an accessible manner in case of power outages.
6. (10) The water supply and water storage facilities on the premises shall be as follows,
- i. There should be adequate drinking water supply in the premises. Water should be stored in clean containers and free of hazardous materials and pollutants.

- ii. Ice should be produced in drinking water and stored and stored to prevent contamination.
 - iii. Vapors that directly interfere with food or food surfaces must be free of hazardous materials or pollutants.
 - iv. Non-potable water used for steam production, refrigeration, fire control and other non-food related purposes shall be carried in separate pipelines and shall be distinguishable in color. Moreover, there should be no possibility of cross-contamination or deviation from drinking water from the pipelines
6. (11) The Licensee shall ensure that there is an enforceable procedure in place to deal with any hazardous conditions in food safety and to prevent the delivery of any spoiled food products to consumers.
6. (12) No person shall process meat or fish in any premises except in accordance with the following rules.
- i. All meat and fish should be stored after receiving, and when they are not processed, the room or cabinet temperature should be kept below 2 degrees Celsius as soon as practicable. In all cases, meat and fish should be preserved so as not to be rotten and combustible.
 - ii. The surface area of tables, benches, or shelves that come in direct contact with meat or fish should be smooth, free of stains.
 - iii. Do not allow the collection of waste bones, fish and waste. They should be removed from the premises at least once a day and disposed of before being affected.
 - iv. Every processing room in a food handling area and any other place for processing food in that room is made from non-absorbent metals or some other suitable water-absorbent material for the collection of meat shells, fish effluent, and waste. There are plenty of easy-to-use, portable, non-portable watertight containers with a sealant cover. The size should be provided.
6. (13) Disposal containers for premises,
- i. Meat shells, discarded parts of fish should be kept in a frozen room or in a separate room or covered with an insulating material that does not absorb water, until the waste is disposed of. They should be located high above the ground, suitable for drainage, with support slopes. Nevertheless, pests and fats should be taken to a separate room, covered area, or outside place and kept in clean, dry bags or other suitable containers until they are removed from the premises.
 - ii. Immediately after emptying the pots should be carefully cleaned and dried underneath.
6. (14) Steps shall be taken to cover all windows and entry gates with appropriate nets or flies, by properly directed air ducts or other suitable means of disposal of pests and to keep the premises free of pests.
6. (15) No person shall display or serve food in any place where food is provided, except in accordance with the following requirements:
- i. In cases where the consumer has food to choose from, the customer should not hold the food in such a way as to have his hand extended over other foods.
 - ii. Ensure proper use of snacks, forks, spoons, sticks, knives, large spoons, suitable for use by workers and customers, to prevent unnecessary touching of food.
- 6.(16) In the opinion of the PHI, the manner in which food is stored and the safety measures provided against sterilization are inadequate, the PHI shall take additional measures as prescribed by the Public Health Inspector.
6. (17) Every person dealing with food preparation or serving food in a catering company must be careful to prevent food contamination and to avoid unnecessary touching and other equipment used on the premises.
6. (18) Any person engaged in the preparation, handling or serving of food at the Hotel premises;
- i. The food should not be split with its fingers, except where it is practically impossible to serve food in any other way.
 - ii. Food-friendly gloves should be used when fingertips are necessary for special occasions.
 - iii. He must not wipe his hand in his clothes or wipe anything else, except using a clean towel.

- iv. Do not carry or store any food in a dish, dish or container that conflicts with the food in a dish, dish, or container.
 - v. A bowl, dish or dish that is used to divide or divide a particular food should not be stacked on top of one another without being thoroughly cleaned and the surfaces should be placed wherever possible.
 - vi. The containers should not be touched in such a way that the microorganisms can be transferred from the food processor to the consumer with a spoon, knife, fork or any other container.
 - vii. Do not carry a spoon, knife or fork in the pocket of any garment or apron.
- 6 (19) Every supplier of food in a licensed institution shall not use any other appliance unless it is impracticable to use a sanitary fork or other suitable instrument for the provision of food.
- 6 (20) No employee of a licensed institution shall wipe any instrument with a gun or other cloth that is not clean or in some way unworthy of wiping.
- 6 (21) Cloth used for table wipes must be cleaned and replaced at least three times a day.
- 6 (22) The Licensee shall operate the premises in accordance with the following requirements:
- (A) All cooked foods which are easily decomposed shall be maintained at temperatures not exceeding 4 degrees Celsius, or at temperatures not less than 60 degrees Celsius except in the following cases: Otherwise,
 - i. When the entire collection is not exposed or displayed for sale for more than two hours, or
 - ii. During the time between preparation and serving.
 - (B) Pastries, patties, sauces, pizzas and similar dishes containing all cooked meat or fish, which are generally eaten in the same condition as that sold, shall be stored in covered containers. Otherwise, it should be stored separately in foods that are not in a sealed container or completely covered in a container, or in a container.
 - (C) Milk should not be kept in a feeder premises unless it is stored in a refrigerator at temperatures not exceeding 7 degrees Celsius.
 - (D) All fruits and vegetables that may be eaten at the time of delivery shall be washed and cleaned before being delivered to the consumer.
 - (E) Any food shall be placed directly on the ground and shall be placed on a platform of suitable material at least 45 cm height above the floor where it can be cleaned under the platform where it is displayed and stored and its platform should be lowered to the ends The distance should be 23 cm. The platform must be located at least 23 cm away from the wall, except that the rats or any type of insect must be covered under the platform.
 - (F) Vegetable vegetables should be kept in well-ventilated, adequate lighting, without any mice, or in any other room or refrigerator or cooler room.
- 6 (23) In accordance with the nature of the food operations undertaken, where necessary, for cooking, heating, cooling, freezing, freezing, storing, refrigerating or freezing foods; Sufficient facilities should be provided to ensure the safety and suitability of the food and to regulate the temperature.
- 6 (24) The Institute shall have adequate, appropriate and conveniently located clothing change points and water printed toilets and comply with toilet hygiene standards. These locations should be well lit and ventilated. These locations should not be directly open to food handling areas. Washing hands with hot or cold water should be equipped with cleaners and a hand drying system should be provided next to the toilet.
- 6 (25) Facilities shall be adequately equipped for hand washing and drying, with facilities for disinfection of hands, if necessary.
- 6 (26) The equipment and equipment used shall be adequately equipped for cleaning and disinfection. These facilities should be made of stainless materials and should be easily washable. Further, suitable equipment should be equipped with sufficient quantities of hot and cold water to clean the equipment if necessary.

- 6 (27) The Licensed Institution shall have adequate and appropriate lighting everywhere. At any point in the product, the bulbs and fixtures that hang over the foodstuff must be in safety condition and should be covered with bulbs to prevent food from breaking.
- 6 (28) Adequate facilities shall be provided and sufficient ventilation to remove dirty air to prevent excessive heating, condensation of steam and accumulation of dust. Winds within the premises should not be from a dirty area to a clean area. The ventilation spots should be arranged with a suitable mesh or other protective covering and should be easily removed for cleaning.
- 6 (29) Gases or fumes generated for any purpose in any part of the Licensed Institution shall be taken with precautionary measures before being released into the environment.
- 6 (30) Must have facilities for storing waste and non-perishable material before being taken out of the institution. These facilities should be designed to prevent pests from entering and mixing with food, drinking water or equipment.
6. (31) Any unhealthy pesticides or other substances shall be labeled with an appropriate label indicating their toxicity and how they should be used. Pesticides should be stored in locked rooms or in a cabinet outside of food preparation and food preparation areas, and their use should only be done by trained personnel and should be especially careful to avoid mixing with pesticides.
6. (32) The cleaning and disinfection process must be thoroughly done and subject to the following:
- A permanent cleaning and disinfection program for the organization should be prepared so that all aspects of the organization are appropriately cleaned and any particular areas, equipment and materials are given special attention.
 - An employee must be employed to ensure that the cleaning and disinfection process is carried out properly.
 - When preparing food on the premises, no one should clean the floor of the room by any means other than dust-free floor cleaning.
 - All equipment used in serving or consuming food shall be scraped out of the food containers therein, and the equipment shall be cleaned with warm soapy water or other washing with sufficient soap or other washing water, and the equipment shall be sanitized. Must be dealt with.
 - Adequate precautionary measures must be taken to prevent contamination of food by water, washing or disinfection of equipment or tools. If there are any residues on the surface of this cleanser, rinse it several times with drinking water.
 - CIP for cleaning. When the method is used, the process must ensure that the processing lines are cleaned and disinfected.
 - The walls, floors and drainage areas of the food stall must be thoroughly disinfected and cleaned.
6. (33) Wrapping and packaging materials shall not be sources of food contamination and shall be stored in such a manner that they do not pose a risk of corrosion.
6. (34) No person shall make arrangements for raising or raising animals, birds or other pets in a licensed establishment.
6. (35) Food handling and processing areas shall be free from pesticides. There needs to be an effective and ongoing program to control pests.
6. (36) Licensed Institute,
- Foods that are processed and unprocessed must be stored in specific locations with appropriate labels.
 - By-products should be separately sterilized to prevent food corrosion.
 - Waste should not be collected at food consumption sites.

6. (37) The transport media or containers used for the transportation of foodstuffs shall be maintained in good repair to prevent mixing of other substances into food. They should be designed so that they can be adequately cleaned and disinfected where necessary.
6. (38) The Licensee shall ensure that food users in a Licensed Institution are provided with instructions and training on food hygiene activities to suit their work.
6. (39) Licensees must have knowledge of food hygiene policies and practices in order to determine potential risks and take action to address any deficiencies.
6. (40) The waste management of the institution shall be as follows.
 - i. Licensed organizations must have an efficient and appropriate waste disposal system that is always in good working order and repaired.
 - ii. The waste must be disposed of in accordance with the Waste Management Program implemented by the Pradeshiya Sabha.
 - iii. It is the responsibility of the Licensee to take action to minimize the daily waste generation of Licensed Institutions.
 - iv. The refuse at the licensed establishment should not be dumped on the ground or in any place.
6. (41) The disposal of waste shall be legal in accordance with the conditions laid down by the Medical Officer of Health, Public Health Inspector with the approval of the Pradeshiya Sabha when the Licensee has waste disposal facilities.
6. (42) Every person dealing with the use of food related to the premises should ensure that the area health officer is in good health before such service is provided and the certificate must be in the form specified in the second schedule of this by-law. The medical examination of a person dealing with food consumption shall be conducted from time to time as determined by the Medical Officer of the relevant area and as specified clinically or by epidemiology.
6. (43) Every person dealing with the use of food shall be of the maximum personal hygiene at the time of his work, and shall always wear helmets, gloves, mouthpieces, and shoes, and in appropriate protective clothing.
6. (44) Any person entering a food-handling place should wash his hands with an appropriate cleaning solution and drinking water. Food handlers must wash their hands after using the toilet or touching any raw material or contaminant before starting work or resuming work.
6. (45) When dealing with food, persons engaged in preparing and serving food or otherwise in the premises shall wear apron made of clean and washable material and without pockets.
6. (46) Gloves used in handling food products shall be in good and clean hygiene.
6. (47) A person with a cut or injury shall not touch the food or touch the surface of the food until the wound is fully covered with a waterproof cover.
6. (48) The premises must have adequate first aid facilities.
6. (49) A person who is susceptible to food borne illness or suspected of contracting the disease, or who is a carrier of such a disease, or who suffers from infected wounds, skin infections, ulcers, and diarrhea, directly or indirectly; Should not be allowed to serve in any post where food is served. Any person who has contracted such a disease should immediately notify the licensee that he has been sick.
7. Every person dealing with food consumes food in a manner that is consuming, smoking, spitting, chewing gum, chewing gum, and coughing, sneezing, touching the nose or engaging in any harmful activity. Should not be
8. Everyone dealing with food on the premises,
 - i. Do not leave personal belongings and clothing in food handling areas.
 - ii. Food should not be left in a place that is at risk of burning.

- iii. Every food placed on the premises must be made suitable for human consumption.
 - iv. Adequate measures must be taken to protect food from corrosion when storing, transporting, presenting, and exposing food.
 - v. Jewelry, watches, pins, pins or other such items should not be worn or transported to food-use sites in the event of a threat to the safety and appropriateness of food.
9. No person shall use any premises intended to be used as a sleeping-place. There should be no sleeping area adjacent to the food preparation area unless there is sufficient space for inter costal ventilation.
10. People dealing with food should have the skills to perform food hygiene.
- 11.(1) The containers or containers for the transportation of food in vehicles shall not be used for the transportation of goods other than food.
- 11.(2) Where the means of transport or containers are used for the transportation of non-food items or other foodstuffs, they must be properly sorted and stored.
- 11.(3) The means of transport or container used for the transportation of other non-food items or other foodstuffs shall not be used for the transportation of food without proper cleaning.
- Separate containers should be used for the transportation of cooked food.
12. Food items in transport media or containers should be safely stored in a non-combustible manner.
13. Transport media or containers used for the transportation of foodstuffs, if required, should be able to maintain the appropriate temperatures and be able to regulate such temperatures.
14. Important health messages relevant to employees and customers should be displayed in the premises.
15. When providing accommodation on the premises,
- 15.(1) Place of sleeping quarters for customers to sleep in is not less than 4 square meters per person. Each bedroom has a wardrobe or cabinet, a towel rack, a desk with toilet or toiletries, and a toilet. There should also be a bathroom.
- 15.(2) The number of persons who do not meet the minimum space of 15 (1) above shall not be permitted to sleep in a particular bedroom. The Licensee shall not allow more than one person in a single room, more than two in a double room, or more than three in a triple room. However, a person sleeping in a room should not be considered a person for the purposes of this by-law when he is less than 12 years of age.
- 15.(3) At any time within the bedrooms of any licensed premises
- i. More than one bed in a single room,
 - ii. Whether it's a double bed in a double room or more than two single beds,
 - iii. Double bed in a triple room and more than a single bed or three single beds,
 - iv. No more than two double beds and a single bed or double beds and three single beds or more than five single beds in a family room.
- 15.(4) No person shall be allowed to sleep in any room other than a room specifically designated as a bedroom in a licensed place.
- 15.(5) The register shall state the name, address and identity of each person who comes to stay at the licensed premises and shall be the duty of the licensee to permit the inspection of the document by the chairman, authorized officer or any police officer. .
- 15.(6) Every person staying in a hotel shall present his, her identity to the licensee and place his, her signature in the guest register maintained in the hotel. The Licensee shall not, in any case, lodge in any part of the Licensed Place a person who does not present his identity or sign the Column of the Identity Card in the visitor's register.

- 15.(7) It shall be the duty of the Licensee not to permit the use of any hotel for any unlawful purpose, and for any person to disturb the occupants of other lodgings or the proximity of the hotel, singing or playing musical instruments, playing disc instruments or otherwise. Making sounds or not.
- 15.(8) Each bedroom in the Licensed Place shall be used by one Customer and shall be used by another Customer before being used by the Customer in the same bed, such as bed pillows, blankets, towels and other used washcloths and toilet and bath disinfectant. You must not use any other customer.
- 15.(9) Every room must be cleaned daily with toilet and toilet disinfectant, even in the presence of a client.
- 15.(10) The windows of the room shall be kept open for at least four hours before a client is allowed to use the room. Keeping room windows open does not apply in an air-conditioned situation.
- 15.(11) Children should not be allowed to live in one room with anyone other than their parents or legal guardian.
16. All permits issued under this by-law shall expire on or after 31st December of the year in which the license was issued, unless it was previously revoked.
17. Every Sinhala and Tamil and English copy of this by-law shall be displayed in public premises in a public place in every premise subject to a license under this by-law.
18. In the event that the premises of which a hotel is issued under this by-law is in violation of any of the provisions of this By-Law, the Licensee shall be required to comply with all such requirements before such date is specified. The President shall deliver the notice to the licensee should aeviya. The maximum period of notice from such advertisement shall not exceed 30 days.
19. Any licensee who has received a notice of the type referred to in section 18 hereof shall act in accordance with the notice as set forth in that notice. The Chairperson shall be entitled to extend the specified period of notice of such notice upon a reasonable written request by the Licensee. However, the extension period should not exceed 14 days.
20. In the event that any licensee who has received an advertisement of the type referred to in paragraph 18 hereof has failed to act in the manner specified in that notice or before the date of such extension, the license issued to the relevant place shall be revoked by the Chairman. Must be.
21. Any food, other substance or liquid in any premises for inspection purposes by the Chairman or the Medical Officer of Health or the Public Health Inspector or any other authority authorized by the Chairman shall be legally authorized to be paid by the Licensee. Refuse or impede the purchase or purchase Rima any means.
22. The Chairperson or an authority authorized by him to examine the terms of these By-Laws, the Medical Officer of Health and the Public Health Inspector shall have the power at any reasonable time and the Licensee shall provide every reasonable support.
23. It is an offense to maintain premises without a permit under this by-law or to violate any of the provisions of the by-law and after being convicted by a court of competent jurisdiction for such offense, 122 of the Pradeshiya Sabha Act No. 15 of 1987 (2) Subject to a fine referred to in subsection (2). Upon receipt of a written notice by the Chairman, the Medical Officer of Health or the Public Health Inspector, with regard to the violation, the offender shall continue to violate such violation by a person who has been found guilty of an offense. Every single day the violation continues The above are subject to an additional fine of said section.
24. Unless otherwise required in this By-Law,

"Chairman" shall mean the person holding the office of President of this Pradeshiya Sabha or performing the functions of that office.

"Pradeshiya Sabha" shall mean Nivithigala Pradeshiya Sabha

"Medical Officer" shall mean the person holding the office of any Medical Officer of Health in the area of the Divisional Council area.

"Public Health Inspector" shall mean the person holding the office of any Public Health Inspector in the area of the Pradeshiya Sabha.

"Authorized officer" shall mean any officer authorized by the Chairman at the moment,

"Licensee" shall mean an organization, person or person licensed under this by-law;

"Pesticides" shall mean pesticides approved by the Registrar of Pesticides of Sri Lanka,

"Cleaning" shall mean the removal of soil, accumulated food particles, dirt, grease or any other harmful external substance,

"Biological" shall mean any biological, chemical, alien substance or other substance which may be harmful to the safety or appropriateness of food;

"Combustion" shall mean inclusion or occurrence of a combustible substance in a food or food environment,

Whether chemical or physical means reduce the amount of microorganisms in the environment to a level that does not reduce the safety or appropriateness of food by "disinfectants";

"Food hygiene" shall mean all conditions, measures and practices necessary to ensure the safety and appropriateness of food at all times in the food chain;

"Biological" shall mean any biological, chemical or physiological agents or conditions associated with food which may have an adverse health impact,

"Food handler" shall mean any person who works directly on food, food utensils and tools or on the surface where food touches

"Food safety" shall mean the responsibility of the consumer to avoid any harm when preparing, processing, manufacturing, storing, distributing, transporting or consuming food.

"Drinking water" shall mean water that is free of contaminants and chemicals that contain sufficient chemicals to cause disease or adverse physical effects, and which meet national standards.

"Food" shall mean any imported, manufactured, sold or represented item for the use of human food or beverages, and any item commonly taken or used in the composition or preparation of food

"Hotel" shall mean a food and beverage marketing agency for people with or without accommodation who provide at least one main meal.

"Reasonable time" shall mean the licensing activity or related work.

25. In the event of any inconsistency between the Sinhala, Tamil and English texts of this by-law, the Sinhala text shall prevail.

First Schedule

Application for obtaining a trade license for the year

01. Name of the applicant:

02. Personal Address:

03. National Identity Card Number:

04. Phone Number: Mobile :-

Land phone :-

05. Nature of Business: -

06. Year of Commencement:

07. Business Address:

08. Grama Niladhari Division:

09. Assessment Number:

10. If the business is a start-up business, whether prior approval has been obtained: - (If obtained, a photocopy should be attached.)

11. Business Name Registration Number, Reference Number: -

12. Business Manager or Agent,

I. Name and Personal Address:

II. National Identity Card Number: -

III. Phone number: Mobile:- Land phone :-

I certify that the above information is true and correct.

I request you to issue a Trade License for the year of I agree with the existing rules on this.

Date: -

.....
Signature of the applicant

For office use

Revenue Inspector,

Kindly request to provide you with your observations and recommendations for the issuance of a trade license in respect of the application mentioned in the background.

Date: -

.....
Secretary

Secretary,

Recommended/Not recommended issuing license.

Date: -

.....
Revenue Inspector

Medical Officer of Health

Kindly request that your observations and recommendations for the issuance of a trade permit be issued promptly.

Date: -

.....
Secretary

Medical Officer of Health,

Compliance with By-Laws and other rules and regulations I will report for the recommendation of issuing a license.

Date: -

.....
Public Health Inspector

Secretary,

I recommend the issuance of a permit for the relevant place as per above application. (If not recommended, state the reason.)

Date: -

.....
Medical Officer of Health

Second Schedule

Photograph

Medical Certificate issued to an employee working in a hotel premises

I, Medical Officer of Health of area do hereby certify that I examined physically after a laboratory test, Mr./Mrs. bearer of National Identity Card number and ensure that he/she is not suffering from any communicable disease or vector and he/she does not have any injuries, skin infections, ulcers or diarrhea that may be a threat or future threat to the food security.

.....
Date

.....
Medical Officer of Health
(Official Seal)

12-654/16